

KESAVANANDA BHARATI v STATE OF KERALA (1973)
OPINION OF H.R. KHANNA, J.

H.R. Khanna J.

1387. Questions relating to the validity of the Constitution (Twentyfourth Amendment)

Act, Constitution (Twentyfifth Amendment) Act and Constitution (Twehtyninth Amendment) Act, as well as the question whether the Parliament acting under Article 368

of the Constitution can amend the provisions of Part III of the Constitution so as to take

away or abridge fundamental rights arise for determination in this petition under Article

32 of the Constitution. A number of other important questions, to which reference would be made hereafter, have also been posed during discussion, and they would be dealt with at the appropriate stage. Similar questions arise in a number of other petitions, and the counsel of the parties in those cases have been allowed to intervene.

1388. The necessary facts may now be set out, while the details which have no material bearing for the purpose of this decision can be omitted. Kerala Land Reforms Act, 1963 (Act 1 of 1964) as originally enacted was inserted as item No. 39 in the Ninth Schedule to the Constitution. The said Act was subsequently amended by Kerala-Land Reforms (Amendment) Act, 1969 (Act 35 of 1969). The petitioner filed the present writ petition on March 21, 1970 challenging the Constitutional Validity of the Kerala Land Reforms Act, 1963 (Act 1 of 1964) as amended by the Kerala Land Reforms (Amendment) Act, 1969 (Act 35 of 1969). The aforesaid Act was also challenged in a number of petitions before the Kerala High Court. A Full Bench of the Kerala High Court as per its decision in V.N. Narayanan Nair v. State of Kerala ILR [1970] (II) Kerala 315 upheld the validity of the said Act, except in respect of certain provisions. Those provisions were declared to be invalid. The State of Kerala came up in appeal to this Court against the judgment of the Kerala High Court in so far as that court had held a number of provisions of the Act to be invalid. This Court dismissed the appeals of the State as per judgment dated April 26, 1972. (1972) 2 S.C.C. 364. Appeals filed by private parties against the judgment of the Kerala High Court upholding the validity of the other provisions too were dismissed. Some writ petitions filed in this Court challenging the validity of the above mentioned Act were also disposed of by this Court in accordance with its decision in the appeals filed by the the State of Kerala and the private parties.

1389. The Kerala High Court as per judgment dated October 21, 1970 declared some other provisions of the Kerala Land Reforms Act as amended by Act 35 of 1969 to be invalid and unconstitutional. After the above judgment of the High Court the Kerala Land Reforms Act was amended by Ordinance 4 of 1971 which was promulgated on January 30, 1971. The Kerala Land Reforms (Amendment) Bill, 1971 was thereafter introduced in the Legislative Assembly to replace the ordinance. The Bill was passed by the Legislative Assembly on April 26, 1971 and received the assent of the President on August 7, 1971. It was thereafter published as the Kerala Land Reforms Act, 1971 (Act 25 of 1971) in the Gazette Extraordinary on August 11, 1971. By the Constitution (Twenty-ninth Amendment) Act, 1972 which was assented to by the President on June 9,

1972 the Kerala Land Reforms (Amendment) Act, 1969 (Act 35 of 1969) and Kerala Land Reforms (Amendment) Act, 1971 (Act 25 of 1971) were included in the Ninth Schedule to the Constitution.

1390. The writ petition was amended twice. The first amendment was made with a view

to enable the petitioner to impugn the Constitutional validity of the Kerala Reforms

(Amendment) Act (Act 25 of 1971). The second amendment of the petition was made with a view to include the prayer to declare the Twentyfourth, Twentyfifth and Twentyninth Amendments to the Constitution as unconstitutional, ultra vires, null and void.

1391. It may be mentioned that the Twentyfourth Amendment related to the amendment

of the Constitution. Section 2 of the Amendment Act added Clause (4) in Article 13 as

under:

(4) Nothing in this article shall apply to any amendment of this Constitution made under Article 368.

1392. Section 3 of the Amendment Act read as under:

3. Article 368 of the Constitution shall be renumbered as Clause (2) thereof, and

(a) for the marginal heading to that article, the following marginal heading shall be substituted, namely:

Power of Parliament to amend the Constitution and procedure therefor.;

(b) before Clause (2) as so re-numbered, the following clause shall be inserted, namely:

(1) Notwithstanding anything in this Constitution, Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provisions of this Constitution in accordance with the procedure laid down in this article,;

(c) in Clause (2) as so re-numbered, for the words "it shall be presented to the President for his assent and upon such assent being given to the Bill," the words "it shall be presented to the President who shall give his assent to the Bill and thereupon" shall be substituted;

(d) after Clause (2) as so re-numbered, the following clause shall be inserted, namely:

(3) Nothing in Article 13 shall apply to any amendment made under this article.

We may set out Articles 13 and 368 as they existed both before and after amendment

made by the Twentyfourth Amendment Act:

Before the Amendment After the Amendment 13. (1) All laws in force in the territory of 13. (1) All laws in force in the territory India immediately before the of India immediately before commencement of this Constitution, the commencement of this Consitution, so far as they are inconsistent in far so as they are inconsistent with the provisions of this part, shall with the provisions of this Part, to the extent of such inconsistency, shall to the extent of such inconnstistency be void. be void. (2) The State shall not make any law (2) The State shall not make any law which takes away or abridges the rights which takes away or abridges the conferred by this Part and any law made rights conferred by this Part and any in contravention of this clause shall, law made in contravention of this to the extent of the contravention, clause shall, to the extent of the be void. contravention, be void. (3) In this article, unless the context (3) In this article, unless the context otherwise requires. otherwise requires, (a) "law" includes any Ordinance, order (a) "law" includes any Ordinance byelaw, rules, regulation, notification, order, byelaw, rule, regulation, custom or usage having in the territory notification, of India the force of law; custom or usage having in the territory of India the force, of law; (b) "laws inforce" includes laws passed (b) "laws in force" includes laws or made by a Legislature or passed or made by a Legislature or other competent authority in the other competent authority in the territory of India before the commencement territory of India before the commencement of the Constitution and not of this Constitution and previously repealed, notwithstanding not previously repealed, notwithstanding that any such law or any part that any such law or any thereof may not be then in operation part thereof may not be then of either at all or in particular areas. operation either at all or in particular areas (4) Nothing in this article shall apply to any amendment of this Constitution made under Article 368. 368. An amendment of this Constitution 368. (r) Notwithstanding anything may be initiated only by the introduction in this Constitution, Parliament may of a Bill for the purpose in in exercise of its constituent power either House of Parliament, and when amend by way of addition, variation the Bill is passed in each House or repeal any provision of this Constitution by a majority of the total membership in accordance with the procedure of that House and by a majority of not laid down in this article less than twothirds of the members of that House present and voting, it shall (2) An amendment of this Constitution be presented to the President may be initiated only by the introduction for his assent and upon such assent being of a Bill for the purpose in given to the Bill, the Constitution either House of Parliament, and when shall stand amended in accordance with the Bill is passed in each House by a the terms of the Bill : majority of the total membership of that House and by a majority of Provided that if such amendment seeks to not less than two-thirds of the members make any change in- of that House present and voting, it shall be presented to the President who shall give his assent to the Bill and thereupon the Constitution shall Stand amended in accordance with the terms of the Bill : Provided that if such amendment seeks to make any change in- (a) Article 54, Article 55, Article 73, (a) Article 54, Article 55, Article 73, Article 162 or

Article 241, or Article 162 or Article 241, or (b) Chapter IV of Part V, Chapter V (b) Chapter IV of Part V, Chapter : V of Part VI, or Chapter I of Part XI or of Part VI, or Chapter I of Part XI or (c) any of the Lists in the Seventh (c) any of the Lists in the Seventh Schedule, or Schedule, or (d) the representation of States in (d) the representation of States in Parliament, or Parliament, or (e) the provisions of this article, (e) the provisions of this article, the amendment shall also require to the amendment shall also require to be

ratified by the Legislatures of not be ratified by the Legislatures of less than one-half of the States by not less than one-half of the States by resolutions to that effect passed by resolutions to that effect passed by those Legislatures before the Bill making those Legislatures before the Bill provision for such amendment is presented making provision of or such amendment to the President for assent. is presented to the President for assent. (3) Nothing in Article 13 shall apply to any amendment made under this article.

1393. The Constitution (Twentyfifth Amendment) Act, 1971 amended Article 31 of the

Constitution. The scope of the amendment would be clear from Section 2 of the Amendment Act which reads as under:

2. In Article 31 of the Constitution, (a) for Clause (2), the following clause shall be substituted
namely:

(2) No property shall be compulsorily acquired or requisitioned save for a public purpose and save by authority of a law which provides for acquisition or requisitioning of the property for an amount which may be fixed by such law or which may be determined in accordance with such principles and given in such manner as may be specified in such law; and no such law shall be called in question in any court on the ground that the amount so fixed or determined is not adequate or that the whole or any part of such amount is to be given otherwise than in cash:

Provided that in making any law providing for the compulsory acquisition of any property of an educational institution established and administered by a minority, referred to in Clause (1) of Article 30, the State shall ensure that the amount fixed by or determined under such law for the acquisition of such property is such as would not restrict or abrogate the right guaranteed under that clause";

(b) after Clause (2A), the following clause shall be inserted,
namely:

(2B) Nothing in Sub-clause (f) of Clause (1) of Article 19 shall affect any such law as is referred to in Clause (2).

1394. The Constitution (Twentyfifth Amendment) Act also added Article 31C after Article 31B as under:

31C. Notwithstanding anything contained in Article 13, no law giving effect to the policy of the State towards securing the principles specified in Clause (b) or Clause (c) of Article 39, shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by Article 14, Article 19 or Article 31; and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy.

Provided that where such law is made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent.

1395. The Constitution (Twentyninth Amendment) Act, as mentioned earlier, inserted the following as entries No. 65 and 66 respectively in the Ninth Schedule to the Constitution:

(i) The Kerala Land Reforms (Amendment) Act, 1969 (Kerala Act 35 of 1969); and

(ii) The Kerala Land Reforms (Amendment) Act, 1971 (Kerala Act 25 of 1971).

1396. The question as to whether the fundamental rights contained in Part III of the Constitution could be taken away or abridged by amendment was first considered by this

Court in the case of Sri Sankari Prasad Singh Deo v. Union of India And Anr. [1952]

S.C.R. 89 In that case the appellant challenged the First Amendment of the Constitution.

The First Amendment made changes in Articles 15 and 19 of the Constitution. In addition, it provided for insertion of two Articles, 31A and 31B, in Part III. Article 31A

provided that no law providing for acquisition by the State of any estate or of any such rights therein or the extinguishment or modification of any such right, shall be deemed to

be void on the ground that it was inconsistent with or took away or abridged any of the

rights conferred by any provision in Part III. The word "estate" was also defined for the

purpose of Article 31A. Article 31B provided for validation of certain Acts and Regulations which were specified in the Ninth Schedule to the Constitution. The said

Schedule was added for the first time in the Constitution. The Ninth Schedule at that time

contained 13 Acts, all relating to estates, passed by various Legislatures of the Provinces

or States. It was provided that those Acts and Regulations would not be deemed to be

void or ever to have become void on the ground that they were inconsistent with or took

away or abridged any of the rights conferred by any provision of Part III. It further

provided that notwithstanding any judgment, decree or order of any court or Tribunal to

the contrary, all such Acts and Regulations, subject to the power of any competent

Legislature to repeal or amend them, would continue in force.

1397. The attack on the validity of the First Amendment was based primarily on three

grounds. Firstly, that amendments to the Constitution made under Article 368 were liable

to be tested under Article 13(2); secondly, that in any case as Articles 31A and 31B

inserted in the Constitution by the First Amendment affected the powers of the High

Court under Article 226 and of this Court under Articles 132 and 136, the Amendment

required ratification under the proviso to Article 368; and thirdly, that Articles 31A and

31B were invalid on the ground that they related to matters covered by the State List.

This Court rejected all the three contentions. It held that although "law" would ordinarily

include Constitutional law, there was a clear demarcation between ordinary law made in

the exercise of legislative power and Constitutional law made in the exercise of constituent power. In the context of Article 13, "law" must be taken to mean rules or

regulations made in exercise of ordinary legislative power and not amendments to Constitution made in the exercise of constituent power. Article 13(2), as such, was held

not to affect amendments made under Article 368. This Court further held that

Articles

31A and 31B did not curtail the power, of this Court and of the High Court and as such

did not require ratification under the proviso contained in Article 368.

Finally, it was held

that

Articles 31A and 31B were essentially amendments to the Constitution and the

Parliament had the power to make such amendments. In consequence, the First Amendment to the Constitution was held to be valid.

1398. The second case in which there arose the question of the power of the Parliament to

amend fundamental rights was *Sajjan Singh v. State of Rajasthan* [1965] 1 S.C.R. 933. In

this case the Seventeenth Amendment made on June 29, 1964 was challenged. By the Seventeenth Amendment changes were made in Article 31A of the Constitution and 44

Acts were included in the Ninth Schedule to the Constitution to give them complete

protection from attack under any provision of Part III of the Constitution. One of the

contentions advanced in *Sajjan Singh's* case was that, as Article 226 was likely to be

affected by the Seventeenth Amendment, it required ratification under the proviso to

Article 368 and that the decision in *Sankari Prasad's* case (*supra*) which had negated

such a contention required reconsideration. It was also urged that the Seventeenth

Amendment was legislation with respect to land and the Parliament had no right to

legislate in that respect. It was further argued that as the Seventeenth Amendment

provided that Acts put in the Ninth Schedule would be valid in spite of the decision of the

courts, it was unconstitutional. This Court by a majority of 3 to 2 upheld the correctness

of the decision in *Sankari Prasad's* case. This Court further held unanimously that the

Seventeenth Amendment did not require ratification under the proviso to Article 368. The

Parliament, it was held, in enacting the amendment was not legislating with respect to

land and that it was open to Parliament to validate legislation which had been declared

invalid by courts. By a majority of 3 to 2 the Court held that the power conferred by

Article 368 included the power to take away fundamental rights guaranteed by Part III

and that the power to amend was a very wide power which could not be controlled by the

literal dictionary meaning of the word "amend". The word "law" in Article 13(2), it was

held, did not include an amendment of the Constitution made in pursuance of Article 368.

The minority, however, doubted the correctness of the view taken in *Sankari Prasad's*

case to the effect that the word "law" in Article 13(2) did not include amendment to the

Constitution made under Article 368.

1399. The correctness of the decision of this Court in Sankari Prasadâ€™s case and of the majority in Sajjan Singhâ€™s case was questioned in the case of I.C. Golak Nath and Ors. v. State of Punjab and Anr. [1967] 2 S.C.R. 762. The case was heard by a special bench consisting of 11 judges. This Court in that case was concerned with the validity of the Punjab Security of Land Tenures Act, 1953 and of the Mysore Land Reforms Act. These two Acts had been included in the Ninth Schedule to the Constitution by the Constitution (Seventeenth Amendment) Act, 1964. It was held by Subba Rao C.J., Shah, Sikri, Shelat and Vaidialingam JJ. (Hidayatullah J. concurring) that fundamental rights cannot be abridged or taken away by the amending procedure in Article 368 of the Constitution. An amendment of the Constitution, it was observed, is "law" within the meaning of Article 13(2) and is, therefore, subject to Part III of the Constitution. Subba Rao C.J., who gave the judgment on his own behalf as well as on behalf of Shah, Sikri, Shelat and Vaidialingam JJ. gave his conclusions as under:

- (1) The power of the Parliament to amend the Constitution is derived from Articles 245, 246 and 248 of the Constitution and not from Article 368 thereof which only deals with procedure. Amendment is a legislative process.
- (2) Amendment is a "law" within the meaning of Article 13 of the Constitution and, therefore, if it takes away or abridges the rights conferred by Part III thereof, it is void.
- (3) The Constitution (First Amendment) Act, 1951 Constitution (Fourth Amendment) Act, 1955, and the Constitution (Seventeenth Amendment) Act, 1964, abridge the scope of the fundamental rights. But, on the basis of earlier decisions of this Court, they were valid.
- (4) On the application of the doctrine of a "prospective over-ruling", as explained by us earlier, our decision will have only prospective operation and, therefore, the said amendments will continue to be valid.
- (5) We declare that the Parliament will have no power from the date of this decision to amend any of the provisions of Part III of the Constitution so as to take away or abridge the fundamental rights enshrined therein.
- (6) As the Constitution (Seventeenth Amendment) Act holds the field, the validity of the two impugned Acts, namely, the Punjab Security of Land Tenures Act X of 1953, and the Mysore Land-Reforms Act X of 1962, as amended by Act XIV of 1965, cannot be questioned on the ground that they offend Articles 13, 14 or 31 of the Constitution.

Hidayatullah J. summed up his conclusions as under:

- (i) that the Fundamental Rights are outside the amendatory process if the amendment seeks to abridge or take away any of the rights;
- (ii) that Sankari Prasadâ€™s case (and Sajjan Singhâ€™s case which followed it) conceded the power of amendment over Part III of the Constitution on an erroneous view of Articles 13(2) and 368;
- (iii) that the First, Fourth and Seventh Amendments being part of the Constitution by acquiescence for a long time, cannot now be challenged and they contain authority for the Seventeenth Amendment
- (iv) that this Court having now laid down that Fundamental Rights cannot be abridged or taken away by the exercise of amendatory process in Article

368, any further inroad into these rights as they exist today will be illegal and unconstitutional unless it complies with Part III in general and Article 13(2) in particular;

(v) that for abridging or taking away Fundamental Rights, a Constituent body will have to be convoked; and

(vi) that, the two impugned Acts, namely, the Punjab Security of Land Tenures Act, 1953 (X of 1953) and the Mysore Land Reforms Act, 1961 (X of 1962) as amended by Act XIV of 1965 are valid under the Constitution not because they are included in Schedule 9 of the Constitution but because they are protected by Article 31-A, and the President's assent.

As against the view taken by the majority, Wanchoo, Bachawat, Ramaswami, Bhargava

and Mitter, JJ. gave dissenting judgments. According to them, Article 368 carried the

power to amend all parts of the Constitution including the fundamental rights in Part III

of the Constitution. An amendment, according to the five learned Judges, was not "law"

for the purpose of Article 13(2) and could not be tested under that article. The learned

Judges accordingly reaffirmed the correctness of the decision in the cases of Sankari

Prasad and Sajjan Singh. Some of the conclusions arrived at by Wanchoo J., who gave

the judgment on his own behalf as well as on behalf of Bhargava and Mitter JJ. may be

reproduced as under:

(i) The Constitution provides a separate part headed "Amendment of the Constitution" and Article 368 is the only article in that Part. There can therefore, be no doubt that the power to amend the Constitution must be contained in Article 368.

(ii) There is no express limitation on power of amendment in Article 368 and no limitation can or should be implied therein. If the Constitution makers intended certain basic provisions in the Constitution, and Part III in particular, to be not amendable there is no reason why it was not so stated in Article 368.

(iii) The power conferred by the words of Article 368 being unfettered, inconsistency between that power and the provision in Article 13(2) must be avoided. Therefore in keeping with the unfettered power in Article 368 the word "law" in Article 13(2) must be read as meaning law passed under the ordinary legislative power and not a Constitutional amendment.

(iv) Though the period for which Sankari Prasad's case has stood unchallenged is not long, the effects which have followed on the passing of State laws on the faith of that decision, are so overwhelming that the decision should not be disturbed, otherwise chaos will follow. This is the fittest possible case in which the principle of stare decisis should be applied.

(v) The doctrine of prospective overruling cannot be accepted in this country. The doctrine accepted here is that courts declare law and that a declaration made by a court is the law of the land and takes effect from the date the law came into force. It would be undesirable to give up that doctrine and supersede it with the doctrine of prospective overruling.

The main conclusions of Bachawat J. were as under:

(i) Article 368 not only prescribes the procedure but also gives the power of amendment.

(ii) The power to amend the Constitution cannot be said to reside in Article 248 and List I, item 97 because if amendment could be made by ordinary legislative process Article 368 would be meaningless.

(iii) The contention that a Constitutional amendment under Article 368 is a law within the meaning of Article 13 must be rejected.

(iv) There is no conflict between Articles 13(2) and 368. The two articles operate in different fields, the former in the field of law, the latter in that of Constitutional amendment.

(v) If the First, Fourth, Sixteenth & Seventeenth Amendment Acts are void they do not legally exist from their inception. They cannot be valid from 1951 to 1957 and invalid thereafter. To say that they were valid in the past and will be invalid in the future is to amend the Constitution. Such a naked power of amendment is not given to the Judges and therefore the doctrine of prospective overruling cannot be adopted.

We may now set out some of the conclusions of Ramswami J. as under:

(i) In a written Constitution the amendment of the Constitution is a substantive constituent act which is made in the exercise of the sovereign power through a predesigned procedure unconnected with ordinary legislation. The amending power in Article 368 is hence sui generis and cannot be compared to the lawmaking power of Parliament pursuant to Article 246 read with Lists I and III. It follows that the expression "law" in

Article 13(2) cannot be construed as including an amendment of the Constitution which is achieved by Parliament in exercise of its sovereign constituent power, but must mean law made by Parliament in its legislative capacity under Article 246 read with List I and List III of the 7th Schedule.

(ii) The language of Article 368 is perfectly general and empowers Parliament to amend the Constitution without any exception whatsoever.

The use of the word "fundamental" to describe the rights in Part III and the word "guaranteed" in Article 32 cannot lift the fundamental rights above the Constitution itself.

(iii) There is no room for an implication in the construction of Article 368. If the Constitution makers wanted certain basic features to be unamendable they would have said so.

(iv) It cannot be assumed that the Constitution makers intended to forge a political strait-jacket for generations to come. Today at a time when

absolutes are discredited, it must not be too readily assumed that there are basic features of the Constitution which shackle the amending power and which take precedence over the general welfare of the nation and the need for agrarian and social reform.

(v) If the fundamental rights are unamendable and if Article 368 does not include any such power it follows that the amendment of, say Article 31 by insertions of Articles 31A and 31B can only be made by a violent revolution. It is doubtful if the proceedings of a new Constituent Assembly that may be called will have any legal validity for if the Constitution provides its own method of amendment, any other method will be unconstitutional and void.

(vi) It was not necessary to express an opinion on the doctrine of prospective overruling of legislation.

1400. Before dealing with Article 368, we may observe that there are two types of Constitutions, viz., rigid and flexible. It is a frequently held but erroneous impression that

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this is the same as saying non-documentary or documentary. Now, while it is true that a

non-documentary Constitution cannot be other than flexible, it is quite possible for a

documentary Constitution not to be rigid. What, then, is that makes a Constitution

flexible or rigid? The whole ground of difference here is whether the process of Constitutional law-making is or is not identical with the process of ordinary law-making.

The Constitution which can be altered or amended without any special machinery is a

flexible Constitution. The Constitution which requires special procedure for its alteration

or amendment is a rigid Constitution (see p. 66-68 of the Modern Political Constitutions

by C.F. Strong). Lord Birkenhead L.C. adopted similar test in the Australian (Queensland) case of *McCawley v. The King* [1920] A.C. 763 though he used the nomenclature controlled and uncontrolled Constitutions in respect of rigid and flexible

Constitutions. He observed in this connection:

The difference of view, which has been, the subject of careful analysis by writers upon the subject of Constitutional law, may be traced mainly to the spirit and genius of the nation in which a particular Constitution has its birth. Some communities, and notably Great Britain, have not in the framing of Constitutions felt it necessary, or thought it useful, to shackle the complete independence of their successors. They have shrunk from the assumption that a degree of wisdom and foresight has been conceded to their generation which will be, or may be, wanting to their successors, in spite of the fact that those successors will possess more experience of the circumstances and necessities amid which their lives are lived. Those Constitution framers who have adopted the other view must be supposed to have believed that certainty and stability were in such a matter the supreme desiderata. Giving effect to this belief, they have created obstacles of varying difficulty in the path of those who would lay rash hands upon the ark of the Constitution.

1401. Let us now deal with Article 368 of the Constitution. As amendments in Articles

13 and 368 of the Constitution were made in purported exercise of the powers conferred

by Article 368 in the form it existed before the amendment made by the Twentyfourth

Amendment, we shall deal with the article as it was before that amendment. It may be mentioned in this context that Article 4, Article 169, Fifth Schedule Para 7 and Sixth Schedule Para 21 empower the Parliament to pass laws amending the provisions of the First, Fourth, Fifth and Sixth Schedules and making amendments of the Constitution consequential on the formation of new States or alteration of areas, boundaries, or names of existing States, as well as on abolition or creation of legislative councils in States. Fifth Schedule contains provisions as to administration of controlled areas and scheduled tribes while Sixth Schedule contains provisions as to the administration of tribal areas. It is further expressly provided that no such law would be deemed to be an amendment of the Constitution for the purpose of Article 368. There are a number of articles which provide that they would continue to apply till such time as a law is made in variance of them. Some of those articles are: 10, 53(3), 65(3), 73(2), 97, 98(3), 106, 120(2), 135, 137, 142(1), 146(2), 148(3), 149, 171(2), 186, 187(3), 189(3), 194(3), 195, 210(2), 221(2), 225, 229, 239(1), 241(3), 283(1) and (2), 285 (2), 287, 300(1), 313, 345 and 373. 1402. The other provisions of the Constitution can be amended by recourse to Article 368 only.

1403. Article 368 finds its place in Part XX of the Constitution and is the only article in that part. The part is headed "Amendment of the Constitution". It is not disputed that Article 368 provides for the procedure of amending the Constitution. Question, however, arises as to whether Article 368 also contains the power to amend the Constitution. It may be stated in this connection that all the five Judges who gave the dissenting judgment in the case of Golaknath, namely, Wanchoo, Bachawat, Ramaswami, Bhargava and Mitter JJ. expressed the view that Article 368 dealt with not only the procedure of amending the Constitution but also contained the power to amend the Constitution. The argument that the power to amend the Constitution was contained in the residuary power of Parliament in Article 248 read with item 97 of List I was rejected. Hidayatullah J. agreed with the view that amendment to the Constitution is not made under power derived from Article 248 read with entry 97 of List I. According to him, the power of amendment was *sat generis*. As against that, the view taken by Subba Rao C.J., Shah, Sikri, Shelat and Vidyalingam JJ. was that Article 368 merely prescribed the various steps in the matter of amendment of the Constitution and that power to amend the Constitution was derived from Articles 245, 246 and 248 read with item 97 of List I. It was said that the residuary power of Parliament can certainly take in the power to amend the Constitution.

1404. Amendment of the Constitution, according to the provisions of Article 368, is initiated by the introduction of a Bill in either House of Parliament. The Bill has to be passed in each House by a majority of total membership of that House and by a majority of not less than two-thirds members of the House present and voting. After it has been so passed, the Bill is to be presented to the President for his assent. When the President gives his assent to the Bill, the Constitution, according to Article 368, shall stand amended in accordance with the terms of the Bill. There is a proviso added to Article 368 with respect to amendment of certain articles and other provisions of the Constitution including Article 368. Those provisions can be amended only if the Bill passed by the two Houses of Parliament by necessary majority, as mentioned earlier, is ratified by the Legislatures of not less than one-half of the States by resolutions to that effect. In such a case, the Bill has to be presented to the President for his assent only after the necessary

ratification by the State Legislatures. On the assent being given, the Constitution stands amended in accordance with the terms of the Bill.

1405. The words in Article 368 "the Constitution shall stand amended in accordance with the terms of the Bill", in my opinion, clearly indicate that the said article provides not merely the procedure for amending the Constitution but also contains the power to amend Article 368. The fact that a separate Part was provided with the heading "Amendment of the Constitution" shows that the said part was confined not merely to the procedure for making the amendment but also contained the power to make the amendment. It is no doubt true that Article 248 read with item 97 of List I has a wide scope, but in spite of the width of its scope, it cannot, in my opinion, include the power to amend the Constitution.

The power to legislate contained in Articles 245, 246 or 248 is subject to the provisions of the Constitution. If the argument were to be accepted that the power to amend the Constitution is contained in Article 248 read with item No. 97 List I, it would be difficult to make amendment of the Constitution because the amendment would in most of the cases be inconsistent with the article proposed to be amended. The only amendments which would be permissible in such an event would be, ones like those contemplated by Articles 4 and 169 which expressly provide for a law being made for the purpose in variance of specified provisions of the Constitution. Such law has to be passed by ordinary legislative process. Article 368 would thus become more or less a dead letter.

1406. Article 248 read with entry 97 List I contemplates legislative process. If the amendment of the Constitution were such a legislative process, the provision regarding ratification by the legislatures of not less than one-half of the States in respect of certain amendments of the Constitution would be meaningless because there is no question of ratification of a legislation made by Parliament in exercise of the power conferred by Article 248 read with entry 97 List I. It is noteworthy that ratification is by means of resolutions by State Legislatures. The passing of resolution can plainly be not considered to be a legislative process for making a law. The State Governors also do not come into the picture for the purpose of ratification. The State Legislatures in ratifying, it has been said, exercise a constituent function. Ratifying process, according to Orfield, is equivalent to roll call of the States. Ratification by a State of Constitutional amendment is

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not an act of legislation within the proper sense of the word. It is but the expression of the

assent of the States to the proposed amendment (see The Amending of the Federal Constitution p. 62-63).

1407. The fact that the marginal note of Article 368 contained the words "Procedure for

Amendment of the Constitution" would not detract from the above conclusion as the

marginal note cannot control the scope of the article itself. As mentioned earlier, the

words in the article that "the Constitution shall stand amended in accordance with the

terms of the Bill" indicate that the power to amend the Constitution is also contained in

Article 368. The existence of such a power which can clearly be discerned in the scheme

and language of Article 368 cannot be ruled out or denied by invoking the marginal note

of the article.

1408. The various subjects contained in entries in List I, List II and List III of Seventh

Schedule to the Constitution were enumerated and specified at great length. Our Constitution in this respect was not written on a tabula rasa. On the contrary, the scheme

of distribution of legislative lists in the Government of India Act, 1935 was to a great

extent adopted in the Constitution. Referring to the said distribution of lists and the

residuary provisions in the Government of India Act, Gwyer C.J. observed in the case In

re. The Central Provinces and Berar Sales of Motor Spirit and Lubricants Taxation Act,

1938 [1939] F.C.R. 38.

The attempt to avoid a final assignment of residuary powers by an exhaustive enumeration of legislative subjects has made the Indian Constitution Act unique among federal Constitutions in the length and detail of its Legislative Lists.

Our Constitution-makers made list of the legislative entries still more exhaustive and the

intention obviously was that the subjects mentioned should be covered by one or other of

the specific entries, so that as few subjects as possible and which did not readily strike t

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the Constitution-makers should be covered by the residuary entry 97 in List 1. The

Constitution-makers, in my opinion, could not have failed to make an entry in the lists in

the Seventh Schedule for amendment of the Constitution if they had wanted the amendment of Constitution to be dealt with as an ordinary legislative measure under

Articles 245, 246 and 248 of the Constitution. The fact that they provided separate Part in

the Constitution for amendment of the Constitution shows that they realised the importance of the subject of amendment of the Constitution. It is difficult to hold that

despite their awareness of the importance of Constitutional amendment, they left

it to be dealt with under and spelt out of entry 97 List I which merely deals with "any other matter not enumerated in List II or List III including any tax not mentioned in either of those lists.

1409. The residuary entry is essential in a federal Constitution and the sole object of the residuary entry is to confer on the federal legislature or the State Legislatures, as the case may be, the power to make ordinary laws under and in accordance with the Constitution in respect of any matter, not enumerated in any other list for legislation. By the very nature of things the power to amend the Constitution cannot be in the residuary entry in a federal Constitution because the power to amend the Constitution would also include the power to alter the distribution of subjects mentioned in different entries. Such a power can obviously be not a legislative power.

1410. It was originally intended that the residuary power of legislation should be vested in the States. This is clear from the Objective Resolution which was moved by Pt. Nehru in the Constituent Assembly before the partition of the country on December 13, 1946 (see Constituent Assembly debates, Vol. I, p. 59). After the partition, the residuary power of legislation was vested in the Centre and was taken out of the State List. If the intention to vest residuary powers in States had been eventually carried out, no argument could possibly have been advanced that the power to amend the Constitution was possessed by the States and not by the Union. The fact that subsequently the Constituent Assembly vested the residuary power in the Union Parliament subject to ratification by State Legislatures in certain cases, would not go to show that the residuary clause included the power to amend the Constitution.

1411. I am therefore of the view that Article 368 prescribes not only the procedure for the amendment of the Constitution but also confers power of amending the Constitution.

1412. Irrespective of the source of power, the words in Article 368 that "the Constitution shall stand amended" indicate that the process of making amendment prescribed in Article 368 is a self-executing process. The article shows that once the procedure

prescribed in that article has been complied with, the end product is the amendment of the Constitution.

1413. Question then arises as to whether there is any power under Article 368 of amendment of Part III so as to take away or abridge fundamental rights. In this respect

we find that Article 368 contains provisions relating to amendment of the Constitution.

No words are to be found in Article 368 as may indicate that a limitation was intended on

the power of making amendment of Part III with a view to take away or abridge fundamental rights. On the contrary, the words used in Article 368 are that if the

procedure prescribed by that article is complied with, the Constitution shall stand

amended. The words "the Constitution shall stand amended" plainly cover the various

articles of the Constitution, and I find it difficult in the face of those clear and

unambiguous words to exclude from their operation the articles relating to fundamental

rights in Part III of the Constitution. It is an elemental rule of construction that while

dealing with a Constitution every word is to be expounded in its plain, obvious and

commonsense unless the context furnishes some ground to control, qualify or enlarge it

and there cannot be imposed upon the words any recondite meaning or any extraordinary

gloss (see Story on Constitution of the United States, Vol. I, Para 451). It has not yet been

erected into a legal maxim of Constitutional construction that words were meant to

conceal thoughts. If framers of the Constitution had intended that provisions relating to

fundamental rights in Part III be not amended, it is inconceivable that they would not

have inserted a provision to that effect in Article 368 or elsewhere. I cannot persuade

myself to believe that the framers of the Constitution deliberately used words which

cloaked their real intention when it would have been so simple a matter to make the

intention clear beyond any possibility of doubt.

1414. In the case of *The Queen v. Burah* [1878] 3 A.C. 889 at p. 904-5 Lord Selborne

observed:

The established courts of justice, when a question arises whether the prescribed limits have been exceeded, must of necessity determine that question; and the only way in which they can properly do so, is by looking to the terms of the instrument by which, affirmatively, the legislative powers were created, and by which, negatively, they are restricted. If what has been done is legislation, within the general scope of the affirmative words which give the power, and if it violates no express condition or restriction by which that power is limited, ...it is not for any court of justice to inquire further, or to enlarge constructively those conditions or restrictions.

Although the above observations were made in the context of the legislative power, they have equal, if not greater, relevance in the context of the power of amendment of the Constitution.:

1415. It also cannot be said that even though the framers of the Constitution intended that

Part III of the Constitution relating to fundamental rights should not be amended, by inadvertent omission they failed to make an express provision for the purpose. Reference

to the proceedings dated September 17, 1949 of the Constituent Assembly shows that an

amendment to that effect was moved by Dr. P.S. Deshmukh. This amendment which related to insertion of Article 304A after Article 304 (which corresponded to present

Article 368) was in the following words:

Notwithstanding anything contained in this Constitution to the contrary, no amendment which is calculated to infringe or restrict or diminish the scope of any individual rights, any rights of a person or persons with respect to property or otherwise, shall be permissible under this Constitution and any amendment which is or is likely to have such an effect shall be void and ultra vires of any Legislature.

The above amendment, which was subsequently withdrawn, must have been incorporated

in the Constitution if the framers of the Constitution had intended that no amendment of

the Constitution should take away or abridge the fundamental rights in Part III of the

Constitution.

1416. Before the Constitution was framed, Mr. B.N. Rau, Constitutional Adviser, sent a

questionnaire along with a covering letter on March 17, 1947 to the members of the

Central and Provincial Legislatures. Question 27 was to the effect as to what provision

should be made regarding the amendment of the Constitution. The attention of the members of the Central and Provincial Legislatures was invited in this context to the

provisions for amendment in the British, Canadian, Australian, South African, US, Swiss

and Irish Constitutions. Some of those Constitutions placed limitations on the power of

amendment and contained express provisions in respect of those limitations. For instance,

Article 5 of the United States contained a proviso "that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any manner affect the first and fourth clauses in the ninth section of the first article and that no State, without its consent, shall be deprived of its equal suffrage in the Senate". It is inconceivable that, despite the awareness of the fact that in the Constitutions of other countries where restriction was sought to be placed on the power of amendment an express provision to that effect had been inserted, the framers of our Constitution would omit to insert such a provision in Article 368 or in some other article if, in fact, they wanted a limitation to be placed on the power of amendment in respect of articles relating to fundamental right. On the contrary, there is clear indication that the Drafting Committee was conscious of the need of having an express provision regarding limitation on the power of amendment in case such a limitation was desired. This is clear from Article 305 of the Draft Constitution which immediately followed Article 304 corresponding to Article 368 of the Constitution as finally adopted. Article 305 of the Draft Constitution, which was subsequently dropped, was in the following terms: 305. Notwithstanding anything contained in Article 304 of this Constitution, the provisions of this Constitution relating to the reservation of seats for the Muslims, the Scheduled Castes, the Scheduled Tribes or the Indian Christians either in Parliament or in the Legislature of any State for the time being specified in Part I of the First Schedule shall not be amended during a period of ten years from the commencement of this Constitution and shall cease to have effect on the expiration of that period unless continued in operation by an amendment of the Constitution. Article 305 of the Draft Constitution reproduced above makes it manifest that the Drafting Committee made express provision for limitation on the power of, amendment in case such a limitation was desired. The fact that in the Constitution as ultimately adopted, there was no provision either in Article 368 or in any other article containing a limitation on the power of amendment shows that no such limitation was intended. 1417. The speech of Dr. Ambedkar made on September 17, 1949 while dealing with the provision relating to amendment of the Constitution also makes it clear that he divided the various articles of the Constitution into three categories. In one category were placed certain articles which would be open to amendment by Parliament by simple majority. To that category belonged Articles 2 and 3 of the Draft Constitution relating to the creation and reConstitution of the existing States as well as some other articles like those dealing with upper chambers of the State Legislatures. The second category of articles were those

which could be amended by two-thirds majority of members present and voting in each

House of Parliament. The third category dealt with articles which not only required two-thirds majority of each House of Parliament but also the ratification of not less than half

of the Legislatures of the States. There was nothing in the speech of Dr. Ambedkar that

apart from the three categories of articles, there was a fourth category of articles

contained in Part III which was not amendable and as such, could not be the subject of amendment.

1418. It may be mentioned that according to the report of the Constituent Assembly

debates, the speech of Dr. Ambedkar delivered on September 17, 1949 contains the following sentence:

If the future Parliament wishes to amend any particular article which is not mentioned in Part III or Article 304, all that is necessary for them is to have two-thirds majority. (Vol IX. P. 1661)

The words "Part III" in the above sentence plainly have reference to the third category of

articles mentioned in the proviso to draft Article 304 (present Article 368) which required

two-thirds majority and ratification by at least half of the State Legislatures. These words

do not refer to Part III of the Constitution, for if that were so the sentence reproduced

above would appear incongruous in the context of the entire speech and strike a discordant note against the rest of the speech. Indeed, the entire tenor of the above

speech, as also of the other speeches delivered by Dr. Ambedkar in the Constituent

Assembly, was that all the articles of the Constitution were subject to the amendatory process.

1419. Another fact which is worthy of note is that the Constitution (First Amendment)

Act, 1951 was passed by the Provisional Parliament which had also acted as the Constituent Assembly for the drafting of the Constitution. By the First Amendment,

certain fundamental rights contained in Article 19 were abridged and amended. Speeches

in support of the First Amendment were made by Pt. Nehru and Dr. Ambedkar. It was

taken for granted that the Parliament had by adhering to the procedure prescribed in

Article 368 the right to amend the Constitution, including Part III relating to fundamental

rights. Dr. Shyama Prasad Mukherjee who opposed the First Amendment expressly conceded that Parliament had the power to make the aforesaid amendment. If it had ever been the intention of the framers of the Constitution that the provisions relating to fundamental rights contained in Part III of the Constitution could not be amended, it is difficult to believe that Pt. Nehru and Dr. Ambedkar who played such an important role in the drafting of the Constitution would have supported the amendment of the Constitution or in any case would have failed to take note of the fact in their speeches that Part III was not intended to be amended so as to take away or abridge fundamental rights. Pt. Nehru in the course of his speech in support of the First Amendment after referring to the need of making the Constitution adaptable to changing social and economic conditions and changing ideas observed:

It is of the utmost importance that people should realise that this great Constitution of ours, over which we laboured for so long, is not a final and rigid thing, which must either be accepted or broken. A Constitution which is responsive to the people's will which is responsive to their ideas, in that it can be varied here and there, they will respect it all the more and they will not fight against, when we want to change it. Otherwise, if you make them feel that it is unchangeable and cannot be touched, the only thing to be done by those who wish to change it is to try to break it. That is a dangerous thing and a bad thing. Therefore, it is a desirable and a good thing for people to realise that this very fine Constitution that we have fashioned after years of labour is good in so far as it goes but as society changes, as conditions change we amend it in the proper way. It is not like the unalterable law of the Medes and the Persians that it cannot be changed, although the world around may change.

1420. The First Amendment is contemporaneous practical exposition of the power of amendment under Article 368. Although as observed elsewhere, the provisions of Article 368 in my view are plain and unambiguous and contain no restrictions so far as amendment of Part III is concerned, even if it may be assumed that the matter is not free from doubt the First Amendment provides clear evidence of how the provisions of Article 368 were construed and what they were intended and assumed to convey by those who framed the Constitution and how they acted upon the basis of the said intention and assumption soon after the framing of the Constitution. The contemporaneous practical exposition furnishes considerable aid in resolving the said doubt and construing the provisions of the article. It would be pertinent to reproduce in this context the observations of Chief Justice Fuller while speaking for the US Supreme Court in the case of *William McPherson v. Robert R. Blacker* : 146 U.S. 1.

The framers of the Constitution employed words in their natural sense; and where they are plain and clear, resort to collateral aids to interpretation is unnecessary and cannot be indulged in to narrow of

enlarge the text; but where there is ambiguity or doubt, or where two views may well be entertained contemporaneous and subsequent practical construction are entitled to the greatest weight. Certainly, plaintiffs in error cannot reasonably assert that the clause of the Constitution under consideration so plainly sustains their position as to entitle them to object that contemporaneous history and practical construction are not to be allowed their legitimate force, and, conceding that their argument inspires a doubt sufficient to justify resort to the aids of interpretation thus afforded, we are of opinion that such doubt is thereby resolved against them, the contemporaneous practical exposition of the Constitution being too strong and obstinate to be shaken or controlled.

I may also reproduce in this context the following passage from pages 4950 of Willoughby's Constitution of the United States, Vol. I:

In *Lithographic Co. v. Sarony* 111 U.S. 53 the court declared : The construction placed upon the Constitution by the first act of 1790 and the act of 1802 by the men who were contemporary with its formation, many of whom were members of the Convention who framed it, is of itself entitled to very great weight, and when it is remembered that the rights thus established have not been disputed during a period of nearly a century, it is almost conclusive.

1421. So far as the question is concerned as to whether the speeches made in the Constituent Assembly can be taken into consideration, this Court has in three cases,

namely, *I.C. Golak Nath and Ors. v. State of Punjab and Anr.* (supra), *H.H. Maharajadhiraja Madhav Rao Jiawaji Rao Scindia Bahadur and Ors. v. Union of India* [1971] 3 S.C.R. 9 and *Union of India v. H.S. Dhillon* [1972] 2 S.C.R. 33 taken the view

that such speeches can be taken into account. In Golak NathâTMs case Subba Rao C.J. who spoke for the majority referred to the speeches of Pt. Jawaharlal Nehru and Dr. Ambedkar on page 791. Reference was also made to the speech of Dr. Ambedkar by Bachawat J. in that case on page 924. In the case of Madhav Rao, Shah J. who gave the leading majority judgment relied upon the speech of Sardar Patel, who was Minister for Home Affairs, in the Constituent Assembly (see page 83). Reference was also made to the speeches in the Constituent Assembly by Mitter J. on pages 121 and 122. More recently in H.S. DhillonâTMs case relating to the validity of amendment in Wealth Tax Act, both the majority judgment as well as the minority judgment referred to the speeches made in the Constituent Assembly in support of the conclusion arrived at. It can, therefore, be said that this Court has now accepted the view in its decisions since Golak NathâTMs case that speeches made in the Constituent Assembly can be referred to while dealing with the provision of the Constitution.

1422. The speeches in the Constituent Assembly, in my opinion, can be referred to for finding the history of the Constitutional provision and the background against which the said provision was drafted. The speeches can also shed light to show as to what was the mischief which was sought to be remedied and what was the object which was sought to be attained in drafting the provision. The speeches cannot, however, form the basis for construing the provisions of the Constitution. The task of interpreting the provision of the Constitution has to be done independently and the reference to the speeches made in the Constituent Assembly does not absolve the court from performing that task. The draftsmen are supposed to have expressed their intentions in the wordsâTM used by them in the provisions. Those words are final repositories of the intention and it would be ultimately from the words of the provision that the intention of the draftsmen would have to be gathered.

1423. The next question which arises for consideration is whether the word "law" in Article 13(2) includes amendment of the Constitution. According to Article 13(2), the State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void. "State" has been defined in Article 12 to include, unless the context otherwise requires, the Government and Parliament of India and the

Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India. The stand taken on behalf of the petitioners is that amendment of the Constitution constitutes "law" for the purpose of Article 13(2). As such, no amendment of the Constitution can take away or abridge the fundamental rights conferred by Part III of the Constitution. Reference has also been made to Clause (1) of Article 13, according to which all laws in force in the territory of India immediately before the commencement of this Constitution in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void. It is urged that word "law" in Article 13(2) should have the same meaning as that word in Article 13(1) and if law in Article 13(1) includes Constitutional law, the same should be its meaning for the purpose of Article 13(2). Our attention has also been invited to Article 372(1) of the Constitution which provides that notwithstanding the repeal by this Constitution of the enactment referred to in Article 395 but subject to the other provisions of the Constitution, all the law in force in the territory of India immediately before the commencement of this Constitution shall continue in force therein until altered or repealed or amended by a competent Legislature or other competent authority. According to Explanation I to Article 372, the expression "law in force" shall include a law passed or made by a Legislature or other competent authority in the territory of India before the commencement of this Constitution and not previously repealed notwithstanding that it or parts of it may not be then in operation either at all or in particular areas. The same is the definition of "law in force" in Article 13(3).

1424. I find it difficult to accept the contention that an amendment of Constitution made in accordance with Article 368 constitutes law for the purpose of Article 13(2). The word "law" although referred to in a large number of other articles of the Constitution finds no mention in Article 368. According to that article, the Constitution shall stand amended in accordance with the terms of the Bill after it has been passed in compliance with the provisions of that article. Article 368 thus contains an indication that what follows as a result of the compliance with Article 368 is an amendment of the Constitution and not law in the sense of being ordinary legislation. In a generic sense. "law" would include Constitutional laws, including amendment of the Constitution, but that does not seem to

be the connotation of the word "law" as used in Article 13(2) of the Constitution. There is a clear distinction between statutory law made in exercise of the legislative power and Constitutional law which is made in exercise of the constituent power and the distinction should not be lost sight of. A Constitution is the fundamental and basic law and provides the authority under which ordinary law is made. The Constitution of West Germany, it may be stated, is called the basic law of the Federal Republic of Germany. A Constitution derives its authority generally from the people acting in their sovereign capacity and speaking through their representatives in a Constituent Assembly or Convention. It relates to the structure of the government, the extent and distribution of its powers and the modes and principles of its operation, preceding ordinary laws in the point of time and embracing the settled policy of the nation. A statute on the other hand is law made by the representatives of the people acting in their legislative capacity, subject to the superior authority, which is the Constitution. Statutes are enactments or rules for the government of civil conduct or for the administration or for the defence of the government. They relate to law and order, criminal offences, civil disputes, fiscal matters and other subjects on which it may become necessary to have law. Statutes are quite often tentative, occasional, and in the nature of temporary expedients (see Constitutional Law and Its Administration by S.P. Weaver, p. 3), Article 13(2) has reference to ordinary piece of legislation. It would also, in view of the definition given in Clause (a) of Article 13(3), include any ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law. The Constitution has thus made it clear in matters in which there could be some doubt as to what would constitute "law". If it had been the intention of the framers of the Constitution that the "law" in Article 13 would also include Constitutional law including laws relating to the amendment of Constitution, it is not explained as to why they did not expressly so state in Clause (a) of Article 13(3).

The Constitution itself contains indications of the distinction between the Constitution and the laws framed under the Constitution. Article 60 provides for the oath or affirmation to be made and subscribed by the President before entering upon

office. The language in which that oath and affirmation have been couched, though not crucial, has some bearing. The form of the oath or affirmation is as under:
swear in the name of God I, A.B., do

solemnly affirm
that I will faithfully execute the office of President (or discharge the functions of the President) of India and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and well-being of the people of India. The facts that both the words "the Constitution and the law" have been used in the above form tends to show that for the purpose of the Constitution the law and the Constitution are not the same.

1425. It may be mentioned that Articles 56(1)(b) and 61(1) which deal with impeachment of the President refer only to "violation of the Constitution". There is no reference in those articles to violation of law. Article 69 which prescribes the oath for the Vice-President refers to "allegiance to the Constitution as by law established". The words "as by law established" indicate the legal origin of the Constitution. Article 143, to which our attention has been invited, gives power to the President to refer to the Supreme Court a question of law or fact of such importance that it is expedient to obtain the opinion of the

Supreme Court. It is pointed out that question of law in that article would include a question relating to Constitutional law. This no doubt is so but this is due to the fact that words "questions of law or fact" constitute a well known phrase in legal terminology and have acquired a particular significance. From the use of those words in Article 143 it cannot be inferred that the framers of the Constitution did not make a distinction between the Constitution and the law.

1426. Articles 245, 246 and 248 deal with the making of laws. The words "shall not make any law" in Article 13(2) seem to echo the words used in Articles 245, 246 and 248 of the Constitution which deal with the making of laws. The words "make any law" in Article 13 as well as the above three articles should carry, in my opinion, the same meaning, namely, law made in exercise of legislative power. In addition to that, the law in Article 13 in view of the definition in Article 13(3) shall also include special provisions

mentioned in Clause (3).

1427. It has already been mentioned above that there is no question in the case of a law

made by the Parliament of its ratification by the resolutions passed by the State

Legislatures. The fact that in case of some of the amendments made under Article 368

such ratification is necessary shows that an amendment of the Constitution is not law as

contemplated by Article 13(2) or Articles 245, 246 and 248.

1428. Article 395 of the Constitution repealed the Indian Independence Act, 1947 and the

Government of India, Act, 1935, together with all enactments amending or supplementing the latter Act, but not including the Abolition of Privy Council Jurisdiction Act, 1949. The law in force mentioned in Article 372(1) has reference not to

any Constitutional law in the sense of being a law relating to the Constitution of either th

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territory of erstwhile British India or the territory comprised in the Indian States. So far

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the territory of British India was concerned, the law before January 26, 1950 relating to

the Constitution was contained in the Government of India Act, 1935 and the Indian

Independence Act, 1947. Both these Acts were repealed by Article 395 when the Constitution of India came into force. As regards the territory comprised in Indian States,

the law relating to their Constitutions in so far as it was inconsistent with the provisions

of the Constitution of India also came to an end before January 26, 1950 when the said

Constitution came into force. The only Constitution which was in force since that date

was the Constitution of India and it applied to the whole of India, including the erstwhile

Indian States and the British India. The various notifications which were issued before

January 26, 1950 mentioned that with effect from that date "the Constitution of India

shortly to be adopted by the Constituent Assembly of India shall be the Constitution for

the States as for other parts of India and shall be enforced as such" (see White Paper on

Indian States, pages 365 to 371). It would thus appear that hardly any law containing the

Constitutions of territory of erstwhile Indian States remained in force after the coming

into force of the Constitution of India with all its exhaustive provisions. If the law in

force contemplated by Article 372(1) must be such as was continued after January 26,

1950, it would follow that Article 372 does not relate to the Constitutional law in the

sense of being law relating to the Constitution of a territory.

1429. Although the law in force referred to in Article 372(1) would not include law

relating to the Constitutions of the territory of erstwhile British India or the Indian States, it did include law relating to subjects dealt with by the Constitutions in force in those territories. Such a law which partakes of the nature of either a statutory law or an Order made under the organic provisions of those Constitutions, continued in force under Article 372(1). A statutory law or Order is obviously of an inferior character and cannot have the same status as that of a Constitution. Article 372(1) in the very nature of things deals with laws made under the provisions of Constitutions which were in force either in the erstwhile British India or the territory comprised in Indian States. The opening words of Article 372(1) "notwithstanding the repeal by this Constitution of the enactments referred to in Article 395" indicate that the laws in force contemplated by Article 372 are those laws which were framed under the repealed Indian Independence Act, 1947 and the Government of India Act, 1935 or similar other legislative enactments or orders made under the provisions of Constitutions of erstwhile Indian States. Such legislative enactments or Orders were inferior in status to a Constitution. I am, therefore, of the view that the word "law" in Article 372 has reference to law made under a Constitution and not to the provisions of a Constitution itself.

1430. Article 372(1) is similar to the provisions of Section 292 of the Government of India Act, 1935. As observed by Gwyer C.J. in the case of *The United Provinces v. Mst. Atiq Begum and Ors.* [1940] 2 F.C.R. 110 such a provision is usually inserted by draftsmen to negative the possibility of any existing law being held to be no longer in force by reason of the repeal of the law which authorized its enactment. The question with which we are concerned is whether law in Article 13 or Article 372 could relate to the provisions of the Constitution or provisions relating to its amendment. So far as that question is concerned, I am of the opinion that the language of Articles 372 and 13 shows that the word "law" used therein did not relate to such provisions. The Constitution of India was plainly not a law in force at the time when the Constitution came into force. An amendment of the Constitution in the very nature of things can be made only after the Constitution comes into force. As such, a law providing for amendment of the Constitution cannot constitute law in force for the purpose of Article 13(1) or Article

372(1).

1431. The language of Article 13(2) shows that it was not intended to cover amendments of the Constitution made in accordance with Article 368. It is difficult to accede to the contention that even though the framers of the Constitution put no express limitations in Article 368 on the power to make amendment, they curtailed that power by implication under Article 13(2). In order to find the true scope of Article 13(2) in the context of its possible impact on the power of amendment, we should read it not in isolation but along with Article 368. The rule of construction, to use the words of Lord Wright M.R. in *James v. Commonwealth of Australia* [1936] A.C. 578 is to read the actual words used "not in vacuo but as occurring in a single complex instrument in which one part may throw light on another". A combined reading of Article 13(2) and Article 368, in my view, clearly points to the conclusion that extinguishment or abridgement of fundamental rights contained in Part III of the Constitution is not beyond the amendatory power conferred by Article 368. The alleged conflict between Article 13(2) and Article 368 is apparent and not real because the two provisions operate in different fields and deal with different objects.

1432. The Constitution itself treats the subject of ordinary legislation as something distinct and different from that of amendment of the Constitution. Articles 245 to 248 read with Seventh Schedule deal with ordinary legislation, while amendment of Constitution is the subject matter of Article 368 in a separate Part. Article 368 is independent and self-contained. Article 368 does not contain the words "subject to the provisions of this Constitution" as are to be found at the beginning of Article 245. The absence of those words in Article 368 thus shows that an amendment of the Constitution made under that article has a status higher than that of legislative law and the two are of unequal dignity. If there is any limitation on power of amendment, it must be found in Article 368 itself which is the sole fountain-head of power to amend, and not in other provisions dealing with ordinary legislation. As stated on pages 24-26 in the *Amending of Federal Constitution* by Orfield, a limitation on the scope of amendment should be found written in the amending clause and the other articles of the Constitution should not be viewed as limitations. The very fact that the power of amendment is put in a separate Part (Part XX) and has not been put in the Part and Chapter (Part XI Chapter I)

dealing

with legislative powers shows that the two powers are different in character and operate

in separate fields. There is also a vital difference in the procedure for passing ordinary

legislation and that for bringing about a Constitutional amendment under Article 368.

The fact that an amendment Bill is passed by each House of Parliament and those two

Houses also pass ordinary legislation does not obliterate the difference between the

constituent power and the legislative power nor does it warrant the conclusion that

constituent power is a species of legislative power.

1433. Our attention has been invited on behalf of the petitioners to the proceedings of the

Constituent Assembly on April 29, 1947. Sardar Patel on that day made a move in the

Constituent Assembly that Clause (2) be accepted. Clause (2) which provided the basis

for Clauses (1) and (2) of Article 13 as finally adopted was in the following words:

All existing laws, notifications, regulations, customs or usages in force within the territories of the Union inconsistent with the rights guaranteed under this part of the Constitution shall stand abrogated to the extent of such inconsistency, nor shall the Union or any unit make any law taking away or abridging any such right.

Mr. K. Santhanam then moved an amendment for substituting the concluding words of

Clause (2) by the following words:

Nor shall any such right be taken away or abridged except by an amendment of the Constitution.

The above amendment was accepted by Sardar Patel. Motion was thereafter adopted accepting the amended clause which was in the following words:

All existing laws, notifications, regulations, customs or usages in force within the territories of the Union inconsistent with the rights guaranteed under that part of the Constitution shall stand abrogated to the extent of such inconsistency, nor shall any such right be taken away or abridged except by an amendment of the Constitution.

1434. In October 1947 the Constitutional Adviser prepared the Draft Constitution, Subclause (2) of Clause 9 of which was as under:

(2) Nothing in this Constitution shall be taken to empower the State to make any law which curtails or takes away any of the rights conferred by Chapter II of this Part except by way of amendment of this Constitution under Section 232 and any law made in contravention of this sub-section shall, to the extent of the contravention, be void.

Minutes of the Drafting Committee of October 13, 1947 show that it was decided to

revise Clause 9. Revised Clause 9 was put in the appendix as follows:

9. (1) All laws in force immediately before the commencement of this Constitution in the territory of India, in so far as they are inconsistent with any of the provisions of this Part, shall, to the extent of such inconsistency, be void.

(2) The State shall not make law which takes away or abridges the rights conferred by this Part and any law made in contravention of this subsection shall, to the extent of the contravention be void.

(3) In this section, the expression "law" includes any ordinance, order, byelaw, rule, regulation, notification, custom or usage having the force of law in the territory of India or any part thereof.

On February 21, 1948 Dr. Ambedkar forwarded the Draft Constitution of India to the

President of the Constituent Assembly along with a covering letter. Clause 9 in this Draft

Constitution was numbered as Clause 8. Sub-clause (2) of Clause 9 was retained as Subclause (2) of Clause 8. A proviso was also added to that sub-clause, but that is not

material for the purpose of the present discussion. The Constitution was thereafter finally

adopted and it contained Article 13, the provisions of which have been reproduced

earlier.

1434. It has been argued on behalf of the petitioners that the members of the Drafting

Committee who were eminent lawyers of India, deliberately revised Clause 9 of the Draft

Constitution prepared by the Constitutional Adviser with a view to undo the effect of the

amendment moved by Mr. Santhanam which had been accepted by the Constituent Assembly, because the members of the Drafting Committee wanted that the fundamental

rights should not be abridged or taken away by the amendment of the Constitution.

1435. I find it difficult to accept the above argument. It is inconceivable that the members

of the Drafting Committee would reverse the decision which had been taken by the Constituent Assembly when it accepted the amendment moved by Mr. Santhanam and adopted the motion for the passing of clause containing that amendment. It would appear

from the speech of Mr. Santhanam that he had moved the amendment in order to remove

doubt. Although there is nothing in the minutes to show as to why the members of the

Drafting Committee did not specifically incorporate Mr. Santhanam's amendment in the

revised clause, it seems that they did so because they took the view that it was unnecessary. In his letter dated February 21, 1948 Dr. Ambedkar, Chairman of the Drafting Committee wrote to the President of the Constituent Assembly;

In preparing the Draft the Drafting Committee was of course expected to follow the decisions taken by the Constituent Assembly or by the various Committees appointed by the Constituent Assembly. This the Drafting

Committee has endeavoured to do as far as possible. There were however some matters in respect of which the Drafting Committee felt it necessary to suggest certain changes. All such changes have been indicated in the draft by underlining or side-lining the relevant portions. Care has also

been taken by the Drafting Committee to insert a footnote explaining the reason for every such change. It is, therefore, plain that if it had been decided to make a material change in the draft article with a view to depart from the decision of the Constituent Assembly, the change would have been indicated by underlining or sidelining the relevant provision and also by inserting a footnote explaining reasons for the change. In the absence of any underlining, sidelining or footnote, it can be presumed that members of the Drafting Committee did not intend to make a change. A very material fact which should not be lost sight of in this context is the note which was put in October 1948 under the draft Article 8. It was stated in the Note:

Clause (2) of Article 8 does not override the provisions of Article 304 of the Constitution. The expression "law" used in the said clause is intended to mean "ordinary legislation". However, to remove any possible doubt, the following amendment may be made in Article 8:

In the proviso to Clause (2) of Article 8, after the words "nothing in this clause shall" the words "affect the provisions of Article 304 of this Constitution or be inserted." (see page 26 Shiva Rao's "The Framing of India's Constitution" Vol. IV).

The above note and other such notes were made by the Constitutional Adviser and reproduced fully the views of the Drafting Committee and/or of the Special Committee (see page 4 Shiva Rao's "The Framing of India's Constitution" Vol. I). It would thus

appear that there is no indication that the members of the Drafting Committee wanted to deviate from the decision of the Constituent Assembly by making the provisions relating to fundamental rights unamendable. On the contrary, the note shows that they accepted the view embodied in the decision of the Constituent Assembly.

1436. Apart from that I am of the view that if the preservation of the fundamental rights was so vital an important a desideratum, it would seem logical that a proviso would have been added in Article 368 expressly guaranteeing the continued existence of fundamental rights in an unabridged form. This was, however, not done.

1437. The next question which should now engage our attention is about the necessity of amending the Constitution and the reasons which weighed with the framers of the Constitution for making provision for amendment of the Constitution. A Constitution provides the broad outlines of the administration of a country and concerns itself with the problems of the Government. This is so whether the Government originates in a forcible seizure of power or comes into being as the result of a legal transfer of power. At the time of the framing of the Constitution many views including those emanating from conflicting extremes are presented. In most cases the Constitution is the result of a compromise between conflicting views. Those who frame a Constitution cannot be oblivious of the fact that in the working of a Constitution many difficulties would have to be encountered and that it is beyond the wisdom of one generation to hit upon a permanently workable solution for all problems which may be faced by the State in its onward march towards further progress. Sometimes a judicial interpretation may make a Constitution broad-based and put life into the dry bones of a Constitution so as to make it a vehicle of a nation's progress. Occasions may also arise where judicial interpretation might rob some provision of a Constitution of a part of its efficacy as was contemplated by the framers of the Constitution. If no provision were made for the amendment of the Constitution, the people would be left with no remedy or means for adapting it to the changing need of times and would per force have recourse to extra-Constitutional methods of changing the Constitution. The extra-Constitutional methods may sometimes be bloodless but more often they extract a heavy toll of the lives of the citizen and leave a trail of smouldering bitterness. A State without the means of some change, as was said by Burke in his Reflections on Revolution, is without the means of its conservation. Without such means it might even risk the loss of that part of the Constitution which it wished the

most religiously to preserve. According to Dicey, twelve unchangeable Constitutions of France have each lasted on an average for less than ten years, and have frequently perished by violence. Louis Philippe's monarchy was destroyed within seven years of the time when Tocqueville pointed out that no power existed legally capable of altering the articles of the Charter. On one notorious instance at least-and other examples of the same phenomenon might be produced from the annals of revolutionary France-the immutability of the Constitution was the ground or excuse for its violent subversion. To quote the words of Dicey:

Nor ought the perils in which France was involved by the immutability with which the statement of 1848 invested the Constitution to be looked upon as exceptional; they arose from a defect which is inherent in every rigid Constitution. The endeavour to create laws which cannot be changed is an attempt to hamper the exercise of sovereign power; it therefore tends to bring the letter of the law into conflict with the will of the really supreme power in the State. The majority of the French electors were under the Constitution the true sovereign of France; but the rule which prevented the legal re-election of the President in effect brought the law of the land into conflict with the will of the majority of the electors, and produced, therefore, as a rigid Constitution has a natural tendency to produce, an opposition between the letter of the law and the wishes of the sovereign. If the inflexibility of French Constitutions has provoked revolution, the flexibility of English Constitutions has, once at least, saved them from violent overthrow.

The above observations were amplified by Dicey in the following words: To a student, who at this distance of time calmly studies the history of the first Reform Bill, it is apparent, that in 1832 the supreme legislative authority of Parliament enabled the nation to carry through a political revolution under the guise of a legal reform. The rigidity in short, of a Constitution tends to check gradual innovation; but, just because it impedes change, may, under unfavourable circumstances occasion or provoke revolution.

According to Finer, the amending clause is so fundamental to a Constitution that it may be called the Constitution itself (see *The Theory and Practice of Modern Government*, p. 156-157). The amending clause, it has been said, is the most important part of a Constitution. Upon its existence and truthfulness, i.e. its correspondence with real and natural conditions, depends the question as to whether the state shall develop with peaceable continuity or shall suffer alterations of stagnation, retrogression, and revolution. A Constitution, which may be imperfect and erroneous in its other parts, can be easily supplemented and corrected, if only the state be truthfully organized in the Constitution; but if this be not accomplished, error will accumulate until nothing short of revolution can save the life of the state (see *Political Science and Comparative Constitutional Law*, Vol. I by Burgess, p. 137). Burgess further expressed himself in the following words:

It is equally true that development is as much a law of state life as existence. Prohibit the former, and the latter is the existence of the body after the spirit has departed. When, in a democratic political society, the well-matured, long and deliberately formed will of the undoubted majority can be persistently and successfully thwarted, in the amendment of its organic law, by the will of the minority, there is just as much danger to the state from revolution and violence as there is from the caprice of the majority, where the sovereignty of the bare majority is acknowledged. The safeguards against too radical change must not be exaggerated to the point of dethroning the real sovereign. (ibid p. 152)

Justifying the amendment of the Constitution to meet the present conditions, relations and requirements, Burgess said we must not, as Mirabeau finely expressed it, lose the grande morale in the petite morale.

1438. According to John Stuart Mill, no Constitution can expect to be permanent unless it guarantees progress as well as order. Human societies grow and develop with the lapse of time, and unless provision is made for such Constitutional readjustments as their internal development requires, they must stagnate or retrogress (see *Political Science and*

Government by J.W. Garner p. 536, 537).

1439. Willis in his book on the Constitutional Law of the United States has dealt with the

question of amendment of the Constitution in the following words:

Why should change and growth in Constitutional law stop with the present? We have always had change and growth, We have needed change and growth in the past because there have been changes and growth in our economic and social life. There will probably continue to be changes in our economic and social life and there should be changes in our Constitutional law in the future to meet such changes just as much as there was need of change in the past. The Fathers in the Constitutional Convention expected changes in the future : otherwise they would not have provided for amendment. They wanted permanency or our Constitution and there was no other way to obtain it. The people of 1789

had no more sovereign authority than do the people of the present.

1440. Pleading for provision for amendment of a Constitution and at the same time

uttering a note of caution against a too easy method of amendment, Willis wrote:

If no provision for amendment were provided, there would be a constant

danger of revolution. If the method of amendment were made too easy,

there would be the danger of too hasty action all of the time. In either case

there would be a danger of the overthrow of our political institutions.

Hence the purpose of providing for amendment of the Constitution is to

make it possible gradually to change the Constitution in an orderly fashion

as the changes in social conditions make it necessary to change the

fundamental law to correspond with such social change.

1441. We may also recall in this connection the words of Harold Laski in his tribute to

Justice Holmes and the latter's approach to the provision of the US Constitution. Said

Laski:

The American Constitution was not made to compel the twentieth-century

American to move in the swaddling clothes of his ancestors' ideas. The

American Constitution must be moulded by reason to fit new needs and

new necessities.... The law must recognize change and growth even where

the lawyer dislikes their implications. He may be skeptical of their

implications; he has not the right to substitute his own pattern of Utopia

for what they seek to accomplish.

1442. According to Ivor Jennings, flexibility is regarded as a merit and rigidity a defect

because it is impossible for the framers of a Constitution to foresee the conditions in

which it would apply and the problems which will arise. They have not the gift of prophecy. A Constitution has to work not only in the environments it was drafted, but also centuries later (see Some Characteristics of Indian Constitution, p. 14-15). It has

consequently been observed by Jennings:

The real difficulty is that the problems of life and society are infinitely variable. A draftsman thinks of the problems that he can foresee, but he sees through a glass, darkly. He cannot know what problems will arise in ten, twenty, fifty or a hundred years. Any restriction on legislative power may do harm, because the effect of that restriction in new conditions cannot be foreseen.

1443. The machinery of amendment, it has been said, should be like a safety valve, so

devised as neither to operate the machine with too great facility nor to require, in order t

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set it in motion, an accumulation of force sufficient to explode it. In arranging it, due

consideration should be given on the one hand to the requisities of growth and on the

other hand to those of conservatism. The letter of the Constitution must neither be

idolized as a sacred instrument with that mistaken conservatism which ding to its own

worn out garments until the body is ready to perish from cold, nor yet ought it to be made

a plaything of politicians, to be tampered with and degraded to the level of an ordinary

statute (see Political Science and Government by J.W. Garner, p. 538).

1444. The framers of our Constitution were conscious of the desirability of reconciling

the urge for change with the need of continuity. They were not oblivious of the phenomenon writ large in human history that change without continuity can be anarchy;

change with continuity can mean progress; and continuity without change can mean no

progress. The Constitution-makers have, therefore, kept the balance between the danger

of having a non-amendable Constitution and a Constitution which is too easily amendable. It has accordingly been provided that except for some not very vital amendments which can be brought about by simple majority, other amendments can be

secured only if they are passed in each House of Parliament by a majority of the total

membership of that House and by a majority of not less than two-thirds of the members

of each House present and voting. Provision is further made that in respect of certain

matters which affect the interest of the States the amendment must also be ratified by the

legislatures of not less than one half of the States by resolution to that effect. It can,

therefore, be said that while a provision has been made for amendment of the Constitution, the procedure for the bringing about of amendment is not so easy as may

make it a plaything of politicians to be tampered with and degraded to the level

of

ordinary statute. The fact that during the first two decades after the coming into force of the Constitution the amending Bills have been passed without much difficulty with requisite majority is a sheer accident of history and is due to the fact that one party has happened to be in absolute majority at the Centre and many of the States. This circumstance cannot obliterate the fact that in normal circumstances when there are well balanced parties in power and in opposition the method of amending the Constitution is not so easy.

1445. Another circumstance which must not be lost sight of is that no generation has

monopoly of wisdom nor has any generation a right to place fetters on future generations

to mould the machinery of government and the laws according to their requirements.

Although guidelines for the organization and functioning of the future government may

be laid down and although norms may also be prescribed for the legislative activity,

neither the guidelines should be so rigid nor the norms so inflexible and unalterable as

should render them to be incapable of change, alteration and replacement even though the

future generations want to change, alter or replace them. The guidelines and norms would

in such an event be looked upon as fetters and shackles upon the free exercise of the

sovereign will of the people in times to come and would be done away with by methods

other than Constitutional. It would be nothing short of a presumptuous and vain act and a

myopic obsession with its own wisdom for one generation to distrust the wisdom and

good sense of the future generation and to treat them in a way as if the generations to

come would not be *sui juris*. The grant of power of amendment is based upon the assumption that as in other human affairs, so in Constitutions, there are no absolutes and

that the human mind can never reconcile itself to fetters in its quest for a better order of

things. Any fetter resulting from the concept of absolute and ultimate inevitably gives

birth to the urge to revolt. Santayana once said : "Why is there sometimes a right to

revolution? Why is there sometimes a duty to loyalty? Because the whole transcendental

philosophy, if made ultimate, is false, and nothing but a selfish perspective hypostasized,

because the will is absolute neither in the individual nor in the humanity..." (see German

Philosophy and Politics (1915) 645-649 quoted by Frankfurter J. in "Mr. Justice Holmes" 931 Ed. page 117). What is true of transcendal philosophy is equally true in the mundane sphere of a Constitutional provision. An unamendable Constitution, according to Mulford, is the worst tyranny of time, or rather the very tyranny of time. It makes an earthly providence of a convention which was adjourned without day. It places the sceptre over a free people in the hands of dead men, and the only office left to the people is to build thrones out of the stones of their sepulchres (see Political Science and Government by J.W. Garner pages 537, 538).

1446. According to Woodrow Wilson, political liberty is the right of those who are governed to adjust government to their own needs and interest. Woodrow Wilson in this context quoted Burke who had said that every generation sets before itself some favourite object which it pursues as the very substance of liberty and happiness. The ideals of liberty cannot be fixed from generation to generation; only its conception can be, the large image of what it is. Liberty fixed in unalterable law would be no liberty at all. Government is a part of life, and, with life, it must change, alike in its objects and in its practices; only this principle must remain unaltered, this principle of liberty, that there must be the freest right and opportunity of adjustment. Political liberty consists in the best practicable adjustment between the power of the government and the privilege of the individual; and the freedom to alter the adjustment is as important as the adjustment itself for the ease and progress of affairs and the contentment of the citizen (see Constitutional Government in the United States by Woodrow Wilson, p. 4-6).

1447. Each generation, according to Jefferson, should be considered as a distinct nation, with a right by the will of the majority to bind themselves but none to bind the succeeding generations, more than the inhabitant of another country. The earth belongs in usufruct to the living, the dead have neither the power nor the right over it. Jefferson even pleaded for revision or opportunity for revision of Constitution every nineteen years. Said the great American statesman: The idea that institutions established for the use of the nation cannot be touched or modified, even to make them answer their end, because of rights gratuitously supposed in those employed to manage them in the trust for the public, may perhaps be a salutary provision against the abuses of a monarch, but is most absurd against the nation itself. Yet our lawyers and priests generally inculcate this doctrine and suppose that preceding generations held the earth more freely than we do, had a right to impose

laws on us, unalterable by ourselves, and that we, in the like manner, can make laws and impose burdens on future generations, which they will have no right to alter; in fine that the earth belongs to the dead and not the living.

The above words were quoted during the course of the debate in the Constituent Assembly (see Vol. XI Constituent Assembly debates, p. 975)

1448. Thomas Paine gave expression to the same view in the following words: There never did, there never will, and there never can, exist a parliament, or any description of men, or any generation of men, in any country, possessed of the right or the power of binding and controlling posterity to the â™end of timeâ™, or of commanding for ever how the world shall be governed, or who shall govern it; and therefore all such clauses, acts or declarations by which the makers of them attempt to do what they have neither the right nor the power to do, nor take power to execute, are in themselves null and void. Every age and generation must be as free to act for itself in all cases as the ages and generations which preceded it The vanity and presumption of governing beyond the grave is the most ridiculous and insolent of all tyrannies. Man has no property in man; neither has any generation a property in the generations which are to follow.

We may also reproduce the words of Pt. Nehru in His speech to the Constituent Assembly on November 11, 1948:

And remember this that while we want this Constitution to be as solid and as permanent a structure as we can make it, nevertheless there is no permanence in Constitutions. There should be a certain flexibility. If you make anything rigid and permanent you stop a Nationâ™s growth, the growth of living vital organic people. Therefore it has to be flexible.

1449. If it is not permissible under Article 368 to so amend the Constitution as to take

away or abridge the fundamental rights in Part III, as has been argued on behalf of the petitioners, the conclusion would follow that the only way to take away or abridge fundamental rights, even if the overwhelming majority of people, e.g. 90 per cent of them want such an amendment, is by resort to extra-Constitutional methods like revolution. Although, in my opinion, the language of Article 368 is clear and, contains no limitation on the power to make amendment so as to take away or abridge fundamental rights, even if two interpretations were possible, one according to which the abridgement or extinguishment of fundamental rights is permissible in accordance with the procedure prescribed by Article 368 and the other according to which the only way of bringing about such a result is an extra-Constitutional method like revolution, the court, in my opinion, should lean in favour of the first interpretation. It hardly needs much argument to show that between peaceful amendment through means provided by the Constitution and the extra-Constitutional method with all its dangerous potentialities the former method is to be preferred. The contrast between the two methods is so glaring that there can hardly be any difficulty in making our choice between the two alternatives. 1450. The aforesaid discussion would also reveal that the consequences which would follow from the acceptance of the view that there is no power under Article 368 to abridge or take away fundamental rights would be chaotic because of the resort to extraConstitutional methods. As against that the acceptance of the opposite view would not result in such consequences. Judged even in this light, I find it difficult to accede to the contention advanced on behalf of the petitioner. 1451. I may at this stage deal with the question, adverted to by the learned Counsel for the petitioners as to how far the consequences have to be taken into account in construing the provisions of the Constitution. In this connection, I may observe that it is one of the well-settled rules of construction that if the words of a statute are in themselves precise and unambiguous, no more is necessary than to expound those words in their natural and ordinary sense, the words themselves in such case best declaring the intention of the legislature. It is equally well-settled that where alternative constructions are equally open that alternative is to be chosen which will be consistent with the smooth working of the system which the statute purports to be regulating; and that alternative is to be rejected which will introduce uncertainty, friction, or confusion into the working of the

system

(see Collector of Customs, Baroda v. Digvijaysinhji Spinning & Weaving Mills Ltd.

[1962] 1 S.C.R. 896 (on p. 899)). These principles of construction apply with greater

force when we are dealing with the provisions of a Constitution.

1452. I have kept the above principles in view and am of the opinion that as the language

of Article 368 is plain and unambiguous, it is not possible to read therein a limitation on

the power of Parliament to amend the provisions of Part III of the Constitution so as to

abridge or take away fundamental rights; Apart from that, I am of the view that if two

constructions were possible, the construction which I have, accepted would, as mentioned

above, avoid chaotic consequences and would also prevent the introduction of uncertainty, friction or confusion into the working of our Constitution.

1453. It is also, in my opinion, not permissible in the face of the plain language of Article

368

to ascertain by any process akin to speculation the supposed intention of the

Constitution-makers. We must act on the principle that if the words are plain and free

from any ambiguity the Constitution-makers should be taken to have incorporated their

intention in those words.

1454. It seems inconceivable that the framers of the Constitution in spite of the

precedents of the earlier French Constitutions which perished in violence because of their

non-amendability, inserted in the Constitution a Part dealing with fundamental rights

which even by the unanimous vote of the people could not be abridged or taken away and

which left with people no choice except extra-Constitutional methods to achieve that

object. The mechanics of the amendment of the Constitution, including those relating to

extinguishment or abridgement of fundamental rights, in my opinion, are contained in the

Constitution itself and it is not necessary to have recourse to a revolution or other extraConstitutional methods to achieve that object.

1455. Confronted with the situation that if the stand of the petitioners was to be accepted

about the inability of the Parliament to amend Part III of the Constitution except by

means of a revolution or other extra-Constitutional methods, the learned Counsel for the

petitioners has argued that such an amendment is possible by making law for convening a

Constituent Assembly or for holding a referendum. It is urged that there would be an

element of participation of the people in the convening of such a Constituent Assembly

or the holding of a referendum and it is through such means that Part III of the

Constitution can be amended so as to take away or abridge fundamental rights. The above argument, in my opinion, is untenable and fallacious. If Parliament by a two-thirds majority in each House and by following the procedure laid down in Article 368 cannot amend Part III of the Constitution so as to take away or abridge fundamental rights, it is not understood as to how the same Parliament can by law create a body which can make the requisite amendment. If it is not within the power of Parliament to take away or abridge fundamental rights even by a vote of two-thirds majority in each House, would it be permissible for the same Parliament to enact legislation under entry 97 List I of Seventh Schedule by simple majority for creating a Constituent Assembly in order to take away or abridge fundamental rights ? Would not such a Constituent Assembly be a creature of statute made by parliament even though such a body has the high-sounding name of Constituent Assembly ? The nomenclature of the said Assembly cannot conceal its real nature as being one created under a statute made by the Parliament. A body created by the Parliament cannot have powers greater than those vested in the Parliament. It is not possible to accept the contention that what the Parliament itself could not legally do, it could get done through a body created by it. If something is impermissible, it would continue to be so even though two steps are taken instead of one for bringing about the result which is not permitted. Apart from the above if we were to hold that the Parliament was entitled under entry 97 List I to make a law for convening a Constituent Assembly for taking away or abridging fundamental rights, some startling results are bound to follow. A law made under entry 97 List I would need a simple majority in each House of the Parliament for being brought on statute book, while an amendment of the Constitution would require a two-thirds majority of the members of each House present and voting. It would certainly be anomalous that what Parliament could not do by two-thirds majority, it can bring about by simple majority. This apart, there are many articles of the Constitution, for the amendment of which ratification by not less than half of the State Legislatures is required. The provision regarding ratification in such an event would be set at naught. There would be also nothing to prevent Parliament while making a law for convening a Constituent Assembly to exclude effective representation or voice of State

Legislatures in the covening of Constituent Assembly.

1456. The argument that provision should be made for referendum is equally facile. Our

Constitution-makers rejected the method of referendum. In a country where there are

religious and linguistic minorities, it was not considered a proper method of deciding

vital issues. The leaders of the minority communities entertained apprehension regarding

this method. It is obvious that when passions are roused, the opinion of the minority in a

popular referendum is bound to get submerged and lose effectiveness.

1457. It also cannot be said that the method of bringing about amendment through referendum is a more difficult method. It is true that in Australia over 30 amendments

were submitted to referendum, out of which only four were adopted and two of them

were of trivial nature. As against that we find that the method of referendum for

amending the Constitution has hardly provided much difficulty in Switzerland.

Out of 64

amendments proposed for amending the federal Constitution, 49 were adopted in a popular referendum. So far as the method of amendment of the Constitution by

two-third majority in either House of the Central Legislature and the ratification by the State

Legislatures is concerned, we find that during first 140 years since the adoption of the

United States Constitution, 3,113 proposals of amendment were made and out of them,

only 24 so appealed to the Congress as to secure the approval of the Congress and only

19 made sufficient appeal to the State legislatures to secure ratification (see Constitutional Law of United States by Willis, p. 128). It, therefore, cannot be said that

the method of referendum provides a more effective check on the power of amendment

compared to the method of bringing it about by prescribed majority in each house of the

Parliament.

1458. Apart from that I am of the view that it is not permissible to resort to the method of

referendum unless there be a Constitutional provision for such a course in the amendment

provision. In the case of *George S. Hawkes v. Harvey C. Smith* as Secretary of State of

Ohio 64 Lawyers Ed. 871 the US Supreme Court was referred in the context of ratification by the States of the Eighteenth Amendment to the Constitution of the Ohio

State which contained provision for referendum. It was urged that in the case of such a

State ratification should be by the method of referendum. Repelling this contention, the

court held:

Referendum provisions of State Constitutions and statutes cannot be applied in the ratification or objection of amendments to the Federal Constitution without violating the requirement of Article 5 of such

Constitution, that such ratification shall be by the legislatures of the several states, or by conventions therein, as Congress shall decide. The same view was reiterated by the US Supreme Court in *State of Rhode Island v. A.*

Mitchell Palmer Secretary of State and other connected cases better known as *National*

Prohibition Cases 253 S.C.R. 350 64 Lawyers Edition 946.

1459. Argument has been advanced on behalf of the petitioner that there is greater width

of power for an amendment of the Constitution if the amendment is brought about by a

referendum compared to the power of amendment vested in the two Houses of Parliament

or Federal Legislature even though it is required to be passed by a prescribed majority

and has to be ratified by the State Legislatures. In this respect we find that different

Constitutions have devised different methods of bringing about amendment. The main

methods of modern Constitutional amendment are:

(1) by the ordinary legislature, but under certain restrictions;

(2) by the people through a referendum;

(3) by a majority of all the units of a federal state;

(4) by a special convention.

In some cases the system of amendment is a combination of two or more of these methods.

1460. There are three ways in which the legislature may be allowed to amend the Constitution, apart from the case where it may do so in the ordinary course of legislation.

The simplest restriction is that which requires a fixed quorum of members for the

consideration of proposed amendments and a special majority for their passage. The latter

condition operated in the now defunct Constitution of Rumania. According to Article 146

of the Constitution of USSR the Constitution may be amended only by a decision of

Supreme Soviet of USSR adopted by a majority of not less than two-thirds of the votes in

each of its chambers. A second sort of restriction is that which requires a dissolution and

a general election on the particular issue, so that the new legislature, being returned with

a mandate for the proposal, is in essence, a constituent assembly so far as that proposal is

concerned. This additional check is applied in Belgium, Holland, Denmark and Norway

(in all of which, however, also a two-thirds parliamentary majority is required to carry the

amendment after the election) and in Sweden. A third method of Constitutional change

by the legislature is that which requires a majority of the two Houses in joint session, tha

t

is to say, sitting together as one House, as is the case, for example, in South Africa.

1461. The second method is that which demands a popular vote or referendum or plebiscite. This device was employed in France during the Revolution and again

by Louis Napoleon, and in Germany by Hitler. This system prevails in Switzerland, Australia, Eire, May, France (with certain Presidential provisios in the Fifth Republic) and in Denmark.

1462. The third method is peculiar to federations. The voting on the proposed measure may be either popular or by the legislatures of the states concerned. In Switzerland and Australia the referendum is in use; in the United States any proposed amendment requires ratification by the legislatures, or special conventions of three fourth of the several states.

1463. The last method is one in which a special body is created ad hoc for the purpose of Constitutional revision. In some of the states of the United States, for example, this method is in use in connection with the Constitution of the states concerned. Such a method is also allowed if the Federal Congress proposes this method for amendment of the United States Constitutions. This method is prevalent in some of the states in Latin

America also (see Modern Political Constitutions by C.F. Strong, p. 153-154).

1464. The decision as to which method of amending the Constitution should be chosen has necessarily to be that of the Constituent Assembly. This decision is arrived at after taking into account the national requirements, the historical background, conditions prevailing in the country and other factors or circumstances of special significance for the nation. Once a method of amendment has been adopted in a Constitution, that method has to be adhered to for bringing about the amendment. The selection of the method of amendment having been made by the Constituent Assembly it is not for the court to express preference for another method of amendment. Amendment brought about by one method prescribed by the Constitution is as effective as it would have been if the Constitution had prescribed another method of bringing about amendment unless there be something in the Constitution itself which restricts the power of amendment.

Article 138

of the Italian Constitution makes provision for referendum to bring about amendment of the Constitution. It has however, been expressly provided in the article that referendum does not take place if a law has been approved in its second vote by a majority of two-thirds of the members of each chamber. The Italian Constitution thus makes a vote of majority of two-thirds of the members of each chamber at the second voting as effective as a referendum. Article 89 of the Constitution of the French Fifth Republic like-wise makes provision for referendum for amendment of Constitution. It is, however, provided in that article that the proposed amendment is not submitted to a referendum when the President of the Republic decides to submit it to Parliament convened in Congress; in that case the proposed amendment is approved only if it is accepted by three-fifth majority of the votes cast.

1465. We may at this stage advert to Article 5 of the United States Constitution which reads as under:

The Congress, whenever two-thirds of both Houses shall deem it necessary, shall propose amendments to this Constitution, or, on the application of the legislature of two-thirds of the several States, shall call a convention for proposing amendments, which in either case, shall be valid to all intents and purposes, as part of this Constitution when ratified by the legislatures of three fourths of the several States, or by conventions in three fourth thereof, as the one or the other mode of ratification may be proposed by the Congress; Provided that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no State, without its consent, shall be deprived of its equal suffrage in the Senate.

The above article makes it clear that there are two methods of framing and proposing amendments.

(A) Congress may itself, by a two-thirds vote in each house, prepare and propose amendments.

(B) The legislatures of two-thirds of the States may require Congress to summon a Constitutional Convention. Congress shall thereupon do so, having no option to refuse;

and the Convention when called shall draft and submit amendments. No provision is

made as to the election and composition of the Convention, matters which would therefore appear to be left to the discretion of Congress.

1466. There are the following two methods of enacting amendments framed and proposed in either of the foregoing ways. It is left to Congress to prescribe one or other

method as Congress may think fit.

(X) The legislatures of three-fourths of the States may ratify any amendments submitted to them.

(Y) Conventions may be called in the several States, and three-fourths of these conventions may ratify.

1467. Except for Twentyfirst Amendment, on all the occasions on which the

amending

power has been exercised, method A has been employed and method X for ratifying-
i.e.,

no drafting conventions of the whole Union or ratifying conventions in the
several States

have ever been summoned. The consent of the President is not required to a
Constitutional amendment (see American Commonwealth by James Bryce, pp. 365-
366).

1468. There is one provision of the Constitution which cannot be changed by this
process. It is that which secures to each and every State equal representation
in one

branch of the legislature because according to proviso to Article V, no State
without its

consent shall be deprived of its equal suffrage in the Senate.

1469. The question as to whether the width of power of amendment is greater in
case the

amendment is passed by a people's convention compared to the width of the
power if it is

passed by the prescribed majority in the legislatures arose in the case of
United States v.

Sprague 282 U.S. 716 decided by the Supreme Court of the United States. In that
case the

Constitutional validity of the Eighteenth Amendment was assailed on the ground
that it

should have been ratified by the Conventions because it took away the powers of
the

States and conferred new direct powers over individuals. The trial court
rejected all these

views and yet held the Eighteenth Amendment unconstitutional on theories of
"political

science," the "political thought" of the times, and a "scientific approach to
the problem of

government." The United States Supreme Court on appeal upheld the Eighteenth
Amendment. After referring to the provisions of Article 5 Roberts J., who gave
the

opinion of the court, observed:

The choice, therefore, of the mode of ratification, lies in the sole discretion
of Congress. Appellees, however, pointed out that amendments may be of

different kinds, as e.g., mere changes in the character of federal means or machinery, on the one hand, and matters affecting the liberty of the citizen on the other. They say that the framers of the Constitution expected the former sort might be ratified by legislatures, since the States as entities would be wholly competent to agree to such alterations, whereas they intended that the latter must be referred to the people because not only of lack of power in the legislatures to ratify, but also because of doubt as to their truly representing the people.

Repelling the contention on behalf of the appellees, the court observed:

If the framers of the instrument had any thought that amendments differing in purpose should be ratified in different ways, nothing would have been simpler than so to phrase Article 5 as to exclude implication or speculation. The fact that an instrument drawn with such meticulous care and by men who so well understood how to make language fit their thought does not contain any such limiting phrase affecting the exercise of discretion by the Congress in choosing one or the other alternative mode of ratification is persuasive evidence that no qualification was intended. The court referred to the Tenth Amendment which provided that "the powers not delegated to the United States by the Constitution nor prohibited by it to the States, are

reserved to the States respectively or to the people." The argument that the language of

the Tenth Amendment demonstrates that the people reserved to themselves powers over

their personal liberty, that the legislatures were not competent to enlarge the powers of

the Federal Government in that behalf and that the people never delegated to the Congress the unrestricted power of choosing the mode of ratification of a proposed

amendment was described by the Court to be complete non sequitur. The fifth Article, it

was observed, does not purport to delegate any governmental power to the United States,

nor to withhold any from it. On the contrary, that article is a grant of authority by the

people to Congress, and not to the United States. The court further observed:

They (the people) deliberately made the grant of power to Congress in respect to the choice of the mode of ratification of amendments. Unless and until that Article be changed by amendment, Congress must function as the delegated agent of the people in the choice of the method of ratification.

1470. I am, therefore, of the view that there is no warrant for the proposition that as the

amendments under Article 368 are brought about by the prescribed majority of the two

Houses of Parliament and in certain cases are ratified by the State Legislatures and the

amendments are not brought about through referendum or passed in a Convention, the

power of amendment under Article 368 is on that account subject to limitations.

1471. Argument has then been advanced that if power be held to be vested in Parliament

under Article 368 to take away or abridge fundamental rights, the power would be, or in

any case could be, so used as would result in repeal of all provisions containing

fundamental rights. India, it is urged, in such an event would be reduced to a police state

wherein all cherished values like freedom and liberty would be non-existent. This argument, in my opinion, is essentially an argument of fear and distrust in the majority of representatives of the people. It is also based upon the belief that the power under Article 368 by two-thirds of the members present and voting in each House of Parliament would be abused or used extravagantly. I find it difficult to deny to the Parliament the power to amend the Constitution so as to take away or abridge fundamental rights by complying with the procedure of Article 368 because of any such supposed fear or possibility of the abuse of power. I may in this context refer to the observations of Marshall C.J. regarding the possibility of the abuse of power of legislation and of taxation in the case of *The Providence Bank v. Alpheus Billings*. 29 U.S. 514 This vital power may be abused; but the Constitution of the United States was not intended to furnish the corrective for every abuse of power which may be committed by the State governments. The interest, wisdom, and justice of the representative body, and its relations with its constituents furnish the only security where there is no express contract against unjust and excessive taxation, as well as against unwise legislation generally. 1472. That power may be abused furnishes no ground for denial of its existence if government is to be maintained at all, is a proposition, now too well established (see the unanimous opinion of US Supreme Court in *Ex parte John L. Rapier* 15 U.S. 93). Same view was expressed by the Judicial Committee in the case of *Bank of Toronto and Lambe* 12, A.C. 575 while dealing with the provisions of Section 92 of the British North America Act relating to the power of Quebec legislature.

1473. Apart from the fact that the possibility of abuse of power is no ground for the denial of power if it is found to have been legally vested, I find that the power of amendment under Article 368 has been vested not in one individual but in the majority of the representatives of the people in Parliament. For this purpose, the majority has to be of not less than two-thirds of the members present and voting in each House. In addition to that, it is required that the amendment Bill should be passed in each House by a majority of the total membership of that House. It is, therefore, not possible to pass an amendment Bill by a snap vote in a House wherein a small number of members are present to satisfy the requirement of the rule of quorum. The condition about the passing of the Bill by each House, including the Rajya Sabha, by the prescribed majority ensures that it is not permissible to get the Bill passed in a joint sitting of the two Houses (as in the case of ordinary legislation) wherein the members of the Rajya Sabha can be outvoted by the members of the Lok Sabha because of the latter's greater numerical strength. The effective voice of the Rajya Sabha in the passing of the amendment Bill further ensures that unless the prescribed majority of the representatives of the states agree the Bill cannot be passed. The Rajya Sabha under our Constitution is a perpetual body; its members are elected by the members of the State Assemblies and one-third of them retire every two years. We have besides that the provision for the ratification of the amendment by not less than one-half of the State Legislature in case the amendment relates to certain provisions which impinge upon the rights of the States. The fact that a prescribed majority of the people's representatives is required for bringing about the amendment is normally itself a guarantee that the power would not be abused. The best safeguard against the abuse or extravagant use of power is public opinion and not a letter on the right of people's representatives to change the Constitution by following the procedure laid down in the Constitution itself. It would not be a correct approach to start with a distrust in the people's representatives in the Parliament and to assume that they would have an aversion for the liberties of the people and would act against the public interest. To quote the words of Justice Holmes in *Missouri Kansas & Texas Ry. v. May* 194 U.S. 267 (on p. 270). Great Constitutional provisions must be administered with caution. Some

play must be allowed for the joints of the machine and it must be remembered that legislatures are ultimate guardians of the liberties and welfare of the people in quite as great a degree as the courts. 1474. L.B. Orfield has dealt with the question of the abuse of power in his book "The

Amending of Federal Constitution", in the following words on page 123:

â™Abuseâ™ of the amending power is an anomalous term. The proponents of implied limitations resort to the method of reductio ad absurdum in pointing out the abuses which might occur if there were no limitations on the power to amend.... The amending power is a power of an altogether different kind from the ordinary governmental powers. If abuse occurs, it occurs at the hands of a special organization of the nation and of the states representing an extraordinary majority of the people, so that for all practical purposes it may be said to be the people, or at least the highest agent of the people, and one exercising sovereign powers. Thus the people merely take the consequences of their own acts :

It has already been mentioned above that the best safeguard against the abuse of power is

public opinion. Assuming that under the sway of some overwhelming impulse, a climate

is created wherein cherished values like liberty and freedom lose their significance in the

eyes of the people and their representatives and they choose to do away with all fundamental rights by amendment of the Constitution, a restricted interpretation of

Article 368 would not be of much avail. The people in such an event would forfeit the

claim to have fundamental rights and in any case fundamental rights would not in such an

event save the people from political enslavement, social stagnation or mental servitude. I

may in this context refer to the words of Learned Hand in his eloquent address on the

Spirit of Liberty:

I often wonder whether we do not rest our hopes too much upon

Constitutions, upon laws and upon courts. These are false hopes; believe me, these are false hopes. Liberty lies in the hearts of men and women;

when it dies there, no Constitution, no law no court can save it; no

Constitution, no law, no court can even do much to help it. While it lies

there it needs no Constitution, no law, no court to save it. And what is this liberty which must lie in the hearts of men and women? It is not the

ruthless, the unbridled will; it is not freedom to do as one likes. That is the denial of liberty, and leads straight to its overthrow. A society in which

men recognize no check upon their freedom soon becomes a society where freedom is the possession of only a savage few; as we have learned to our sorrow. (see pages 189-190 Spirit of Liberty edited by Irving Dilliard). Similar idea was expressed in another celebrated passage by Learned Hand in the Contribution of an Independent Judiciary to Civilization:

You may ask what then will become of the fundamental principles of equity and fair play which our Constitutions enshrine; and whether I seriously believe that unsupported they will serve merely as counsels of moderation. I do not think that anyone can say what will be left of those principles; I do not know whether they will serve only as counsels; but this much I think I do know that a society so riven that the spirit of moderation is gone, no court can save; that a society where that spirit flourishes, no court need save; that in a society which evades its responsibility by thrusting upon the courts the nurture of that spirit, that spirit in the end will perish. (see p. 164 supra).

1475. It is axiomatic that the involvement of a nation in war by a declaration of war against another country can change the entire course of history of the nation. A wrong

decision in this respect can cause untold suffering, result in national humiliation, take to

ll of thousands of lives and cripple the economy of the nation for decades to come. If the

Government and the Parliament can be entrusted with power of such far reaching magnitude on the assumption that such a power would not be abused but would be exercised reasonably in the national interest, it would seem rather anomalous to have an

approach of distrust in those very organs of the state and to deny to the Parliament the

power of amendment of fundamental rights because of the supposed possibility of the abuse of such power.

1476. There is one other aspect of the matter which may be not lost sight of. Part III deals

with a number of fundamental rights. Assuming that one relating to property, out-of the

many fundamental rights, is found to be an obstacle in pushing forward certain ameliorative measures and it is proposed to abridge that fundamental right and it is also

decided not to abridge or take away any other fundamental right, the present position,

according to the stand taken on behalf of the petitioners, is that there is no power under

Article 368 to abridge the obstructive fundamental right. The result is that even though

reference is made on behalf of the petitioners to those fundamental rights as enshrine

within themselves the valued concept of liberty of person and freedom of expression, the

protection which is, in fact, sought is for the fundamental right to property which causes

obstruction to pushing forward ameliorative measures for national weal. It is not, in my

opinion, a correct approach to assume that if Parliament is held entitled to amend Part III

of the Constitution so as to take away or abridge fundamental rights, it would automatically or necessarily result in the abrogation of all fundamental rights.

I may mention in this context that for seventeen years, from 1950 till 1967 Golak Nath case (supra) was decided, the accepted position was that the Parliament had the power to amend Part III of the Constitution so as to take away or abridge fundamental rights. Despite the possession of that power by the Parliament, no attempt was made by it to take away or abridge fundamental rights relating to cherished values like liberty of person and freedom of expression. If it was not done in the past, why should we assume that the majority of members of the Parliament in future would acquire sudden aversion and dislike for these values and show an anxiety to remove them from the Constitution. There is a vital distinction, in my opinion, between the vesting of a power, the exercise of the power and the manner of its exercise. What we are concerned with is as to whether on the true construction of Article 368, the Parliament has or has not the power to amend the Constitution so as to take away or abridge fundamental rights. So far as this question is concerned, the answer, in my opinion, should be in the affirmative, as long as the basic structure of the Constitution is retained.

1476. In the context of abuse of power of the amendment, reference has been made on behalf of the petitioners to the Constitution of Weimar Republic and it is urged that unless there are restrictions on the power of amendment in so far as fundamental rights are concerned, the danger is that the Indian Constitution may also meet the same fate as did the Weimar Constitution at the hands of Hitler. This argument, in my opinion, is wholly misconceived and is not based upon correct appreciation of historical facts. Following military reversals when Kaiser fled to Holland in 1918 his mutinous subjects proclaimed a republic in Germany. There was thus a break in the continuity of the authority and the Weimar Republic had to face staggering political problems. It had to bear the burden of concluding a humiliating peace. It was later falsely blamed for the

defeat itself by some of the politicians who were themselves responsible for the collapse and capitulation of 1918. The Republic had to wrestle, within a decade and a half, with two economic crises of catastrophic proportions which ruined and made desperate the ordinarily stable elements of society. The chaos with political party divisions in the country was reflected in Reichstag where no party obtained a clear majority. There were 21 cabinets in 14 years. It was in those conditions that Hitler emerged on the scene. He made use of Article 48 of the Weimar Constitution which dealt with emergency powers. Under Article 48 of the Constitution, the President was empowered to issue decrees suspending the rights guaranteed by the basic law and to make direct use of the army and navy should emergency conditions so require. The purpose of the provisions was, of course, to provide the executive with means to act in the event of some grave national emergency where the immediate and concentrated use of the power of the state might become suddenly necessary. But what happened was that almost from its beginning the government found itself in one emergency after another, so that rule by executive decrees issued under the authority provided for by Article 48 supplanted the normal functioning of the legislative branch of government. The increasing division among the political parties, the staggering economic problem and the apparent failure of the parliamentary government to function, were accompanied by the steady growth in power of the National Socialist under Hitler. In less than two years, the Weimar Republic was transformed into a totalitarian dictatorship. The Enabling Act of March 23, 1933, pushed through the Reichstag by a narrow Nazi majority, provided government by decree without regard to Constitutional guarantees. The Act empowered the Government to enact the statutes without the sanction of the Parliament. Hitler made a show of following the Constitution, but the acts of his party in and out of the government in practice violated the basic law. The few limitations imposed upon the government were ignored, and Hitler's Third Reich was launched (see Modern Constitutions by R.F. Moore, p. 86-87 and The Constitutions of Europe by E.A. Goerner, p. 99-100). It would thus appear that it was not by use of the power of amending the Constitution but by acting under the cover of Article 48 of the Constitution dealing with emergency powers that Hitler brought about the Nazi dictatorship. He thus became what has been described as "...the supreme

political leader
of the people, supreme tender and highest superior of the administration,
supreme judge
of the people, supreme commander of the armed forces and the source of all law.
1477. Apart from the fact that the best guarantee against the abuse of power of
amendment is good sense of the majority of the members of Parliament and not the
unamendability of Part III of the Constitution, there is one other aspect of the
matter.
Even if Part III may be left intact, a mockery of the entire parliamentary
system can be
made by amending Articles 85 and 172, which are not in Part III and according to
which
the life of the Lok Sabha and Vidhan Sabhas of the States, unless sooner
dissolved,
would be five years, and by providing that the life of existing Lok Sabha and
Vidhan
Sabhas shall be fifty years. This would be a flagrant abuse of the power of
amendment
and I refuse to believe that public opinion in our country would reach such
abysmal
depths and the standards of political and Constitutional morality would sink so
low that
such an amendment would ever be passed. I need express no opinion for the
purpose of
this case as to whether this Court would also not quash such an amendment In any
case
such an amendment would be an open invitation for and be a precursor of
revolution.
1478. Even without amending any article, the emergency provisions of the
Constitution
contained in Article 358 and 359 can theoretically be used in such a manner as
may make
a farce of the democratic set up by prolonging the rule of the party in power
beyond the
period of five years since the last general election after the party in power
has lost publi
c
support. A Proclamation of Emergency under Article 352 can be issued by the
President
if he is satisfied that a grave emergency exists whereby the security of India
or of any
part of the territory thereof is threatened, whether by war or external
aggression or even
by internal disturbance. Such a Proclamation has to be laid before each House of
Parliament. Resolution approving the Proclamation has thereafter to be passed by
the
Houses of Parliament. According to Article 83, the House of the People, unless
sooner
dissolved, shall continue for five years from the date appointed for its first
meeting and
no longer and the expiration of the said period of five years shall operate as a
dissolution
of the House provided that the said period may, while a Proclamation of
Emergency is in
operation, be extended by Parliament by law for a period not exceeding one year
at a time
and not extending in any case beyond a period of six months after the
Proclamation has
ceased to operate. As the Government and Parliament play a vital part in the
Proclamation and continuation of emergency, the emergency provisions can
theoretically
be used for avoiding the election and continuing a party in power even though it
has lost

popular support by extending the life of House of the People in accordance with Article 83(2). The effective check against such unabashed abuse of power is the sense of political responsibility, the pressure of public opinion and the fear of popular uprising. We need not go into the question as to whether the court would also intervene in such an event. It is, in my opinion, inconceivable that a party would dare to so abuse the powers granted by the emergency provisions. The grant of the above power under Article 83 (2) is necessarily on the assumption that such a power would not be abused.

1479. Argument has then been advanced on behalf of the petitioners that the power of amendment might well be used in such a manner as might result in doing away with the power of amendment under Article 368 or in any case so amending that articles as might make it impossible to amend the Constitution. It is, in my opinion, difficult to think that majority of members of future Parliament would attempt at any time to do away with the power of amendment in spite of the knowledge as to what was the fate of unamendable Constitutions in other countries like France. Assuming that at any time such an amendment to abolish all amendments of Constitution is passed and made a part of the Constitution, it would be nothing short of laying the seeds of a future revolution or other extra-Constitutional methods to do away with unamendable Constitution. It is not necessary for the purpose of this case to go into the question of the Constitutional validity of such an amendment.

1480. We may now deal with the question as to what is the scope of the power of amendment under Article 368. This would depend upon the connotation of the word "amendment". Question has been posed during arguments as to whether the power to amend under the above article includes the power to completely abrogate the Constitution and replace it by an entirely new Constitution. The answer to the above question, in my opinion, should be in the negative. I am further of the opinion that amendment of the Constitution necessarily contemplates that the Constitution has not to be abrogated but only changes have to be made in it. The word "amendment" postulates that the old Constitution survives without loss of its identity despite the change and continues even though it has been subjected to alterations. As a result of the amendment, the old Constitution cannot be destroyed and done away with; it is retained though in the amended form. What then is meant by the retention of the old Constitution? It means the retention of the basic structure or framework of the old Constitution. A mere retention of some provisions of the old Constitution even though the basic structure or

framework of the Constitution has been destroyed would not amount to the retention of the old Constitution. Although it is permissible under the power of amendment to effect changes, "howsoever important, and to adapt the system to the requirements of changing conditions, it is not permissible to touch the foundation or to alter the basic institutional

pattern. The words "amendment of the Constitution" with all their wide sweep and amplitude cannot have the effect of destroying or abrogating the basic structure or

framework of the Constitution. It would not be competent under the garb of amendment,

for instance, to change the democratic government into dictatorship or hereditary

monarchy nor would it be permissible to abolish the Lok Sabha and the Rajya Sabha. The

secular character of the state according to which the state shall not discriminate against

any citizen on the ground of religion only cannot likewise be done away with. Provision

regarding the amendment of the Constitution does not furnish a pretence for subverting

the structure of the Constitution nor can Article 368 be so construed as to embody the

death wish of the Constitution or provide sanction for what may perhaps be called its

lawful harakiri. Such subversion or destruction cannot be described to be amendment of

the Constitution as contemplated by Article 368.

1481. The words "amendment of this Constitution" and "the Constitution shall stand

amended" in Article 368 show that what is amended is the existing Constitution and what

emerges as a result of amendment is not a new and different Constitution but the existing

Constitution though in an amended form. The language of Article 368 thus lends support

to the conclusion that one cannot, while acting under that article, repeal the existing

Constitution and replace it by a new Constitution.

1482. The connotation of the amendment of the Constitution was brought out clearly by

Pt. Nehru in the course of his speech in support of the First Amendment wherein he said

that "a Constitution which is responsive to the people's will, which is responsive to their

ideas, in that it can be varied here and there, they will respect it all the more and they will

not fight against, when we want to change it." It is, therefore, plain that what Pt. Nehru

contemplated by amendment was the varying of the Constitution "here and there" and not

the elimination of its basic structure for that would necessarily result in the Constitution

losing its identity.

1483. Reference to some authorities in the United States so far as the question is concerned as to whether the power to amend under Article 5 of US Constitution would

include within itself the power to alter the basic structure of the Constitution are not

helpful because there has been no amendment of such a character in the United States. No

doubt the Constitution of the United States had in reality, though not in form, changed a

good deal since the beginning of last century; but the change had been effected far less by

formally enacted Constitutional amendments than by the growth of customs or institutions which have modified the working without altering the articles of the

Constitution (see The Law of the Constitution by A.V. Dicey Tenth Ed. p. 129).

1484. It has not been disputed during the course of arguments that the power of amendment under Article 368 does not carry within itself the power to repeal the entire

Constitution and replace it by a new Constitution. If the power of amendment does not

comprehend the doing away of the entire Constitution but postulates retention or continuity of the existing Constitution, though in an amended form, question arises as to

what is the minimum of the existing Constitution which should be left intact in order to

hold that the existing Constitution has been retained in an amended form and not done

away with. In my opinion, the minimum required is that which relates to the basic

structure or framework of the Constitution. If the basic structure is retained, the old

Constitution would be considered to continue even though other provisions have undergone change. On the contrary, if the basic structure is changed, mere retention of

some articles of the existing Constitution would not warrant a conclusion that the existing

Constitution continues and survives.

1485. Although there are some observations in "Limitations of Amendment Procedure

and the Constituent Power" by Conrad to which it is not possible to subscribe, the

following observations, in my opinion, represent the position in a substantially correct

manner:

Any amending body organized within the statutory scheme, howsoever verbally unlimited its power, cannot by its very structure change the fundamental pillars supporting its Constitutional authority.

It has further been observed:

The amending procedure is concerned with the statutory framework of which it forms part itself. It may effect changes in detail, remould the legal expression of underlying principles, adapt the system to the needs of changing conditions, be in the words of Calhoun "the mediatrice of the system", but should not touch its foundations.

A similar idea has been brought out in the, following passage by Carl J. Friedrich page

272 of "Man and His Government" (1963):

A Constitution is a living system. But just as in a living, organic system, such as the human body, various organs develop and decay yet the basic structure or pattern remains the same with each of the organs having its proper function, so also in a Constitutional system the basic institutional pattern remains even though the different component parts may undergo significant alterations. For it is the characteristic of a system that it perishes when one of its essential component parts is destroyed. The United States may retain some kind of Constitutional government, without, say, the Congress or the federal division of powers, but it would not be the Constitutional system now prevailing. This view is uncontested even by many who do not work with the precise concept of a Constitution here insisted upon.

1486. According to "The Construction of Statutes" by Crawford, a law is amended when it is in whole or in part permitted to remain and something is added to or taken from it or in some way changed or altered in order to make it more complete or perfect or effective. It should be noticed, however, that an amendment is not the same as repeal, although it may operate as a repeal to a certain degree. Sutherland in this context states that any change of the scope or effect of an existing statute whether by addition, omission or substitution of provisions which does not wholly terminate its existence whether by an Act purporting to amend, repeal, revise or supplement or by an Act independent and original in form, is treated as amendatory.

1487. It is, no doubt, true that the effect of the above conclusion at which I have arrived is that there would be no provision in the Constitution giving authority for drafting a new and radically different Constitution with different basic structure or framework. This fact, in my opinion, would not show that our Constitution has a lacuna and is not a perfect or a

complete organic instrument, for it is not necessary that a Constitution must contain a provision for its abrogation and replacement by an entirely new and different Constitution. The people in the final analysis are the ultimate sovereign and if they decide to have an entirely new Constitution, they would not need the authority of the existing Constitution for this purpose.

1488. Subject to the retention of the basic structure or framework of the Constitution, I have no doubt that the power of amendment is plenary and would include within itself the power to add, alter or repeal the various articles including those relating to fundamental rights. During the course of years after the Constitution comes into force, difficulties can be experienced in the working of the Constitution. It is to overcome those difficulties that the Constitution is amended. The amendment can take different forms. It may sometimes be necessary to repeal a particular provision of the Constitution without substituting another provision in its place. It may in respect of a different article become necessary to replace it by a new provision. Necessity may also be felt in respect of a third article to add some further clauses in it. The addition of the new clauses can be either after repealing some of the earlier clauses or by adding new clauses without repealing any of the existing clauses. Experience of the working of the Constitution may also make it necessary to insert some new and additional articles in the Constitution. Likewise, experience might reveal the necessity of deleting some existing articles. All these measures, in my opinion, would lie within the ambit of the power of amendment. The denial of such a broad and comprehensive power would introduce a rigidity in the Constitution as might break the Constitution. Such a rigidity is open to serious objection in the same way as an unamendable Constitution.

1489. The word "amendment" in Article 368 must carry the same meaning whether the amendment relates to taking away or abridging fundamental rights in Part III of the Constitution or whether it pertains to some other provision outside Part III of the Constitution. No serious objection is taken to repeal, addition or alteration of provisions of the Constitution other than those in Part III under the power of amendment conferred by Article 368. The same approach, in my opinion, should hold good when we deal with amendment relating to fundamental rights contained in Part III of the Constitution. It would be impermissible to differentiate between scope and width of power of amendment

when it deals with fundamental right and the scope and width of that power when it deals with provisions not concerned with fundamental rights.

1490. We have been referred to the dictionary meaning of the word "amend", according to which to amend is to "free from faults, correct, rectify, reform, make alteration, to repair, to better and surpass". The dictionary meaning of the word "amend" or "amendment", according to which power of amendment should be for purpose of bringing about an improvement, would not, in my opinion, justify a restricted construction to be placed upon those words. The sponsors of every amendment of the Constitution would necessarily take the position that the proposed amendment is to bring about an improvement on the existing Constitution. There is indeed an element of euphemism in every amendment because it proceeds upon the assumption on the part of the proposer that the amendment is an improvement. In the realities and controversies of politics, question of improvement becomes uncertain with the result that in legal parlance the word amendment when used in reference to a Constitution signifies change or alteration. Whether the amendment is, in fact, an improvement or not, in my opinion, is not a justiciable matter, and in judging the validity of an amendment the courts would not go into the question as to whether the amendment has in effect brought about an improvement. It is for the special majority in each House of Parliament to decide as to whether it constitutes an improvement; the courts would not be substituting their own opinion for that of the Parliament in this respect. Whatever may be the personal view of a judge regarding the wisdom behind or the improving quality of an amendment, he would be only concerned with the legality of the amendment and this, in its turn, would depend upon the question as to whether the formalities prescribed in Article 368 have been complied with.

1491. The approach while determining the validity of an amendment of the Constitution, in my opinion, has necessarily to be different from the approach to the question relating to the legality of amendment of pleadings. A Constitution is essentially different from pleading filed in court by litigating parties. Pleadings contain claim and counter-claim of private parties engaged in litigation, while a Constitution provides for the framework of the different organs of the State, viz., the executive, the legislature and the judiciary. A

Constitution also reflects the hopes and aspirations of a people. Besides laying down the norms for the functioning of different organs a Constitution encompasses within itself the broad indications as to how the nation is to march forward in times to come. A Constitution cannot be regarded as a mere legal document to be read as a will or an agreement nor is Constitution like a plaint or a written statement filed in a suit between two litigants. A Constitution must of necessity be the vehicle of the life of a nation. It h

as also to be borne in mind that a Constitution is not a gate but a road. Beneath the drafting of a Constitution is the awareness that things do not stand still but move on, that life of

a progressive nation, as of an individual is not static and stagnant but dynamic and dashful.

A Constitution must therefore contain ample provision for experiment and trial in the task of administration. A Constitution, it needs to be emphasised, is not a document for

fastidious dialectics but the means of ordering the life of a people. It had its roots in th

e past, its continuity is reflected in the present and it is intended for the unknown future.

The words of Holmes while dealing with the US Constitution have equal relevance for

our Constitution. Said the great Judge:

...the provisions of the Constitution are not mathematical formulas having their essence in their form; they are organic living institutions transplanted from English soil. Their significance is vital not formal; it is to be gathered not simply by taking the words and a dictionary, but by considering their origin and the line of their growth. (See *Gompers v. United States* 233 U.S. 604, 610(1914)).

It is necessary to keep in view Marshall's great premises that "it is a Constitution we are expounding". To quote the words of Felix Frankfurter in his tribute to Holmes: Whether the Constitution is treated primarily as a text for interpretation or as an instrument of government may make all the difference in the world. The fate of cases, and thereby of legislation, will turn on whether the meaning of the document is derived from itself or from one's conception of the country, its development, its needs, its place in a civilized society: (See "Mr. Justice Holmes" edited by Felix Frankfurter, p. 58).

The principles which should guide the court in construing a Constitution have been aptly

laid down in the following passage by Kania C.J. in the case of *A.K. Gopalan v. The*

State of Madras (1950) S.C.R. 88 (at p. 119-121):

In respect of the construction of a Constitution Lord Wright in *James v. The Commonwealth of Australia* (1936) A.C. 578 (at 614) observed that "a Constitution most not be construed in any narrow or pedantic sense". Mr. Justice Higgins in *Attorney-General of New South Wales v. Brewery Employees Union* [1908] 6 Com. L.R. 469 (at 611-12) observed :

"Although we are to interpret words of the Constitution on the same principles of interpretation as we apply to any ordinary law, these very

principles of interpretation compel us to take into account the nature and scope of the Act that we are interpreting-to remember that it is a Constitution, a mechanism under which laws are to be made and not a mere Act which declares what the law is to be." In *In re The Central Provinces and Berar Act XIV of 1938* [1939] F.C.R. 18 (at 37), Sir Maurice Gwyer C.J. after adopting these observations said : "Especially is this true of a Federal Constitution with its nice balance of jurisdictions. I conceive that a broad and liberal spirit should inspire those whose duty it is to interpret it; but I do not imply by this that they are free to stretch or pervert to language of the enactment in the interest of any legal or Constitutional theory or even for the purpose of supplying omissions or of correcting supposed errors." There is considerable authority for the statement that the Courts are not at liberty to declare an Act void because in their opinion it is opposed to a spirit supposed to pervade the Constitution but not expressed in words. Where the fundamental law has not limited, either in terms or by necessary implication, the general powers conferred upon the Legislature we cannot declare a limitation under the notion of having discovered something in the spirit of the Constitution which is not even mentioned in the instrument. It is difficult upon any general principles to limit the omnipotence of the sovereign legislative power by judicial interposition, except so far as the express words of a written Constitution give that authority. It is also stated, if the words be

positive and without ambiguity, there is no authority for a Court to vacate or repeal a Statute on that ground alone. But it is only in express Constitutional provisions limiting legislative power and controlling the temporary will of a majority by a permanent and paramount law settled by the deliberate wisdom of the nation that one can find a safe and solid ground for the authority of Courts of justice to declare void any legislative enactment. Any assumption of authority beyond this would be to place in the hands of the judiciary powers too great and too indefinite either for its own security or the protection of private rights.

1492. Reference has been made on behalf of the petitioners to para 7 of the Fifth

Schedule to the Constitution which empowers the Parliament to amend by way of addition, variation or repeal any of the provisions of that Schedule dealing with the

administration and control of scheduled areas and scheduled tribes. Likewise, para 21 of

the Sixth Schedule gives similar power to the Parliament to amend by way of addition,

variation or repeal any of the provisions of the Sixth Schedule relating to the administration of tribal areas. It is urged that while Article 368 contains the word

"amendment" simpliciter, the above two paragraphs confer the power to amend by way of

addition, variation or repeal and thus enlarge the scope of the power of amendment. This

contention, in my opinion, is not well founded. The words "by way of addition, variation

or repeal" merely amplify the meaning of the word "amend" and clarify what was already

implicit in that word. It, however, cannot be said that if the words "by way of addition,

variation or repeal" had not been there, the power of amendment would not have also

included the power to add, vary or repeal. These observations would also hold good in

respect of amended Section 291 of the Government of India Act, 1935 which gave power

to the Governor-General at any time by Order to make such amendments as he considered necessary whether by way of addition, modification or repeal, in the provisions of that Act or of any Order made thereunder in relation to any Provincial

Legislature with respect to the matters specified in that section. A clarification by way of

abundant caution would not go to show that in the absence of the clarification, the power

which inheres and is implicit would be nonexistent. Apart from that, I am of the view that

sub-paragraph (2) of paragraph 7 of the Fifth Schedule indicates that the word "amendment" has been used in the sense so as to cover amendment by way of addition,

variation or repeal. According to that paragraph, no law mentioned in sub-paragraph (1)

shall be deemed to be an amendment of the Constitution for purpose of Article 368. As

sub-paragraph (1) deals with amendment by way of addition, variation or repeal, the

amendment of Constitution for purpose of Article 368 referred to in sub-paragraph (2)

should be construed to be co-extensive and comprehensive enough to embrace within itself amendment by way of addition, variation or repeal. The same reasoning would also apply to sub-paragraph (2) of paragraph 21 of the Sixth Schedule. 1493. The Judicial Committee in the case of *British Coal Corporation v. The King* [1935]

A.C. 500 laid down the following rule:

In interpreting a constituent or organic statute such as the Act, that construction most beneficial to the widest possible amplitude of its powers must be adopted.

The Judicial Committee also quoted with approval the following passage from *Clement*'s

Canadian Constitution relating to provision of British North America Act:

But these are statutes and statutes, and the strict construction deemed proper in the case, for example of a penal or taxing statute, or one passed to regulate the affairs of an English parish, would be often subversive of Parliament's real intent if applied to an Act passed to ensure the peace, order and good government....

Orfield, while dealing with the amendment of the Constitution has observed that the amendment of a Constitution should always be construed more liberally. To quote from

his book "The Amending of the Federal Constitution:

Is there a restriction that an amendment cannot add but only alter? An argument very much like the foregoing is that an amendment may alter but may not add. This contention is largely a quibble on the definition of the word "amendment". It is asserted that by amending the Constitution is meant the changing of something that is already in the Constitution, and not the addition of something new and unrelated. Cases prescribing the very limited meaning of amendments in the law of pleading are cited as authoritative. It would seem improper however, to accept such a definition, as amendments to Constitutions have always been construed more liberally and on altogether different principles from those Applied to

amendments of pleadings.

1494. It may also be mentioned that Article 5 of the US Constitution confers powers of amendment. The word used in that article is amendment simpliciter and not amendment by way of addition, alteration or repeal. In pursuance of the power conferred by Article 5, Article 18 was added to the American Constitution by the Eighteenth Amendment. Subsequently that article (Article 18) was repealed by the Twenty-first Amendment.

Section 1 of Article 21 was in the following words:

The Eighteenth article of amendment to the Constitution of the United States is hereby repealed.

The addition of the eighteenth article, though challenged, was upheld by the Supreme Court. No one has questioned the repeal of the eighteenth article on the ground that the power of amendment would not include the power to repeal.

1495. I cannot subscribe to the view that an amendment of the Constitution must keep alive the provision sought to be amended and that it must be consistent with that provision. Amendment of Constitution has a wide and broad connotation and would embrace within itself the total repeal of some articles or their substitution by new article

s which may not be consistent with or in conformity with earlier articles. Amendment in

Article 368 has been used to denote change. This is clear from the opening words of the proviso to Article 368 according to which ratification by not less than half of State Legislatures would be necessary if amendment seeks to make a change in the provisions of the Constitution mentioned in the proviso. The word change has a wide amplitude and would necessarily cover cases of repeal and replacement of earlier provisions by new provisions of different nature. Change can be for the better as well as for the worse.

Every amendment would always appear to be a change for the worse in the eyes of those

who oppose the amendment. As against that, those who sponsor an amendment would take the stand that it is a change for the better. The court in judging the validity of an amendment would not enter into the arena of this controversy but would concern itself

with the question as to whether the Constitutional requirements for making the amendment have been satisfied. An amendment of the Constitution in compliance with

the procedure prescribed by Article 368 cannot be struck down by the court on the ground that it is a change for the worse. If the court were to strike down the amendment

on that ground, it would be tantamount to the court substituting its own opinion for that of the Parliament, reinforced in certain cases by that of not less than half of State

Legislatures, regarding the wisdom of making the impugned Constitutional amendment.

Such a course, which has the effect of empowering the court to sit in appeal over the

wisdom of the Parliament in making Constitutional amendment, on the supposed assumption that the court has superior wisdom and better capacity to decide as to what is

for the good of the nation is not permissible. It would, indeed, be an unwarranted

incursion into a domain which essentially belongs to the representatives of the people in

the two Houses of Parliament, subject to ratification in certain cases by the State

Legislatures. We may in this context recall the words of Holmes J. in *Lochner v. New*

York (1904) 198 U.S. 45.

This case is decided upon an economic theory which a large part of the country does not entertain. If it were a question whether I agreed with that theory, I should desire to study it further and long before making up my mind. But I do not conceive that to be my duty, because I strongly believe that my agreement or disagreement has nothing to do with the right of a majority to embody their opinions in law.

The above observations were contained in the dissent of Holmes J. The above dissent has

subsequently been accepted by the US Supreme Court to lay down the correct law (see

Ferguson v. Skrupa (1963) 372 U.S. 726 wherein it has been observed by the court:

In the face of our abandonment of the use of the â™vague contoursâ™ of the Due Process Clause to nullify laws which a majority of the Court believed to be economically unwise, reliance on *Adams v. Tanner* is as mistaken as would be adherence to *Adkins v. Childrenâ™s Hospital*, overruled by *West Coast Hotel Co. v. Parrish* AIR 1330 (1937).... We refuse to sit as a â™superlegislature to weigh the wisdom of legislationâ™, and we emphatically refuse to go back to the time when courts used the Due Process Clause to strike down state laws, regulatory of business and industrial conditions, because they may be unwise, improvident, or out of harmony with a particular school of thoughtâ™.

1496. It has also been urged on behalf of the petitioners that the framers of the

Constitution could not have intended that even though for the amendment of articles

referred to in the proviso to Article 368, ratification of not less than one half of the Sta

te
Legislatures would be necessary, in the case of an amendment which deals with such a vital matter as the taking away or abridgement of fundamental rights, the amendment could be brought about without such a ratification. This argument, in my opinion, is untenable. The underlying fallacy of this argument is that it assumes that ratification by the State Legislatures is necessary under the proviso in respect of Constitutional amendments of great importance, while no such ratification is necessary in the case of comparatively less important amendments. Plain reading of Article 368, however, shows that ratification by the State Legislatures has been made imperative in the case of those Constitutional amendments which relate to or affect the rights of the States. In other cases no such ratification is necessary. The scheme of Article 368 is not to divide the articles of the Constitution into two categories, viz., important and not so important articles. What Article 368 contemplates is that the amending power contained in it should cover all the articles, leaving aside those provisions which can be amended by Parliament by bare majority. In the case, however, of such of the articles as relate to the federal principle or the relations of the States with the Union, the framers of the Constitution put them in the proviso and made it imperative to obtain ratification by not less than half of the State Legislatures in addition to the two-thirds majority of the members present and voting in each House of the Parliament for bringing about the amendment. It is plain that for the purpose of ratification by the State Legislatures, the framers of the Constitution attached greater importance to the federal structure than to the individual rights. Such an approach is generally adopted in the case of a provision for amendment of the federal Constitution.

K.C. Wheare in his book on the Federal Government has observed on page 55: It is essential in a federal government that if there be a power of amending the Constitution, that power, so far at least as concerns those provisions of the Constitution which regulate the status and power of the general and regional governments, should not be confided exclusively either to the general governments or to the regional governments. We may in this context refer to the speech of Dr. Ambedkar who while dealing with the category of articles for the amendment of which ratification by the States was required, observed:

Now, we have no doubt put certain articles in a third category where for the purposes of amendment the mechanism is somewhat different or

double. It requires two-thirds majority plus ratification by the States. I shall explain why we think that in the case of certain articles it is desirable to adopt this procedure. If Members of the House who are interested in this matter are to examine the articles that have been put under the proviso, they will find that they refer not merely to the Centre but to the relations between the Centre and the Provinces. We cannot forget the fact that while we have in a large number of cases invaded provincial autonomy, we still intend and have as a matter of fact seen to it that the federal structure of the Constitution remains fundamentally unaltered. We have by our laws given certain rights to provinces, and reserved certain rights to the Centre. We have distributed legislative authority; we have distributed executive authority and we have distributed administrative authority. Obviously to say that even those articles of the Constitution which pertain to the administrative, legislative, financial and other powers, such as the executive powers of the provinces should be made liable to alteration by the Central Parliament by two-thirds majority, without permitting the provinces or States to have any voice, is in my judgment altogether nullifying the fundamentals of the Constitution.

1497. learned Counsel for the petitioners has addressed us at some length on the point that even if there are no express limitations on the power of amendment, the same is subject to implied limitations, also described as inherent limitations. So far as the concept of implied limitations is concerned, it has two facets. Under the first facet, they are limitations which flow by necessary implication from express provisions of the Constitution. The second facet postulates limitations which must be read in the Constitution irrespective of the fact whether they flow from express provisions or not because they are stated to be based upon certain higher values which are very dear to the human heart and are generally considered essential traits of civilized existence. It is also

stated that those higher values constitute the spirit and provide the scheme of the Constitution. This aspect of implied limitations is linked with the existence of natural rights and it is stated that such rights being of paramount character, no amendment of Constitution can result in their erosion.

1498. I may at this stage clarify that there are certain limitations which inhere and are implicit in the word "amendment". These are limitations which flow from the use of the word "amendment" and relate to the meaning or construction of the word "amendment"

This aspect has been dealt with elsewhere while construing the word "amendment". Subject to this clarification, we may now advert to the two facets of the concept of implied limitations referred to above.

1499. So far as the first facet is concerned regarding a limitation which flows by necessary implication from an express provision of the Constitution, the concept derives its force and is founded upon a principle of interpretation of statutes. In the absence of any compelling reason, it may be said that a Constitutional provision is not exempt from the operation of such a principle. I have applied this principle to Article 368 and despite that, I have not been able to discern in the language of that article or other relevant articles any implied limitation on the power to make amendment contained in the said article.

1500. We may now deal with the second aspect of the question which pertains to limitation on the power of making amendment because such a limitation, though not flowing from an express provision, is stated to be based upon higher values which are very dear to the human heart and are considered essential traits of civilized existence. So far as this aspect is concerned, one obvious objection which must strike every one is that the Constitution of India is one of the lengthiest Constitutions, if not the lengthiest, of the world. The framers of the Constitution dealt with different Constitutional matters at considerable length and made detailed and exhaustive provisions about them. Is it then conceivable that after having dealt with the matter so exhaustively and at such great length in express words, they would leave things in the realm of implication in respect of such an important article as that relating to the amendment of the Constitution. If it was intended that limitations should be read on the power of making amendment, question would necessarily arise as to why the framers of the Constitution refrained from expressly incorporating such limitations on the power of amendment in the

Constitution

itself. The theory of implied limitations on the power of making amendment may have some fascination and attraction for political theorists, but a deeper reflection would reveal

that such a theory is based upon a doctrinaire approach and not what is so essential for the purpose of construing and working a Constitution, viz., a pragmatic and practical approach. This circumstance perhaps accounts for the fact that the above theory of

implied limitations has not been accepted by the highest court in any country. 1501 As the concept of implied limitations on the power of amendment under the second

aspect is not based upon some express provision of the Constitution, it must be regarded as essentially nebulous. The concept has no definite contours and its acceptance would

necessarily introduce elements of uncertainty and vagueness in a matter of so vital an importance as that pertaining to the amendment of the Constitution. Whatever might be

the justification for invoking the concept of implied limitations in a short Constitution, s

o far as the Constitution of India with all its detailed provisions is concerned, there is

hardly any scope or justification for invoking the above concept. What was intended by

the framers of the Constitution was put in express words and, in the absence of any words

which may expressly or by necessary implication point to the existence of limitations on

the power of amendment, it is, in my opinion, not permissible to read such limitations in

the Constitution and place them on the power of amendment. I find it difficult to accede

to the submission that the framers of the Constitution after having made such detailed

provisions for different subjects left something to be decided by implication, that in

addition to what was said there were things which were not said but which were intended

to be as effective as things said. The quest for things not said, but which were to be as

effective as things said, would take us to the realm of speculation and theorising and must

bring in its wake the uncertainty which inevitably is there in all such speculation and

theorising. All the efforts of the framers of the Constitution to make its provisions to be

definite and precise would thus be undone. We shall be in doing so, not merely ignoring

but setting at naught what must be regarded as a cardinal principle that a Constitution is

not a subject of fastidious and abstract dialectics but has to be worked on a practical plan

e so that it may become a real and effective vehicle of the nation's progress. As observed

by Story in para 451 of the Constitution of the United States, Volume I
Constitutions are
not designed for metaphysical or logical subtleties, for niceties of expression,
for critica

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propriety, for elaborate shades of meaning, or for the exercise of philosophical
acuteness,
or judicial research. They are instruments of practical nature, founded on the
common

business of human life, adapted to common wants, designed for common use, and
fitted

for common understandings.

1502. In the National Prohibition Cases (supra) the petitioners challenged
before the US

Supreme Court the validity of the Eighteenth Amendment relating to prohibition.
It was

urged that the aforesaid amendment had resulted in encroachment upon the police
power

of the States. There was implied limitation on the power to make such an
amendment,

according to the petitioners in those cases under Article 5 of the US
Constitution.

Although the Supreme (Joint gave no reasons in support of its conclusion, it
upheld the

validity of the Eighteenth Amendment. Argument about the implied limitations on
the

power of amendment was thus tacitly rejected.

1503. Eminent authors like Rottschaefer and Willis have taken the view that the
theory of

implied limitations should be taken to have been rejected in the National
Prohibition

Cases (supra) by the US Supreme Court. Rottschaefer in Handbook of American
Constitutional Law has observed on pages 8 to 10:

The only assumption on which the exercise of the amending power would
be inadequate to accomplish those results would be the existence of
express or implied limits on the subject matter of amendments. It has been
several times contended that the power of amending the federal

Constitution was thus limited, but the Supreme Court has thus far rejected
every such claim, although at least one state court has subjected the power
of amending the state Constitution to an implied limit in this respect. The
former position is clearly the more reasonable, since the latter implies that
the ultimately sovereign people have inferentially deprived themselves of
that portion of their sovereign power, once possessed by them, of
determining the content of their own fundamental law.

1504. Question of implied limitation on the powers to make amendment also arose
the

case of *Jeremish Ryan and Ors. v. Captain Michael Lennon* [1935] Irish Reports p.
170

Article 50 of the Constitution of the Irish Free State which came into force on
December

6, 1922, as originally enacted, provided as follows:

Amendments of this Constitution within the terms of the Scheduled Treaty
may be made by the Oireachtas, but no such amendment, passed by both
Houses of the Oireachtas, after the expiration of a period of eight years
from the date of the coming into operation of this Constitution, shall
become law, unless the same shall, after it has been passed or deemed to
have been passed by the said two Houses of the Oireachtas, have been
submitted to a Referendum of the people, and unless a majority of the

votes on the register shall have recorded their votes on such Referendum, and either the votes of a majority of the voters in the register, or two-thirds of the votes recorded, shall have been cast in favour of such amendment. Any such amendment may be made within the said period of eight years by way of ordinary legislation and as such shall be subject to the provisions of Article 47 hereof.

1505. By the Constitution (Amendment No. 10) Act, 1928, passed within the said period of eight years, the Constitution was amended by, inter alia, the deletion of Article 47 (dealing with referendum) and the deletion from Article 50 of the words "and as such shall be subject to the provisions of Article 47 thereof". By the Constitution (Amendment No. 15) Act, 1929, also passed within the said period of eight years, Article 50 was amended by the substitution of the words "sixteen years" for the words "eight years" therein. By the Constitution (Amendment No. 17) Act, 1931 the Constitution was amended by inserting therein a provision relating to the establishment of a Tribunal consisting of officers of Defence Forces to try a number of offences. Power of detention on suspicion in certain cases was also conferred. It was in the context of the validity of the establishment of such Tribunals that the question arose as to whether there was an implied limitation on the power to make amendment. It was held by the Supreme Court (FitzGibbon and Murnaghan JJ. and Kennedy C.J. dissenting), while dealing with the first two amendments, that these enactments were within the power of amendment conferred on the Oireachtas by Article 50 and were valid amendments of the Constitution; and that, consequently, an amendment of the Constitution; enacted after the expiry of the original period of eight years was not invalid by reason of not having been submitted to a referendum of the people under Article 50 or Article 47 as originally enacted. Dealing

with the Constitution (Amendment No. 17) Act, 1931 it was held by the same majority that it was a valid amendment and was not ultra vires by reason of involving a partial repeal of the Constitution or by reason of conflicting with specific articles of the Constitution such as Article 6 relating to the liberty of the person, Article 64 relating to the exercise of judicial power or Article 72 relating to the trial by jury or by reason of infringing or abrogating other articles of the Constitution or principles underlying the various articles of the Constitution which were claimed to be fundamental and immutable. Kennedy C.J., after referring to the different articles of the Constitution, held that there was not, either expressly or by necessary implication, any power to amend the power of amendment itself. He observed in this connection: No doubt the Constituent Assembly could, if it had so intended, have given a power of amendment of the power to amend the Constitution, but in that case it would seem far more likely that it would rather have conferred on the Oireachtas a general open and free power of amendment of the Constitution, unlimited in scope and without limiting and restraining requirements for its exercise, than have done the same thing indirectly by giving a strictly limited power with power to remove the limitations. The Constituent Assembly clearly, to my mind, did not so intend. In my opinion on the true interpretation of the power before us, upon a consideration of the express prohibition, limitations and requirements of the clause containing it, the absence of any express authority, the donation of the effective act in the exercise of the power to the people as a whole, the relevant surrounding circumstances to which I have already referred, and the documents and their tenor in their entirety, there is not here, either expressly or by necessary implication, any power to amend the power of amendment itself. FitzGibbon J. dealt with this question in these words: Unless, therefore, these rights appear plainly from the express provisions of our Constitution to be inalienable, and incapable of being modified or taken away by any legislative act, I cannot accede to the argument that the Oireachtas cannot alter, modify, or repeal them. The framers of our Constitution may have intended to bind man down from mischief by the chains of the Constitution, but if they did, they defeated their object by handing him the key of the padlock in Article 50. Murnagham J. observed: The terms in which Article 50 is framed does authorise the amendment made and there is not in the Article any express limitation which excludes Article 50 itself from the power of amendment. I cannot, therefore, find any ground upon which the suggested limitation can be properly based. 1506. The theory of implied limitations on the power of amendment was thus rejected by the majority of the Judges of the Irish Supreme Court. It would further appear that the crucial question which arose for determination in that case was whether there was any power to amend the article relating to amendment of the Constitution or whether there was any restriction in this respect. No such question arises under our Constitution because there is an express provision in Clause (e) of the proviso to Article

permitting such amendment. Apart from that I find that in the case of *Moore and Ors. v.* The Attorney-General for the Irish Free State and Ors. [1935] A.C. 484 the counsel for the appellant did not challenge the Constitutional validity of the 1929 Amendment. The counsel conceded that the said Amendment was regular and that the validity of the subsequent amendments could not be attacked on the ground that they had not been submitted to the people in a referendum. Dealing with the above concession, the Judicial Committee observed that the counsel had rightly conceded that point. The Judicial Committee thus expressed its concurrence with the conclusion of the majority of the Irish Supreme Court relating to the Constitutional validity of the Amendment Act of 1929.

1507. A.B. Keith has also supported the view of the majority and has observed that the view of the Chief Justice in this respect was wrong (see *Letters on Imperial Relations Indian Reform Constitutional & International Law 1916-1935*, p. 157). Keith observed in this connection:

But that the Chief Justice was wrong on this head can hardly be denied. Article 50 of the Constitution, which gave the power for eight years to effect changes by simple Act, did not prevent alteration of that Article itself, and, when the Constitution was enacted, it was part of the Constitutional law of the Empire that a power of change granted by a

Constitution applies to authorize change of the power itself, unless it is safeguarded, as it normally is, by forbidding change of the section giving the power. The omission of this precaution in the Free State Constitution must have been intentional, and therefore, it was natural that the Dail, at Mr. Consgrave's suggestion, and with the full approval of Mr. de Valera, then in opposition should extend the period for change without a referendum.

1508. Dealing with the doctrine of implied limitations on the power of amendment,

Orfield observes:

Today at a time when absolutes are discredited, it must not be too readily assumed that there are fundamental purposes in the Constitution which shackle the amending power and which take precedence over the general welfare and needs of the people of today and of the future. (see *The Amending of the Federal Constitution* (1942), p. 107).

If has been further observed:

An argument of tremendous practical importance is the fact that it would be exceedingly dangerous to lay down any limitations beyond those expressed. The critics of an unlimited power to amend have too often neglected to give due consideration to the fact that alteration of the federal Constitution is not by a simple majority or by a somewhat preponderate majority, but by a three-fourths majority of all the states. Undoubtedly, where a simple majority is required, it is not an especially serious matter for the court to supervise closely the amending process both as to procedure and as to substance. But when so large a majority as threefourths has finally expressed its will in the highest possible form outside of revolution, it becomes perilous for the judiciary to intervene." (see *ibid.* p. 120).

Orfield in this context quoted the following passage from a judicial decision: Impressive words of counsel remind us of our duty to maintain the integrity of Constitutional government by adhering to the limitations laid by the sovereign people upon the expression of its will.... Not less imperative, however, is our duty to refuse to magnify their scope by resort to subtle implication.... Repeated decisions have informed us that only when conflict with the Constitution is clear and indisputable will a statute be condemned as void. Still more obvious is the duty of caution and moderation when the act to be reviewed is not an act of ordinary legislation, but an act of the great constituent power which has made Constitutions and hereafter may unmake them. Narrow at such times are the bounds of legitimate implications." (see *ibid.* p. 121).

H.E. Willis has rejected the theory of implied limitations in his book "Constitutional Law

of the United States" in the following words:

But it has been contended that there are all sorts of implied limitations upon the amending power. Thus it has been suggested that no amendment is valid unless it is germane to something else in the Constitution, or if it is a grant of a new power, or if it is legislative in form, or if it destroys the powers of the states under the dual form of government, or if it changes the protection to personal liberty. The United States Supreme Court has brushed away all of these arguments....

1509. We may now deal with the concept of natural rights. Such rights are stated to be

linked with cherished values like liberty, equality and democracy. It is urged that such

rights are inalienable and cannot be affected by an amendment of the Constitution. I

agree with the learned Counsel for the petitioners that some of the natural rights embody

within themselves cherished values and represent certain ideals for which men have striven through the ages. The natural rights have, however, been treated to be not of absolute character but such as are subject to certain limitations. Man being a social being, the exercise of his rights has been governed by his obligations to the fellow beings and the society, and as such the rights of the individual have been subordinated to the general weal. No one has been allowed to so exercise his rights as to impinge upon the rights of others. Although different streams of thought still persist, the later writers have generally taken the view that natural rights have no proper place outside the Constitution and the laws of the state. It is up to the state to incorporate natural rights, or such of them as are deemed essential, and subject to such limitations as are considered appropriate, in the

Constitution or the laws made by it. But independently of the Constitution and the laws of the state, natural rights can have no legal sanction and cannot be enforced. The courts look to the provisions of the Constitution and the statutory law to determine the rights of individuals. The binding force of Constitutional and statutory provisions cannot be taken away nor can their amplitude and width be restricted by invoking the concept of natural rights. Further, as natural rights have no place in order to be legally enforceable outside the provisions of the Constitution and the statute, and have to be granted by the Constitutional or statutory provisions, and to the extent and subject to such limitations as are contained in those provisions, those rights, having been once incorporated in the Constitution or the statute, can be abridged or taken away by amendment of the Constitution or the statute. The rights, as such, cannot be deemed to be supreme or of superior validity to the enactments made by the state, and not subject to the amendatory process.

1510. It may be emphasised in the above context that those who refuse to subscribe to the theory of enforceability of natural rights do not deny that there are certain essential values in Me, nor do they deny that there are certain requirements necessary for a civilized existence. It is also not denied by them that there are certain ideals which have inspired mankind through the corridor of centuries and that there are certain objectives and desiderata for which men have struggled and made sacrifices. They are also conscious of the noble impulses yearning for a better order of things, of longings natural in most human hearts, to attain a state free from imperfections where higher values prevail and are accepted. Those who do not subscribe to the said theory regarding natural rights, however, do maintain that rights in order to be justiciable and enforceable must form part of the law or the Constitution, that rights to be effective must receive their sanction and sustenance from the law of the land and that rights which have not been codified or otherwise made a part of the law, cannot be enforced in courts of law nor can those rights override or restrict the scope of the plain language of the statute or the Constitution.

1511. Willoughby while dealing with the concept of natural rights has observed in Vol. I

of Constitution of the United States:

The so-called "natural" or unwritten laws defining the natural, inalienable, inherent rights of the citizen, which, it is sometimes claimed, spring from

the very nature of free government, have no force either to restrict or to extend the written provisions of the Constitution. The utmost that can be said for them is that where the language of the Constitution admits of doubt, it is to be presumed that authority is not given for the violation of acknowledged principles of justice and liberty.

1512. It would be pertinent while dealing with the natural rights to reproduce the

following passage from Salmond on Jurisprudence, Twelfth Edition:

Rights, like wrongs and duties, are either moral or legal. A moral or natural right is an interest recognized and protected by a rule of morality, the violation of which would be a moral wrong, and respect for which is a moral duty. A legal right, on the other hand, is an interest recognized and protected by a rule of law—the violation of which would be a legal wrong done to him whose interest it is, and respect for which is a legal duty.

Bentham set the fashion still followed by many of denying that there are any such things as natural rights at all. All rights are legal rights and the creation of the law. "Natural law, natural rights," he says, "are two kinds of

fictions or metaphors, which play so great a part in books of legislation, that they deserve to be examined by themselves.... Rights properly so called are the creatures of law properly so called; real laws give rise to real rights. Natural rights are the creatures of natural law; they are a metaphor which derives its origin from another metaphor." Yet the claim that men have natural rights need not involve us in a theory of natural law. In so far as we accept rules and principles of morality prescribing how men ought to behave, we may speak of there being moral or natural rights; and in so far as these rules lay down that men have certain rights, we may speak of moral or natural rights. The fact that such natural or moral rights and duties are not prescribed in black and white like their legal counterparts points to a distinction between law and morals; it does not entail the complete non-existence of moral rights and duties. (see p. 218-219).

1513. The observations on page 61 of P.W. Peterson's "Natural Law and Natural Rights"

show that the theory of natural rights which was made so popular by John Locke has

since ceased to receive general acceptance. Locke had propounded the theory that the community perpetually retains a supreme power of saving themselves from the attempts and designs of anybody, even of their legislators whenever they shall be so foolish or so wicked as to lay and carry on designs against the liberties and properties of the subject (see Principles of Civil Government Book 2 S 149).

1514. While dealing with natural rights, Roscoe Pound states on page 500 of Vol. I of his Jurisprudence:

Perhaps nothing contributed so much to create and foster hostility to courts and law and Constitutions as this conception of the courts as guardians of individual natural rights against the state and against society; this conceiving of the law as a final and absolute body of doctrine declaring these individual natural rights; this theory of Constitutions as declaratory of common-law principles, which are also natural-law principles, anterior to the state and of superior validity to enactments by the authority of the state; this theory of Constitutions as having for their purpose to guarantee and maintain the natural rights of individuals against the government and all its agencies. In effect, it set up the received traditional social, political, and economic ideals of the legal profession as a super-Constitution, beyond the reach of any agency but judicial decision.

1515. I may also in this connection refer to a passage on the inherent and inalienable

rights in A History of American Political Theories by C. Marriam:

By the later thinkers the idea that men possess inherent and inalienable rights of a political or quasi-political character which are independent of the state, has been generally given up. It is held that these natural rights can have no other than an ethical value, and have no proper place in politics. There never was, and there never can be,â™ says Burgess, â™any liberty upon this earth and among human beings, outside of state organizationâ™. In speaking of natural rights, therefore, it is essential to remember that these alleged rights have no political force whatever, unless recognized and enforced by the state. It is asserted by Willoughby that â™natural rightsâ™ could not have even a moral value in the supposed â™state of

natureâ™; they would really be equivalent to force and hence have no ethical significance. (see p. 310).

1516. It is then argued on behalf of the petitioners that essential features of the

Constitution cannot be changed as a result of amendment. So far as the expression

"essential features" means the basic structure or framework of the Constitution, I have

already dealt with the question as to whether the power to amend the Constitution would

include within itself the power to change the basic structure or framework of the

Constitution. Apart from that, all provisions of the Constitution are subject to amendatory

process and cannot claim exemption from that process by being described essential features.

1517. Distinction has been made on behalf of the petitioners between a fundamental right

and the essence, also described as core, of that fundamental right. It is urged

that even though the Parliament in compliance with Article 368 has the right to amend the fundamental right to property, it has no right to abridge or take away the essence of that right. In my opinion, this differentiation between fundamental right and the essence or core of that fundamental right is an over-refinement which is not permissible and cannot stand judicial scrutiny. If there is a power to abridge or take away a fundamental right, the said power cannot be curtailed by invoking the theory that though a fundamental right can be abridged or taken away, the essence or core of that fundamental right cannot be abridged or taken away. The essence or core of a fundamental right must in the nature of things be its integral part and cannot claim a status or protection different from and higher than of the fundamental right of which it is supposed to be the essence or core. There is also no objective standard to determine as to what is the core of a fundamental right and what distinguishes it from the periphery. The absence of such a standard is bound to introduce uncertainty in a matter of so vital an importance as the amendment of the Constitution. I am, therefore, unable to accept the argument, that even if a fundamental right be held to be amendable, the core or essence of that right should be held to be immune from the amendatory process.

1518. The enforcement of due process clause in Fourteenth Amendment of US Constitution, it is submitted on the petitionersâ™™ behalf, has not caused much difficulty and has not prevented the US courts from identifying the area wherein that clause operates. This fact, according to the submission, warrants the conclusion that the concept of implied limitation on the power of amendment would also not cause much difficulty in

actual working. I find considerable difficulty to accede to the above submission. The scope of due process clause in Fourteenth Amendment and of power of amendment of Constitution in Article 368 is different; the two provisions operate in different areas, the

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are meant to deal with different subjects and there is no similarity in the object of Fourteenth Amendment and that of Article 368. Any attempt to draw analogy between

the two, in my opinion, is far fetched.

1519. It may be mentioned that the Draft Report of the Sub-Committee on Fundamental

Rights initially contained Clause 11, according to which "no person shall be deprived of

his life, liberty or property without due process of law". It was then pointed out that a va

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volume of case law had gathered around the words "due process of law" which were mentioned in the Fifth and the Fourteenth Amendment of the US Constitution. At first

those words were regarded only as a limitation on procedure and not on the substance of

legislation. Subsequently those words were held to apply to matters of substantive law as

well. It was further stated that "in fact, the phrase â™without due process of lawâ™ appears t

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have become synonymous with â™without just causeâ™ the court being the judge of what is

â™just causeâ™; and since the object of most legislation is to promote the public welfare by

restraining and regulating individual rights of liberty and property the court can be

invited, under this clause, to review almost any law". View was also expressed that

Clause 11 as worded might hamper social legislation. Although the members of the Committee felt that there was no case for giving a carte blanche to the Government to

arrest, except in a grave emergency, any person without â™due process of lawâ™, there was

considerable support for the view that due process clause might hamper legislation

dealing with property and tenancy. A compromise formula was then suggested by Mr.

Panikkar and with the support of Mr. Munshi, Dr. Ambedkar and Mr.

Rajagopalachari

the suggestion was adopted that the word "property" should be omitted from the clause.

In the meanwhile, Mr. B.N. Rau during his visit to America had discussion with Justice

Frankfurter of the US Supreme Court who expressed the opinion that the power of review

implied in the "due process" clause was not only undemocratic (because it gave a few

judges the power of vetoing legislation enacted by the representatives of the nation) but

also threw an unfair burden on the judiciary. This view was communicated to the

Drafting Committee which replaced the expression "without due process of law" by the expression "except according to procedure established by law". The newly inserted words were borrowed from Article 31 of the Japanese Constitution (see pages 232-235 of the Framing of India's Constitution A Study by Shiva Rao). Reference to the proceedings of the Drafting Committee shows that a major factor which weighed for the elimination of the expression "due process of law" was that it had no definite contours. In case the view is now accepted that there are implied limitations on the power of making amendment, the effect would necessarily be to introduce an element of vagueness and indefiniteness in our Constitution which our Constitution-makers were so keen to avoid.

1520. Our attention has been invited to the declaration of human rights in the Charter of the United Nations. It is pointed out that there is similarity between the fundamental rights mentioned in Part II of the Constitution and the human rights in the Charter. According to Article 56 of the Charter, all members pledge themselves to take joint and separate action in co-operation with the Organization for the achievement of the purposes set forth in Article 55. Article 55, inter alia, provides that the United Nations shall promote universal respect for, and observance of human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion. It is submitted on behalf of the petitioners that if the power of amendment of the Constitution under Article 368 were to include the power to abridge or take away fundamental rights, the amendment might well have the effect of curtailing or doing away with some of the human rights mentioned in the United Nations Charter. In this respect I am of the view that the width and scope of the power of amendment of the Constitution would depend upon the provisions of the Constitution. If the provisions of the Constitution are clear and unambiguous and contain no limitations on the power of amendment, the court would not be justified in grafting limitations on the power of amendment because of an apprehension that the amendment might impinge upon human rights contained in the United Nations Charter. It is only in cases of doubt or ambiguity that the courts would interpret a statute as not to make it inconsistent with the comity of nations or established rules of international law, but if the language of the statute is clear, it must be followed

notwithstanding the conflict between municipal law and international law which results

(see Maxwell on The Interpretation of Statutes, Twelfth Edition, p. 183). It has been

observed on page 185:

But if a statute is clearly inconsistent with international law or the comity of nations, it must be so construed, whatever the effect of such a construction may be. There is, for instance, no doubt that a right conferred on an individual by a treaty made with the Crown may be taken from him by act of the legislature.

The above observations apply with greater force to a Constitutional provision as such

provisions are of a paramount nature. It has already been mentioned above that the

provisions of our Constitution regarding the power of making amendment are clear and

unambiguous and contain no limitation on that power. I, therefore, am not prepared to

accede to the contention that a limitation on the power of amendment should be read

because of the declaration of Human Rights in the UN Charter.

1521. I may mention in the above context that it is always open to a State to incorporate

in its laws the provisions of an international treaty, agreement or convention. In India the

provisions of the Geneva Conventions have been incorporated in the Geneva Conventions Act, 1960 (Act 6 of 1960). According to the Treaties of European Communities, a State on becoming a member of the European Economic Communities (EEC) has to give primacy to the Community laws over the national laws. The principle

of primacy of Community law was accepted in six countries of the European communities. Three of them, namely, Netherlands, Luxembourg and Belgium specifically amended their written Constitutions to secure, as far as possible, the principle

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of the primacy of the Community law. The other three, namely, France, Germany and

Italy have also Constitutional provisions under which it would be possible for the courts

in those countries to concede primacy to the Treaties of European Communities, and thus

through them secure the primacy of the Community law. Ireland which became a new member of EEC with effect from January 1, 1973 has amended its Constitution by the

Third Amendment of the Constitution Bill, 1971. This Bill has been approved in a referendum. The relevant part of the Amendment reads as under:

No provision of this Constitution invalidates laws enacted, acts done or measures adopted by the State necessitated by the obligations of membership of the Communities or prevents laws enacted, acts done or measures adopted by the Communities, or institutions thereof, from having the force of law in the State.

In Britain also, primacy of the European Community law over the domestic law has been

recognized by Section 2 of the European Communities Act, 1972. Question is now engaging the attention of Constitutional experts as to whether it has become necessary to

place limitations on the legislative powers of the British Parliament and whether it is on

that account essential to have a written Constitution for the United Kingdom (see July 1972 Modern Law Review, p. 375 onwards on the subject of Parliamentary Sovereignty and the Primacy of European Community Law).

1522. I am also of the view that the power to amend the provisions of the Constitution relating to the fundamental rights cannot be denied by describing the fundamental rights as natural rights or human rights. The basic dignity of man does not depend upon the codification of the fundamental rights nor is such codification a prerequisite for a dignified way of living. There was no Constitutional provision for fundamental rights before January 26, 1950 and yet can it be said that there did not exist conditions for dignified way of living for Indians during the period between August 15, 1947 and January 26, . 1950. The plea that provisions of the Constitution, including those of Part III, should be given restrospective effect has been rejected by this Court. Article 19 which makes provision for fundamental rights, is not applicable to persons who are not citizens of India. Can it, in view of that, be said that the non-citizens cannot while staying in India lead a dignified life ? It would, in my opinion, be not a correct approach to say that amendment of the Constitution relating to abridgement or taking away of the fundamental rights would have the effect of denuding human beings of basic dignity and would result in the extinguishment of essential values of life.

1523. It may be mentioned that the provisions of Article 19 show that the framers of the Constitution never intended to treat fundamental rights to be absolute. The fact that reasonable restrictions were carved in those rights clearly negatives the concept of absolute nature of those rights. There is also no absolute standard to determine as to what

constitutes a fundamental right. The basis of classification varies from country to country.

What is fundamental right in some countries is not so in other countries. On account of the difference between the fundamental rights adopted in one country and those adopted

in another country, difficulty was experienced by our Constitution-makers in selecting

provisions for inclusion in the chapter on fundamental rights (see in this connection

Constitutional Precedents III Series on Fundamental Rights p. 25 published by the

Constituent Assembly of India).

1524. Reference has been made on behalf of the petitioners to the Preamble to the

Constitution and it is submitted that the Preamble would control the power of amendment. Submission has also been made in the above context that there is no power

to amend the Preamble because, according to the submission, Preamble is not a part of

the Constitution but "walks before the Constitution". I am unable to accept the contention

that the Preamble is not a part of the Constitution. Reference to the debates of the

Constituent Assembly shows that there was considerable discussion in the said Assembly

on the provisions of the Preamble. A number of amendments were moved and were rejected. A motion was thereafter adopted by the Constituent Assembly that "the Preamble stands part of the Constitution" (see Constituent Assembly debates, Vol. X, p.

429-456). There is, therefore, positive evidence to establish that the Preamble is a part of

the Indian Constitution. In view of the aforesaid positive evidence, no help can be derived

from the observations made in respect of other Constitutions on the point as to whether

preamble is or is not a part of the Constitution. Apart from that, I find that the

observations on p. 200-201 in Craie on Statute Law Sixth Edition show that the earlier

view that preamble of a statute is not part thereof has been discarded and that preamble is

as much a part of a statute as its other provisions.

1525. Article 394 of the Constitution shows that the said article as well as Article 5, 6, 7

, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392 and 393 came into force at once, i.e. on

26th day of November 1949 when the Constitution was adopted and enacted and the remaining provisions of the Constitution would come into force on the 26th day of

January, 1950 "which day is referred to in this Constitution as the commencement of this

Constitution". Article 394 would thus show that except for sixteen articles which were

mentioned in that article, the remaining provisions of the Constitution came into force on

the 26th day of January, 1950. The words "the remaining provisions", in my

opinion,
would include the Preamble as well as Part III and Part IV of the Constitution.
It may also
be mentioned that a proposal was made in the Constituent Assembly by Mr.
Santhanam
that Preamble should come into force on November 26, 1949 but the said proposal
was
rejected.

1526. As Preamble is a part of the Constitution, its provisions other than those
relating to
basic structure or framework, it may well be argued, are as much subject to the
amendatory process contained in Article 368 as other parts of the Constitution.
Further, if

Preamble itself is amendable, its provisions other than those relating to basic
structure

cannot impose any implied limitations on the power of amendment. The argument
that

Preamble creates implied limitations on the power of amendment cannot be
accepted

unless it is shown that the Parliament in compliance with the provisions of
Article 368 is

debarred from amending the Preamble in so far as it relates to matters other
than basic

structure and removing the supposed limitations which are said to be created by
the

Preamble. It is not necessary to further dilate upon this aspect because I am of
the view

that the principle of construction is that reference can be made to Preamble for
purpose of

construing when the words of a statute or Constitution are ambiguous and admit
of two

alternative constructions. The preamble can also be used to shed light on and
clarify

obscurity in the language of a statutory or Constitutional provision. When,
however, the

language of a section or article is plain and suffers from no ambiguity or
obscurity, no

loss can be put on the words of the section or article by invoking the Preamble.
As

observed by Story on Constitution, the preamble can never be resorted to, to
enlarge the

powers confided to the general government, or any of its departments. It cannot
confer

any power per se; it can never amount, by implication, to an enlargement of any
power

expressly given. It can never be the legitimate source of any implied power,
when

otherwise withdrawn from the Constitution. Its true office is to expound the
nature, and

extent, and application of the powers actually conferred by the Constitution,
and not

substantively to create them (see para 462). The office of the Preamble has been
stated by

the House of Lords in *Att.-Gen. v. H.R.H. Prince Ernest Augustus of Hanover*.
[1957]

A.C. 436 In that case, Lord Normand said:

When there is a preamble it is generally in its recitals that the mischief to be remedied and the scope of the Act are described. It is therefore clearly permissible to have recourse to it as an aid to construing the enacting provisions. The preamble is not, however, of the same weight as an aid to construction of a section of the Act as are other relevant enacting words to be found elsewhere in the Act or even in related Acts. There may be no exact correspondence between preamble and enactment, and the enactment may go beyond, or it may fall short of the indications that may be gathered from the preamble. Again, the preamble cannot be of much or any assistance in construing provisions which embody qualifications or exceptions from the operation of the general purpose of the Act. It is only when it conveys a clear and definite meaning in comparison with relatively obscure or indefinite enacting words that the preamble may legitimately prevail.... If they (the enacting words) admit of only one construction, that construction will receive effect even if it is inconsistent with the preamble, but if the enacting words are capable of either of the constructions offered by the parties, the construction which fits the preamble may be preferred.

1527. In the President's reference In Re : The Berubari Union and Exchange of Enclaves, [1963] S.C.R. 250 the matter related to the implementation of the agreement between the Prime Ministers of India and Pakistan regarding the division of Berubari Union and for exchange of Cooch-Bihar Enclaves in Pakistan and Pakistan enclaves in India. The contention which was advanced on behalf of the petitioner in that case was that the agreement was void as it ceded part of India's territory, and in this connection, reference was made to the Preamble to the Constitution. Rejecting the contention this Court after referring to the words of Story that preamble to the Constitution is "a key to open the minds of the makers" which may show the general purposes for which they made the several provisions, relied upon the following observations of Willoughby about the

Preamble to the American Constitution:

It has never been regarded as the source of any substantive power conferred on the Government of the United States, or on any of its departments. Such power embrace only those expressly granted in the body of the Constitution and such as may be implied from those so granted.

To the above observations this Court added:

What is true about the powers is equally true about the prohibitions and limitations.

1528. Apart from what has been stated above about the effect of Preamble on the power

of amendment, let us deal with the provisions of the Preamble itself. After referring to the

solemn resolution of the people of India to constitute India into a sovereign democratic

republic, the Preamble makes mention of the different objectives which were to be

secured to all its citizens. These objectives are:

JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity;
and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity of the Nation.

It would be seen from the above that the first of the objectives mentioned in the Preamble

is to secure to all citizens of India justice, social, economic and political. Article 38 in

Part IV relating to the Directive Principles or State Policy recites that the State shall

strive to promote the welfare of the people by securing and protecting as effectively as it

may a social order in which justice, social, economic and political, shall inform all the

institutions of the national life.

1529. Since the later half of the eighteenth century when the idea of political equality of

individuals gathered force and led to the formation of democratic governments, there has

been a great deal of extension of the idea of equality from political to economic and

social fields. Wide disparities in the standard of living of the upper strata and the lower

strata as also huge concentration of wealth in the midst of abject poverty are an index of

social maladjustment and if continued for long, they give rise to mass discontent and a

desire on the part of those belonging to the lower strata to radically alter and, if

necessary, blow up the social order. As those belonging to the lower strata constitute the

bulk of the population, the disparities provide a fertile soil for violent upheavals. The

prevention of such upheavals is not merely necessary for the peaceful evolution of society, it is also in the interest of those who belong to the upper strata to ensure that the

potential causes for violent upheaval are eliminated. Various remedies have been suggested in this connection and the stress has been laid mainly upon having what is

called a welfare state. The modern states have consequently to take steps with a view to

ameliorate the conditions of the poor and to narrow the chasm which divides them from

the affluent sections of the population. For this purpose the state has to deal with the

problems of social security, economic planning and industrial and agrarian welfare. Quite

often in the implementation of these policies, the state is faced with the problem of

conflict between the individual rights and interests on the one side and rights and welfare

of vast sections of the population on the other. The approach which is now generally

advocated for the resolving of the above conflict is to look upon the rights of the

individuals as conditioned by social responsibility. Harold Laski while dealing with this

matter has observed in Encyclopaedia of the Social Sciences:

The struggle for freedom is largely transferred from the plane of political to that of economic rights. Men become less interested in the abstract fragment of political power an individual can secure than in the use of massed pressure of the groups to which they belong to secure an increasing share of the social product.... So long as there is inequality, it is argued, there cannot be liberty. The historic inevitability of this evolution was seen a century ago by de Tocqueville. It is interesting to compare this insistence that the democratization of political power mean equality and that its absence would be regarded by the masses as oppression with the argument of Lord Acton that liberty and equality are antitheses. To the latter liberty was essentially an autocratic ideal; democracy destroyed individuality, which was the very pith of liberty, by seeking identity of conditions. The modern emphasis is rather toward the principle that material equality is growing inescapable and that the affirmation of personality must be effective upon an immaterial plane. (see Vol. IX, p. 445).

1530. I may also refer to another passage on page 99 of Grammar of Politics by Harold Laski:

The State, therefore, which seeks to survive must continually transform itself to the demands of men who have an equal claim upon that common welfare which is its ideal purpose to promote.

We are concerned here, not with the defence of anarchy, but with the conditions of its avoidance. Men must learn to subordinate their selfinterest to the common welfare. The privileges of some must give way before the rights of all. Indeed, it may be urged that the interest of the few is in fact the attainment of those rights, since in no other environment is stability to be assured.

1531. A modern state has to usher in and deal with large schemes having social and economic content. It has to undertake the challenging task of what has been

called social engineering, the essential aim of which is the eradication of the poverty, uplift of the downtrodden, the raising of the standards of the vast mass of people and the narrowing of the gulf between the rich and the poor. As occasions arise quite often when the individual rights clash with the larger interests of the society, the state acquires the power to subordinate the individual rights to the larger interests of society as a step towards social justice. As observed by Roscoe Pound on page 434 of Volume I of Jurisprudence under the heading "Limitations on the Use of Property":

Today the law is imposing social limitations-limitations regarded as involved in social life. It is endeavouring to delimit the individual interest better with respect to social interests and to confine the legal right or liberty or privilege to the bounds of the interest so delimited.

To quote the words of Friedmann in Legal Theory:

But modern democracy looks upon the right to property as one conditioned by social responsibility by the needs of society, by the "balancing of interests" which looms so large in modern jurisprudence, and not as preordained and untouchable private right. (Fifth Edition, p. 406).

1532. With a view to bring about economic regeneration, the state devises various methods and puts into operation certain socio-economic measures. Some of the methods devised and measures put into operation may impinge upon the property rights of individuals. The courts may sometimes be sceptical about the wisdom behind those

methods and measures, but that would be an altogether extraneous consideration in determining the validity of those methods and measures. We need not dilate further upon this aspect because we are only concerned with the impact of the Preamble. In this respect I find that although it gives a prominent place to securing the objective of social, economic and political justice to the citizens, there is nothing in it which gives primacy to claims of individual right to property over the claims of social, economic and political justice. There is, as a matter of fact, no clause or indication in the Preamble which stands in the way of abridgement of right to property for securing social, economic and political justice. Indeed, the dignity of the individual upon which also the Preamble has laid stress, can only be assured by securing the objective of social, economic and political justice.

1533. Reference has been made on behalf of the petitioners to the Nehru Report in order to show that in the pre-independence days, it was one of the objectives of nationalist leaders to have some kind of charter of human rights. This circumstance, in my opinion has not much material bearing on the point of controversy before us. Our Constitutionmakers did incorporate in Part III of the Constitution certain rights and designated them as fundamental rights. In addition to that, the Constitution-makers put in Part IV of the Constitution certain Directive Principles. Although those Directive Principles were not to be enforceable by any court, Article 37 declared that those principles were nevertheless fundamental in the governance of the country and it should be the duty of the State to apply those principles in making laws. The Directive Principles embody a commitment which was imposed by the Constitution-makers on the State to bring about economic and social regeneration of the teeming millions who are steeped in poverty, ignorance and social backwardness. They incorporate a pledge to the coming generations of what the State would strive to usher in. No occasion has arisen for the amendment of the Directive Principles. Attempt have, however, been made from time to time to amend the fundamental rights in Part III. The question with which we are concerned is whether there is power of amendment under Article 368 so as to take away or abridge the fundamental rights. This question would necessarily have to depend upon the language of Article 368 as well as upon the width and scope of the power of amendment under Article 368 and the consideration of the Nehru Report in this context would be not helpful. If

the language of Article 368 warrants a wide power of amendment as may include the power to take away or abridge fundamental rights, the said power cannot be held to be nonexistent nor can its ambit be restricted by reference to Nehru Report. The extent to which historical material can be called in aid has been laid down in Maxwell on Interpretation of Statutes on page 47-48 as under:
In the interpretation of statutes, the interpreter may call to his aid all those external or historical facts which are necessary for comprehension of the subject-matter, and may also consider whether a statute was intended to alter the law or to leave it exactly where it stood before. But although we can have in mind the circumstances when the Act was passed and the mischief which then existed so far as these are common knowledge...we can only use these matters as an aid to the construction of the words which Parliament has used. We cannot encroach on its legislative function by reading in some limitation which we may think was probably intended but which cannot be inferred from the words of the Act.
The above observations hold equally good when we are construing the provisions of a Constitution. Keeping them in view we can get no material assistance in support of the petitioners contention from the Nehru Report.
1534. Apart from what has been stated above, we find that both before the dawn of independence as well as during the course of debates of the Constituent Assembly stress was laid by the leaders of the nation upon the necessity of bringing about economic regeneration and thus ensuring social and economic justice. The Congress Resolution of 1929 on social and economic changes stated that "the great poverty and misery of the Indian people are due, not only to foreign exploitation in India but also to the economic structure of society, which the alien rulers support so that their exploitation may continue".
In order therefore to remove this poverty and misery and to ameliorate the condition of the Indian masses, it is essential to make revolutionary changes in the present economic and social structure of society and to remove the gross inequalities". The resolution passed by the Congress in 1931 recited that in order to end the exploitation of the masses, political freedom must include real economic freedom of the starving millions.
The

Objectives Resolution which was moved by Pt. Nehru in the Constituent Assembly on

December 13, 1946 and was subsequently passed by the Constituent Assembly mentioned that there would be guaranteed to all the people of India, "justice, social, economic, and political; equality of status, of opportunity and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action subject to law

and public morality". It would, therefore, appear that even in the Objectives Resolution

the first position was given to justice, social, economic and political. Pt. Nehru in the

course of one of his speeches, said:

The service of India means the service of the millions who suffer. It means the ending of poverty and ignorance and disease and inequality of opportunity. The ambition of the greatest man of our generation has been to wipe every tear from every eye. That may be beyond us, but as long as there are tears and suffering, so long our work will not be over.

Granville Austin in his book "Extracts from the Indian Constitution : Cornerstone of a

Nation" after quoting the above words of Pt. Nehru has stated:

Two revolutions, the national and the social, had been running parallel in India since the end of the First World War. With independence, the national revolution would be completed, but the social revolution must go on. Freedom was not an end in itself, only a means to an end, Nehru had said, that end being the raising of the people...to higher levels and hence the general advancement of humanity.

The first task of this Assembly (Nehru told the members) is to free India through a new Constitution, to feed the starving people, and to clothe the naked masses, and to give every Indian the fullest opportunity to develop himself according to his capacity.

K. Santhanam, a prominent southern member of the Assembly and editor of a major newspaper, described the situation in terms of three revolutions. The political revolution would end, he wrote, with independence. The social revolution meant to get (India) out of the medievalism based on birth, religion, custom, and community and reconstruct her social structure on modern foundations of law, individual merit, and secular education.

The third revolution was an economic one : The transition from primitive rural economy to scientific and planned agriculture and industry.

Radhakrishnan (now President of India) believed India must have a socioeconomic revolution designed not only to bring about the real satisfaction

of the fundamental needs of the common man, but to go much deeper and bring about a fundamental change in the structure of Indian society.

On the achievement of this great social change depended India's survival.

If we cannot solve this problem soon, Nehru warned the Assembly, all our paper Constitutions will become useless and purposeless....

* * * * *

The choice for India, wrote Santhanam, ...is between rapid evolution and violent revolution...because the Indian masses cannot and will not wait for a long time to obtain the satisfaction of their minimum needs.

* * * * *

What was of greatest importance to most Assembly members, however, was not that socialism be embodied in the Constitution, but that a democratic Constitution and with a socialist bias be framed so as to allow the nation in the future to become as socialist as its citizens desired or its needs demanded. Being, in general, imbued with the goals, the

humanitarian bases, and some of the techniques of social democratic thought, such as the type of Constitution that Constituent Assembly members created.

1535. Dealing with the Directive Principles, Granville Austin writes: In the Directive Principles, however, one finds an even clearer statement of the social revolution. They aim at making the Indian masses free in the positive sense, free from the passivity engendered by centuries of coercion by society and by nature, free from the abject physical conditions that had prevented them from fulfilling their best selves.

* * * * *

By establishing these positive obligations of the state, the members of the Constituent Assembly made it the responsibility of future Indian governments to find a middle way between individual liberty and the public good, between preserving the property and the privilege of the few

and bestowing benefits on the many in order to liberate the powers of all men equally for contributions to the common good.

* * * * *

The Directive Principles were a declaration of economic independence, a declaration that the privilege of the colonial era had ended, that the Indian people (through the democratic institutions of the Constitution) had assumed economic as well as political control of the country, and that Indian capitalists should not inherit the empire of British colonialists.

1536. Pt. Nehru, in the course of his speech in support of the Constitution (First

Amendment) Bill, said:

And as I said on the last occasion the real difficulty we have to face is a conflict between the dynamic ideas contained in the Directive Principles of Policy and the static position of certain things that are called

fundamental whether they relate to property or whether they relate to something else. Both are important undoubtedly. How are you to get over

them? A Constitution which is unchanging and static, it does not matter how good it is, how perfect it is, is a Constitution that has past its use.

1537. Again in the course of his speech in support of the Constitution (Fourth Amendment) Bill, Pt. Nehru said:

But, I say, that if that is correct, there is an inherent contradiction in the Constitution between the fundamental rights and the Directive Principles of State Policy. Therefore, again, it is up to this Parliament to remove that contradiction and make the fundamental rights subserve the Directive Principles of State Policy.

1538. It cannot, therefore, be said that the stress in the impugned amendments to the

Constitution upon changing the economic structure by narrowing the gap between the

rich and the poor is a recent phenomenon. On the contrary, the above material shows that

this has been the objective of the national leaders since before the dawn of independence,

and was one of the underlying reasons for the First and Fourth Amendments of the Constitution. The material further indicates that the approach adopted was that there

should be no reluctance to abridge or regulate the fundamental right to property if it was

felt necessary to do so for changing the economic structure and to attain the objectives

contained in the Directive Principles.

1539. So far as the question is concerned as to whether the right to property can be said to

pertain to basic structure or framework of the Constitution, the answer, in my opinion,

should plainly be in the negative. Basic structure or framework indicates the broad

outlines of the Constitution, while the right to property is a matter of detail. It is appar

ent

from what has been discussed above that the approach of the framers of the Constitution

was to subordinate the individual right to property to the social good. Property right has

also been changing from time to time. As observed by Harold Laski in Grammar of Politics, the historical argument is fallacious if it regards the regime of private property

as

a simple and unchanging thing. The history of private property is, above all, the record of the most varied limitations upon the use of the powers it implies. Property in slaves was valid in Greece and Rome; it is no longer valid today. Laski in this context has quoted the

following words of John Stuart Mill:

The idea of property is not some one thing identical throughout history and incapable of alteration...at any given time it is a brief expression denoting the rights over things conferred by the law or custom of some given society at that time; but neither on this point, nor on any other, has the law and custom of a given time and place, a claim to be stereotyped for ever. A proposed reform in laws or customs is not necessarily objectionable because its adoption would imply, not the adaptation of all human affairs to the existing idea of property, to the growth and improvement of human affairs.

1540. The argument that Parliament cannot by amendment enlarge its own powers is untenable. Amendment of the Constitution, in the very nature of things, can result in the

conferment of powers on or the enlargement of powers of one of the organs of the state.

Likewise, it can result in the taking away or abridgement of the powers which were

previously vested in an organ of the state. Indeed nearly every expansion of powers and

functions granted to the Union Government would involve consequential contraction of

powers and functions in the Government of the States. The same is true of the converse

position. There is nothing in the Constitution which prohibits or in any other way

prevents the enlargement of powers of Parliament as a result of Constitutional amendment and, in my opinion, such an amendment cannot be held to be impermissible or beyond the purview of Article 368. Indeed, a precedent is afforded by the Irish case of *Jeremish Ryan* (supra) wherein amendment made by the Oirechtas as a result of which it enlarged its powers inasmuch as its power of amending the Constitution without a referendum was increased from eight years to 16 years was held to be valid. Even Kennedy C.J. who gave a dissenting judgment did not question the validity of the amendment on the ground that Oirechtas had thereby increased its power. He struck it down on the ground that there was no power to amend the amending clause. No such difficulty arises under our Constitution because of the existence of an express provision. I am also unable to accede to the contention that an amendment of the Constitution as a result of which the President is bound to give his assent to an amendment of the Constitution passed in accordance with the provisions of Article 368 is not valid. Article 368 itself gives, inter alia, the power to amend Article 368 and an amendment of Article 368 which has been brought about in the manner prescribed by that article would not suffer from any Constitutional or legal infirmity. I may mention in this context that an amendment of the US Constitution in accordance with Article 5 of the US Constitution does not require the assent of the President. The change made by the Twentyfourth Amendment in the Constitution of India, to which our attention has been invited, has not done away with the assent of the President but has made it obligatory for him to give his assent to the Constitution Amendment Bill after it has been passed in accordance with Article 368. As it is not now open to the President to withhold his assent to a Bill in regard to a Constitutional amendment after it has been duly passed, the element of personal discretion of the President disappears altogether. Even apart from that, under our Constitution the position of the President is that of a Constitutional head and the scope for his acting in exercise of his personal discretion is rather small and limited.

1541. Reference was made during the course of arguments to the provisions of Section 6 of the Indian Independence Act, 1947. According to Sub-section (1) of that section, the Legislature of each of the new Dominions shall have full power to make laws for that Dominion, including laws having extra-territorial operation. Sub-section (6) of the section provided that the power referred to in Sub-section (1) of this section extends to the making of laws limiting for the future the powers of the Legislature of the Dominion.

No help, in my opinion, can be derived from the above provisions because the Constituent Assembly framed and adopted the Constitution not on the basis of any power derived from Section 6 of the Indian Independence Act. On the contrary, the members of the Constituent Assembly framed and adopted the Constitution as the representatives of the people and on behalf of the people of India. This is clear from the opening and concluding words of the Preamble to the Constitution. There is, indeed, no reference to the Indian Independence Act in the Constitution except about its repeal in Article 395 of the Constitution.

1542. Apart from the above, I find that all that Sub-section (6) of Section 6 of the Indian Independence Act provided for was that the power referred to in Sub-section (1) would extend to the making of laws limiting for the future the powers of the Legislature of the Dominion. The Provisional Parliament acting as the Constituent Assembly actually framed the Constitution which placed limitations on the ordinary legislative power of the future Parliaments by providing that the legislative laws would not contravene the provisions of the Constitution. At the same time, the Constituent Assembly inserted Article 368 in the Constitution which gave power to the two Houses of future Parliaments to amend the Constitution in compliance with the procedure laid down in that article.

There is nothing in Section 6 of the Indian Independence Act which stood in the way of the Constituent Assembly against the insertion of an article in the Constitution conferring wide power of amendment, and I find it difficult to restrict the scope of Article 368 because of anything said in Section 6 of the Indian Independence Act.

1543. Argument on behalf of the petitioners that our Constitution represents a compact on the basis of which people joined the Indian Union and accepted the Constitution is wholly misconceived. The part of India other than that comprised in erstwhile Indian States was already one territory on August 15, 1947 when India became free. So far as the erstwhile Indian States were concerned, they acceded to the Indian Union long before the Constitution came into force on January 26, 1950 or was adopted on November 26, 1949.

There thus arose no question of any part of India comprising the territory of India joining the Indian Union on the faith of any assurance furnished by the provisions of the Constitution. Some assurances were given to the minorities and in view of that they gave up certain demands. The rights of minorities are now protected in Articles 25 to 30. Apart from the articles relating to protection to the minorities, the various articles contained i

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Part III of the Constitution are applicable to all citizens. There is nothing to show that t
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people belonging to different regions would have or indeed could have declined to either
join the Indian Union or to remain in the Indian Union but for the incorporation of
articles relating to fundamental rights in the Constitution. The Constitution containing
fundamental rights was framed by the people of India as a whole speaking through their
representative and if the people of India as a whole acting again through their representatives decide to abridge or take away some fundamental right like one relating
to property, no question of breach of faith or violation of any alleged compact can, in my
opinion, arise.

1544. This apart, compact means a bargain or agreement mutually entered into, which
necessarily connotes a choice and volition for the party to the compact. Whatever may be
the relevance or significance of the concept of compact in the context of the US Constitution where different States joined together to bring into existence the United
States of America and where further each one of the States ratified the Constitution after
it had been prepared by the Philadelphia Convention, the above concept has plainly no
relevance in the context of the Indian Constitution. The whole of India was, as already
mentioned, one country long before the Constitution was adopted. There was also no
occasion here for the ratification of the Constitution by each State after it had been
adopted by the Constituent Assembly.

1545. Reference has been made on behalf of the petitioners to the case of Mangal Singh
and Anr. v. Union of India [1967] 2 S.C.R. 109 which related to the Punjab Reorganization Act, 1966. This Court while upholding the validity of the Act dealt with
Article 4, according to which any law referred to in Article 2 or Article 3 shall contain
such provisions for the amendment of the First Schedule and the Fourth Schedule as may
be necessary to give effect to the provisions of the law and may also contain such
supplemental, incidental and consequential provisions (including provisions as to
representation in Parliament and in the Legislature or Legislatures of the State or States
affected by such law) as Parliament may deem necessary, and observed:
Power with which the Parliament is invested by Articles 2 and 3, is power to admit, establish, or form new States which conform to the democratic pattern envisaged by the Constitution; and the power which the Parliament may exercise by law is supplemental, incidental or consequential to the admission, establishment or formation of a State as contemplated by the Constitution, and is not power to override the Constitutional scheme. No

State can therefore be formed, admitted or set up by few under Article 4 by the Parliament which has not effective legislative, executive and judicial organs.

1546. The above passage, in my opinion, does not warrant an inference of an implied limitation on the power of amendment as contended on behalf of the petitioners. This

Court dealt in the above passage with the import of the words "supplemental, incidental and consequential provisions" and held that these provisions did not enable the Parliament to override the Constitutional scheme. The words "Constitutional scheme"

had plainly reference to the provisions of the Constitution which dealt with a State, its legislature, judiciary and other matters in Part VI. Once the State of Haryana came into

being, it was to have the attributes of a State contemplated by the different articles of Part

VI in the same way as did the other States. No question arose in that case about limitation

on the power of amendment under Article 368 and as such, that case cannot be of any

avail to the petitioners.

1547. learned Counsel for the petitioner has invited our attention to the Constitutional

position specially in the context of civil liberties in Canada. In this respect we find that

the opening words of the Preamble to the British North America Act, 1867 read as under:

Whereas the provisions of Canada, Nova Scotia, and New Brunswick have expressed their desire to be federally united into one dominion under the Crown of the United Kingdom of Great Britain and Ireland, with a Constitution similar in principle to that of the United Kingdom;

Section 91 of the above mentioned Act deals with the legislative authority of Parliament

of Canada. The opening words of Section 91 are as under:

It shall be lawful for the Queen, by and with the advice and consent of the Senate and House of Commons, to make laws for the peace, order, and good government of Canada, in relation to all matters not coming within the classes of subjects by this Act assigned exclusively to the Legislatures

of the provinces; and for greater certainty, but not so as to restrict the generality of the foregoing terms of the section, it is hereby declared that (notwithstanding anything in this Act) the exclusive legislative authority of the Parliament of Canada extends to all matters coming within the classes of subjects next hereinafter enumerated; that is to say, ____.

There follows a list of different subjects. The first amongst the subjects, which was inserted by British North America Act 1949, is : "The amendment from time to time of the Constitution of Canada, except as regards matters coming within the classes of subjects by this Act assigned exclusively to the Legislatures of the provinces, or...." It is not necessary to give the details of other limitations on the power of amendment. Section 92 of the British North America Act enumerates the subjects of exclusive provincial legislation. According to this section, in each province the Legislature may exclusively make laws in relation to matters coming within the classes of subjects next hereinafter enumerated. There then follows a list of subjects, the first amongst which is "The amendment from time to time, notwithstanding anything in this Act, of the Constitution of the province, except as regards the office of the Lieutenant Governor". In view of the fact that amendment of the Constitution is among the subjects of legislation, the only distinction in Canada, it has been said, between ordinary legislation by Parliament and Constitutional law is that the former concerns all matters not specially stated as within the ambit of provincial legislation while the latter concerns any fundamental change in the division of rights. Further, although because of the federal character of the State, the Canadian Constitution cannot be called flexible, it is probably the least rigid of any in the modern federal states (see Modern Political Constitutions by C.F. Strong). 1548. It appears that at least six different views have been propounded in Canada about the Constitutional position of basic liberties. To date, the Supreme Court of Canada has not given Judicial approval to any of these views. Different members of the Court have voiced various opinions on the matter, but all of these fall far short of settling the issue. It should also be noted that the fundamental problem is not whether Parliament or the legislature may give to the people basic freedom, but rather which one may interfere with them or take them away (see Civil Liberties in Canada by D.A. Schmeiser P. 13). 1549. An important case which had bearing on the question of civil liberties was

the
Alberta Press case [1938] S.C.R. 100 (Canada). That case related to the validity
of an Act
which had placed limitations on the freedom of the Press and the Supreme Court
of
Canada held that the Act was ultra vires, since it was ancillary to and
dependent upon the
Alberta Social Credit Act, which itself was ultra vires. Three or judges,
including Duff
C.J., went further than this, and dealt with the freedom of speech and freedom
of Press. It
was observed that curtailment of the exercise of the right of the public
discussion would
interfere with the working of parliamentary institutions of Canada. Opinion of
Duff C.J.
was based not on the criminal law power but on the necessity for maintaining
democratic
society as contemplated by the Constitution. A later decision dealing with free
speech
was *Switzmand v. Elbing and Attorney-General of Quebec* [1957] S.C.R. 285
(Canada).
In that case the Supreme Court declared invalid the Quebec Communistic
Propaganda
Act. All the judges but one were agreed that the statute did not fall within
provincial
competence under property and Civil rights or matters of a merely local or
private nature
in the province. Abbott J. held that the Parliament itself could not abrogate
the right of
discussion and, debate.
1550. An article by Dale Gibson in Volume 12-1966-67 in McGill Law Journal shows
that though the proposition enunciated by Duff C.J. has commanded the allegiance
of an
impressive number of judges and has not been decisively rejected, it has never
been
accepted by a majority of the members of the Supreme Court of Canada or of any
other
court. Some judges have assumed that basic freedoms may properly be the subject
matter
of legislation separate and apart from any other-subject matter. Others have
taken the
view that unlimited jurisdiction falls within Dominion control under its general
power to
make laws "for the peace, order and good government of Canada". A third view
which
has been taken is that the creation of a Parliament and reference in the Preamble
to "a
Constitution similar in principle to that of the United Kingdom" postulates that
legislative
body would be elected and function in an atmosphere of free speech. It is not
necessary to
give the other views or dialate upon different views. Bora Laskin while dealing
with the
dictum of Abbott J. has observed in Canadian Constitutional Law:
Apart from the dictum by Abbott J. in the *Switzman* case, *supra*, there is

no high authority which places civil liberties beyond the legislative reach of both Parliament and the provincial Legislatures. There are no explicit guarantees of civil liberties in the B.N.A. Act nothing comparable to the Bill of Rights (the 1st ten amendments) in the Constitution of the United States, which, within limits and on conditions prescribed by the Supreme Court as ultimate expounder of the meaning and range of the Constitution, prohibits both federal and state action infringing, inter alia, freedom of religion, of speech, of the press and of assembly. (see p. 970).

1551. It would appear from the above that the different views which have been expressed

in Canada are in the context of the preamble and section of the British North America

Act, the provisions of which are materially different from our Constitution.

Even in the

context of the British. North America Act, the observations of Abbott J. relied upon on

behalf of the petitioners have not been accepted by the majority of the judges of the

Canadian Supreme Court, and in my opinion, they afford a fragile basis for building a

theory of implied limitations.

1552. It may be mentioned that in August 1960 the Parliament of Canada passed the

Canadian Bill of Rights. Section 1 of the Bill declared certain human rights and fundamental freedoms and reads as under:

1. It is hereby recognized and declared that in Canada there have existed and shall continue to exist without discrimination by reason of race, national origin, colour, religion or sex, the following human rights and fundamental freedoms, namely,

(a) the right of the individual to life, liberty, security of the person and enjoyment of property, and the right not to be

deprived thereof except by due process of law;

(b) the right of the individual to equality before the law and the protection of the law;

(c) freedom of religion;

(d) freedom of speech;

(e) freedom of assembly and association; and

(f) freedom of the press.

According to Section 2 of the Bill, every law of Canada shall, unless it is expressly

declared by an Act of the Parliament of Canada that it shall operate notwithstanding the

Canadian Bill of Rights, be so construed and applied as not to abrogate, abridge or

infringe or to authorise the abrogation, abridgement or infringement of any of the rights

or freedoms therein recognized and declared. The relevant part of Section 2 reads as

under:

Every law of Canada shall, unless it is expressly declared by an Act of the Parliament of Canada that it shall operate notwithstanding the Canadian Bill of Rights, be so construed and applied as not to abrogate, abridge or infringe or to authorize the abrogation, abridgement or infringement of any of the rights or freedoms herein recognized and declared, and in particular, no law of Canada shall be construed or applied so as to...

(underlining supplied).

Plain reading of Section 2 reproduced above makes it manifest that the human rights and

fundamental freedoms mentioned in Section 1 of the Bill are not absolute but are subject to abrogation or abridgement if an express declaration to that effect be made in a law of Canada. Section 2 of the Bill shows that if an express declaration to that effect be made an Act of the Parliament can override the provisions of the Bill of Rights. Section 2 is thus inconsistent with the theory of implied limitations based on human rights on the power of the Canadian Parliament.

1553. Another case from Canada which has been referred to on behalf of the petitioners and which in my opinion is equally of no avail to them is *The Attorney General of Nova Scotia and The Attorney General of Canada* [1950] S.C.R. 31 (Canada) decided by the Supreme Court of Canada. It was held in that case that an Act respecting the delegation of jurisdiction from the Parliament of Canada to the Legislature of Nova Scotia and vice versa, if enacted, would not be Constitutionally valid since it contemplated delegation by Parliament of powers, exclusively vested in it by Section 91 of the British North America Act, to the Legislature of Nova Scotia; and delegation by that Legislature of powers, exclusively vested in Provincial Legislature under Section 92 of the Act, to Parliament.

The Parliament of Canada and each Provincial Legislature, according to the Supreme Court of Canada, was sovereign body within its sphere, possessed of exclusive jurisdiction to legislate with regard to the subject matters assigned to it under Section 91 or Section 92, as the case may be. Neither was capable therefore of delegating to the

other the powers with which it had been vested nor of receiving from the other the powers with which the other had been vested. It is plain that that case related to the delegation of powers which under the British North America Act had been assigned exclusively to Parliament or to the Provincial Legislatures. Such a delegation was held to be not permissible. No such question arises in the present case.

1554. We may now deal with some of the other cases which have been referred to on behalf of the petitioner. Two of those cases are from Ceylon. The Constitutional position there was that Section 29 of the Ceylon (Constitution) Order in Council, 1946 gave the

power to make laws as well as the power to amend the Constitution though the procedure prescribed for the two was different. Section 29 reads as under:

29 (1) Subject to the provisions of this Order, Parliament shall have power to make laws for the peace, order and good government of the Island.

(2) No such law shall (a) prohibit or restrict the free exercise of any religion; or

(b) make persons of any community or religion liable to disabilities or restrictions to which persons of other communities or religions are not made liable; or

(c) confer on persons of any community or religion any privilege or advantage which is not conferred on persons of other communities or religions; or

(d) alter the Constitution of any religious body except with the consent of the governing authority of that body, so, however, that in any case where a religious body is incorporated by law, no such alteration shall be made except at the request of the governing authority of that body:

1555. Provided, however, that the preceding provisions of this, subsection shall not apply to any law making provision for, relating to, or connected with, the election of Members

of the House of Representatives, to represent persons registered as citizens of Ceylon

under the Indian and Pakistani Residents (Citizenship) Act.

1556. This proviso shall cease to have effect on a date to be fixed by the Governor-General by Proclamation published in the Gazette.

(3) Any law made in contravention of Sub-section (2) of this section shall, to the extent of such contravention, be void.

(4) In the exercise of its powers under this section, Parliament may amend or repeal any of the provisions of this Order or of any other Order of Her Majesty in Council in its application to the Island:

1557. Provided that no Bill for the amendment or repeal of any of the provisions of this

Order shall be presented for the Royal Assent unless it has endorsed on it a certificate

under the hand of the Speaker that the number of votes cast in favour thereof in the

House of Representatives amounted to not less than two-thirds of the whole number of

Members of the House (including those not present).

1558. Every certificate of the Speaker under this sub-section shall be conclusive for all

purposes and shall not be questioned in any court of law.
1559. In *Liyanage and Ors. v. The Queen* [1966] All E.R. 650 the appellants had been charged with offences arising out of an abortive coup d'état on January 27, 1962. The story of the coup d'état was set out in a White Paper issued by the Ceylon Government. On March 16, 1962 the Criminal Law (Special Provisions) Act was passed and it was given retrospective effect from January 1, 1962. The Act was limited in operation to those who were accused of offences against the State in or about January 27, 1962. The Act legalised the imprisonment of the appellants while they were awaiting trial, and modified a section of the Penal Code so as to enact ex post facto a new offence to meet the circumstances of the abortive coup. The Act empowered the Minister of Justice to nominate the three judges to try the appellants without a jury. The validity of the Act was challenged as well as the nomination which had been made by the Minister of Justice of the three judges. The Ceylon Supreme Court upheld the objection about the vires of some of the provisions of the Act as well as the nomination of the judges. Subsequently the Act was amended and the power of nomination of the judges was conferred on the Chief Justice. The appellants having been convicted at the trial before a court of three judges nominated under the amended Act, went up in appeal before the Judicial Committee. The conviction of the appellants was challenged on three grounds but the Judicial Committee dealt with only two grounds. The first ground was that the Ceylon Parliament was limited by an inability to pass legislation which was contrary to fundamental principles of justice. The two Acts of 1962, it was stated, were contrary to such principles in that they were not

only directed against individuals but also ex post facto created crimes and for which those individuals would otherwise be protected. The second contention was that the Acts of 1962 offended against the Constitution in that they amounted to a direction to convict the appellants or to a legislative plan to secure the conviction and severe punishment of the appellants and thus constituted an unjustifiable assumption of judicial power by the legislature, or an interference with judicial power, which was outside the legislature's competence and was inconsistent with the severance of power between legislature, executive, and judiciary which the Constitution ordained. Dealing with the first contention, the Judicial Committee referred to the provisions of the Ceylon (Constitution) Order in Council, 1946 and the Ceylon Independence Act, 1947 and observed that the joint effect of the said Order and Act was intended to and resulted in giving the Ceylon Parliament the full legislative powers of an independent sovereign state. The legislative power of the Ceylon Parliament, it was held, was not limited by inability to pass laws which offended fundamental principles of justice. On the second ground, the Judicial Committee held the Acts of 1962 to be invalid as they involved a usurpation and infringement by the legislature of judicial powers inconsistent with the written Constitution of Ceylon, which, while not in terms vesting judicial functions in the judiciary, manifested an intention to secure in the judiciary a freedom from a political, legislative and executive control.

1560. It would thus appear that the decision is based upon the ground of severance of powers between legislature, judiciary and executive under the Ceylon Constitution and furnishes no support for the theory of implied limitations on the power of Parliament. On the contrary, the Judicial Committee while dealing with the first contention rejected the theory of limitations on the power of Parliament to make a law in violation of the fundamental principles of justice. The Judicial Committee, it is also noteworthy, expressly pointed out that there had been no amendment of the Constitution in accordance with Section 29(4) of the Constitution by two-thirds majority and as such they had not to deal with that situation.

1561. Another case to which reference was made on behalf of the petitioners was *The Bribery Commissioner v. Pedrik Ranasinghe* [1965] A.C. 172. In that case it was found that the members of the Bribery Tribunal had been appointed by the Governor-General on the advice of the Minister of Justice in accordance with Bribery Amendment Act but in contravention of Section 55 of the Ceylon Constitution. [Ceylon

(Constitution) Order
in Council, 1946] according to which the appointment of judicial officers was vested in the Judicial Service Commission. It was held that a legislature has no power to ignore the conditions of law-making that are imposed by the instrument which itself regulates its power to make law. This restriction exists independently of the question whether the legislature is sovereign, as is that of Ceylon.

1562. It would appear from the above that the point of controversy which arose for determination in that case was different from that which arises in the present case because we are not in this case concerned with any law made by a legislature in contravention of the Constitutional provisions Reference has been made on behalf of the petitioners to a passage in the judgment wherein while dealing with Sub-section (2) of Section 29 of the Ceylon Constitution, the provisions of which have been reproduced earlier, the Judicial Committee observed that the various clauses of Sub-section (2) set out entrenched religious and racial matters which shall not be the subject of legislation. It was further observed that those provisions represented the solemn balance of rights between the citizens of Ceylon, the fundamental conditions on which inter se they accepted the Constitution and these are therefore unalterable under the Constitution. It is contended that those observations show that the rights mentioned in Section 29(2) of the Ceylon Constitution which were similar to the fundamental rights in Part III of the Indian Constitution, were held by the Judicial Committee to be unalterable under the Constitution. There was, it is further submitted, similarity between the provisions of Section 29(3) of the Ceylon Constitution and Article 13(2) of the Indian Constitution because it was provided in Section 29(3) that any law made in contravention of Section 29(2) shall to the extent of such contravention be void.

1563. I find it difficult to accede to the contention that the Judicial Committee laid down in the above case that Sections 29(2) and 29(3) placed a restriction on the power of amendment of the Constitution under Section 29(4) of the Constitution. The question with which the Judicial Committee was concerned was regarding the validity of the appointment of the members of the Bribery Tribunal. Such appointment though made in compliance with the provisions of the Bribery Amendment Act, was in contravention of the requirements of Section 55 of the Ceylon Constitution. No question arose in that case relating to the validity of a Constitutional amendment brought about in compliance with Section 29(4) of the Constitution. Reference to the argument of the counsel for the

respondent on the top of page 187 of that case shows that it was conceded on his behalf that "there is no limitation at the moment on the right of amendment or repeal except the requirement of the requisite majority". The Judicial Committee nowhere stated that they did not agree with the above stand of the counsel for the respondent. Perusal of the judgment shows that the Judicial Committee dealt with Sections 18 and 29 together and pointed out the difference between a legislative law, which was required to be passed by a bare majority of votes under Section 18 of the Constitution, and a law relating to a Constitutional amendment which was required to be passed by a two-thirds majority under Section 29(4). Dealing with the question of sovereignty, the Judicial Committee observed:

A Parliament does not cease to be sovereign whenever its component members fail to produce among themselves a requisite majority, e.g., when in the case of ordinary legislation the voting is evenly divided or when in the case of legislation to amend the Constitution there is only a bare majority if the Constitution requires something more. The minority are entitled under the Constitution of Ceylon to have no amendment of it which is not passed by a two-thirds majority. The limitation thus imposed on some lesser majority of members does not limit the sovereign power of Parliament itself which can always, whenever it chooses, pass the amendment with the requisite majority.

It has been submitted on behalf of the respondents that the above passage indicates that the Judicial Committee took the view that the amendment of all the provisions of the Ceylon Constitution including those contained in Sub-sections (2) and (3) of Section 29 could be passed by a two-thirds majority. It is also stated that the restrictions imposed by Sub-section (2) of Section 29 of the Ceylon Constitution are on the power of ordinary legislation by simple majority and not on the power of making Constitutional amendment by two-thirds majority in compliance with Section 29(4) of the Constitution. It was in that sense that the Judicial Committee, according to the submission, used the word "entrenched". Our attention has also been invited to the observations on pages 83 and 84 of the Constitutional structure by K.C. Wheare 1963 Reprint that "these safeguards (contained in Section 29) of the rights of communities and religions could be repealed or amended by the Parliament of Ceylon provided it followed the prescribed procedure for amendment of the Constitution". These submissions may not be bereft of force, but it is, in my opinion, not necessary to dilate further upon this matter and discuss the provisions of the Ceylon Constitution at greater length. The point of controversy before us

would have to be decided in the light essentially of the provisions of our own Constitution. Suffice it to say that Ranasinghe's case does not furnish any material assistance to the stand taken on behalf of the petitioners.

1564. We may now advert to the case of *McCawley v. The King* [1920] A.C. 691. The said case related to the Constitution of Queensland in Australia. Queensland was granted a Constitution in 1859 by an Order in Council made on June 6. The Order in Council set up a Legislature in the territory consisting of the Queen, a Legislative Council and a Legislative Assembly and the law making power was vested in the Queen acting with the advice and consent of the Council and Assembly. Any law could be made for the "peace, welfare and good government of the colony", the phrase generally employed to denote the plenitude of sovereign legislative power even though that power be confined to certain subjects or within certain reservations. The Legislature passed a Constitution Act in 1867. By Section 2 of that Act the legislative body was declared to have power to make laws for the peace, welfare and good government of the colony in all cases whatsoever. The only express restriction on this comprehensive power was in Section 9 which required a two-thirds majority of the Council and of the Assembly as a condition precedent to the validity of legislation altering the Constitution of the Council. In 1916 the Industrial Arbitration Act was passed. The said Act authorised the Governor in Council to appoint the President or a judge of the Court of Industrial Arbitration to be a judge of the Supreme Court of Queensland. It was also provided that the judge so appointed shall have the jurisdiction of both offices, and shall hold office as a judge of the Supreme Court during good behaviour. The Governor in Council, by a commission, appointed the appellant who was the President of the Court of Industrial Arbitration to be a judge of the Supreme Court during good behaviour. The Supreme Court of Queensland held that the appellant was not entitled to have the oath of office administered to him or to take his seat as a member of the Supreme Court. Subsequently, the Supreme Court of Queensland gave a judgment in ouster against the appellant. The provisions of Section 6 of the Industrial Arbitration Act of 1916 under which the appellant had been appointed a judge of the Supreme Court were held to be inconsistent with the provisions of the

Constitution Act and as such void. On appeal four out of the seven judges of the High Court of Australia agreed with the Supreme Court of Queensland, while the three other judges took the opposite view and expressed the opinion that the appeal should be allowed. The matter was then taken up in appeal to the Privy Council. Lord Birkenhead giving the opinion of the Judicial Committee held (1) that the Legislature of Queensland had power, both under the Colonial Laws Validity Act, 1865, and apart therefrom, to authorise the appointment of a judge of the Supreme Court for a limited period; and (2) that Section 6 of the Industrial Arbitration Act authorised an appointment as a judge of the Supreme Court only for the period during which the person appointed was a judge of the Court of Industrial Arbitration. The appellant was further held to have been validly appointed. The above case though containing observations that a legislature has no power to ignore the conditions of law-making that are imposed by the instrument which itself regulates its power to make law, laid down the proposition that in the absence of a restriction, it is not possible to impose a restriction upon the legislative power. It was observed:

The Legislature of Queensland is the master of its own household, except in so far as its powers have in special cases been restricted. No such restriction has been established, and none in fact exists, in such a case as is raised in the issues now under appeal.

1565. It was also observed:

Still less is the Board prepared to assent to the argument, at one time pressed upon it, that distinctions may be drawn between different matters dealt with by the Act, so that it becomes legitimate to say of one section : â™This section is fundamental or organic; it can only be altered in such and such mannerâ™; and of another : â™This section is not of such a kind; it may consequently be altered with as little ceremony as any other statutory provision.â™

The decision in the above cited case can hardly afford any assistance to the petitioners.

On the contrary, there are passages in the judgment which go against the stand taken on behalf of the petitioners.

1566. Section 5 of the Colonial Laws Validity Act, 1865 to which there was a reference

in the McCawleyâ™s case reads as under:

Every colonial legislature shall have, and be deemed at all times to have had, full power within its jurisdiction to establish courts of judicature, and to abolish and reconstitute the same, and to alter the Constitution thereof, and to make provision for the administration of justice therein; and every representative legislature shall, in respect to the colony under its jurisdiction have, and be deemed at all times to have had, full power to make laws respecting the Constitution, powers, and procedure of such legislature; provided that such laws shall have been passed in such manner and form as may from time to time be required by any Act of Parliament,

letters patent, Order in Council or colonial law for the time being in force in the said colony.

Reference has been made during arguments to the decision of the Privy Council in the case of Attorney-General for New South Wales v. Trethowan [1932] A.C. 526. The said case related to a Bill passed by the New South Wales Parliament for repeal of a section providing for referendum as well as to another Bill for abolition of the Legislative Council. The Privy Council affirmed the decision of the Australian High Court which had held by majority that the Bills had not been passed in the "manner and form" within the meaning of Section 5 of the Colonial Laws Validity Act, and as such could not be presented for Royal assent. The Privy Council based its decision upon the language of the above section and the meaning of the word "passed" in that section. We are not concerned in the present case with the aforesaid provisions. There is also nothing in the conclusions at which I have arrived which runs counter to the principles laid down in the TrethowanTMs case.

1567. Another Australian case to which reference has been made during the course of arguments is The State of Victoria v. The Commonwealth. 45 Australian Law Journal Reports 251 It has been laid down by the High Court of Australia in that case that the Commonwealth Parliament in exercise of its powers under Section 51(ii) of the Constitution may include the Crown in right of a State in the operation of a law imposing a tax or providing for the assessment of a tax. The inclusion of the Crown in right of a State, according to the court, in the definition of "employer" in the Pay-roll Tax Assessment Act, thus making the Crown in right of a State liable to pay the tax in respect of wages paid to employees, including employees of departments engaged in strictly governmental functions, is a valid exercise of the power of the Commonwealth under the

above provisions of the Constitution. There was discussion in the course of the judgment on the subject of implied limitation on the Commonwealth legislative power under the Constitution arising from the federal nature of the Constitution and different views were expressed. Three of the Judges, including Barwick C.J. took the view that there was no such limitation. As against that, four Judges were of the opinion that there was an implied limitation on Commonwealth legislative power under the Constitution but the impugned Act did not offend such limitation. Opinion was expressed that the Commonwealth Parliament while acting under the legislative entry of taxation could not so use the power of taxation as to destroy the States in a federal structure. The question as to what is the scope of the power of amendment was not considered in that case. The above case as such cannot be of much assistance for determining as to whether there are any implied limitations on the power to make Constitutional amendment.

1568. I am, therefore, of the opinion that the majority view in the *Golak Nath*™s case that Parliament did not have the power to amend any of the provisions of Part III of the Constitution so as to take away or abridge the fundamental rights cannot be accepted to be correct. Fundamental rights contained in Part III of our Constitution can, in my opinion, be abridged or taken away in compliance with the procedure prescribed by Article 368, as long the basic structure of the Constitution remains unaffected. 1569. We may now deal with the Twentyfourth Amendment. It has sought to make clear matters regarding which doubt had arisen and conflicting views had been expressed by this Court. We may in this context set forth the Statement of Objects and Reasons of the Constitution (Twentyfourth Amendment) Bill. The Statement of Objects and Reasons reads as under:

STATEMENT OF OBJECTS AND REASONS

The Supreme Court in the well-known *Golak Nath*™s case 1967 (2 SCR 762) reversed, by a narrow majority, its own earlier decisions upholding the power of Parliament to amend all parts of the Constitution including Part III relating to fundamental rights. The result of the judgment is that Parliament is considered to have no power to take away or curtail any of the fundamental rights guaranteed by Part III of the Constitution even if it becomes necessary to do so for giving effect to the Directive Principles of State Policy and for the attainment of the objectives set out in the Preamble to the Constitution. It is, therefore, considered necessary to provide expressly that Parliament has power to amend any provision of the Constitution so as to include the provisions of Part III within the scope of the amending power.

1570. The Bill seeks to amend Article 368 suitably for the purpose and makes it clear that Article 368 provides for amendment of the Constitution as well as procedure therefor.

The Bill further provides that when a Constitution Amendment Bill passed by both Houses of Parliament is presented to the President for his assent, he should give his assent thereto. The Bill also seeks to amend Article 13 of the Constitution to make it inapplicable to any amendment of the Constitution under Article 368.

1571. Section 2 of the Bill which was ultimately passed as the Constitution (Twentyfourth Amendment) Act has added a clause in Article 13 that nothing in that article would apply to any amendment of the Constitution made under Article 368. As a result of Section 3 of the Amendment Act, Article 368 has been re-numbered as Clause (2) thereof and the marginal heading now reads "Power of Parliament to amend the Constitution and procedure therefor". Non-obstante Clause (1) has been inserted in the article to emphasise the fact that the power exercised under that article is constituent power, not subject to the other provisions of the Constitution, and embraces within itself addition, variation and repeal of any provision of the Constitution. Amendment has also been made so as to make it obligatory for the President to give his assent to the Amendment Bill after it has been passed in accordance with the article. Clause (3) has further been added in Article 368 to the effect that nothing in Article 13 would apply to an amendment made under Article 368. Although considerable arguments have been addressed before us on the point as to whether the power of amendment under Article 368 includes the power to amend Part III so as to take away or abridge fundamental rights, it has not been disputed before us that the Constitution (Twentyfourth Amendment) Act was passed in accordance with the procedure laid down in Article 368 of the Constitution as it existed before the passing of the said Act. In view of what has been discussed above at length. I find no infirmity in the Constitution (Twentyfourth Amendment) Act. 1, therefore, uphold the validity of the said Act.

1572. We may now deal with the Constitution (Twentyfifth Amendment) Act, 1971. The Twentyfifth Amendment has made three material changes:

(i) It has amended Article 31(2) in two respects.

(a) It substitutes the word "amount" for the word "compensation" for property acquired or requisitioned.

(b) It has provided that the law for the purpose of acquisition or requisition shall not be called in question on the ground that the whole or any part of the "amount" is to be given otherwise than in cash.

(ii) It has provided that the fundamental right to acquire, hold and dispose of property under Article 19(1)(f) cannot be invoked in respect of any such law as is referred to in Article 31(2).

(iii) It has inserted Article 31C as an overriding article which makes the fundamental rights conferred by Articles 14, 19 and 31 inapplicable to certain categories of laws passed by the Parliament or by any State Legislature.

So far as the substitution of the word "amount" for the word "compensation" for property acquired or requisitioned in Article 31(2) is concerned, we find that this Court held in

Mrs. Bela Bose [1954] S.C.R. 558 case that by the guarantee of the right to compensation

for compulsory acquisition under Article 31(2), before it was amended by the Constitution (Fourth Amendment) Act, the owner was entitled to receive a "just equivalent" or "full indemnification". In P. Vajravelu Mudaliar[™]s [1965] 1 S.C.R. 614

case this Court held that notwithstanding the amendment of Article 31(2) by the Constitution (Fourth Amendment) Act and even after the addition of the words "and no

such law shall be called in question in any Court on the ground that the compensation

provided by that law is not adequate", the expression "compensation continued to have

the same meaning as it had in Article 31(2) before it was amended, viz., just equivalent or

full indemnification. Somewhat different view was taken by this Court thereafter, in the

case of Shantilal Mangaldas [1969] 3 S.C.R. 341. In the case of P. Vajravelu Mudaliar

(supra) it was observed that the Constitutional guarantee was satisfied only if a just

equivalent of the property was given to the owner. In the case of Shantilal Mangaldas

(supra) it was held that "compensation" being itself incapable of any precise determination, no definite connotation could be attached thereto by calling it "just

equivalent" or "full indemnification", and under Acts enacted after the amendment of

Article 31(2) it is not open to the Court to call in question the law providing for

compensation on the ground that it is inadequate, whether the amount of compensation is

fixed by the law or is to be determined according to principles specified therein (see

observations of Shah J. on page 596 in the case of R.C. Cooper v. Union [1970] 3 S.C.R.

530. After further discussion of the views expressed in those two cases, Shah J. speaking

for the majority, observed:

Both the lines of thought which converge in the ultimate result, support the view that the principle specified by the law for determination of

compensation is beyond the pale of challenge if it is relevant to the determination of compensation and is a recognized principle applicable in the determination of compensation for property compulsorily acquired and the principle is appropriate in determining the value of the class of property sought to be acquired. On the application of the view expressed in P. Vajravelu Mudaliarâ€™s case (supra) or in Shantilal Mangaldasâ€™s case (supra) the Act, in our judgment, is liable to be struck down as it fails to provide to the expropriated banks compensation determined according to relevant principles.

1573. The amendment in Article 31(2) made by the Twentyfifth Amendment by substituting the word "amount" for the word "compensation" is necessarily intended to get over the difficulty caused by the use of the word "compensation". As the said word was held by this Court to have a particular connotation and was construed to mean just equivalent or full indemnification the amendment has replaced that word by the word "amount". In substituting the word "amount" for "compensation" the Amendment has sought to ensure that the amount determined for acquisition or requisition of property need not be just equivalent or full indemnification and may be, if the legislature so chooses, plainly inadequate. It is not necessary to further dilate upon this aspect because whatever may be the connotation of the word "amount", it would not affect the validity of the amendment made in Article 31(2).

1574. Another change made in Article 31(2) is that the law for the purpose of acquisition or requisition shall not be called in question on the ground that the whole or any part of the "amount" fixed or determined for the acquisition or requisition of the property is to be given otherwise than in cash. I have not been able to find any infirmity in the above changes made in Article 31(2).

1575. According to Clause (2B) which has been added as a result of the Twentyfifth Amendment in Article 31, nothing in Sub-clause (f) of Clause (1) of Article 19 shall affect any such law as is referred to in Clause (2). In this connection we find that this Court held in some cases that Articles 19(1)(f) and 31(2) were exclusive. In A.K. Gopalan v. The State of Madras [1950] S.C.R. 88 a person detained pursuant to an order made in exercise of the power conferred by the Preventive Detention Act applied to this Court for a writ of habeas corpus claiming that the Act contravened the guarantee under Articles 19, 21 and 22 of the Constitution. The majority of this Court (Kania C.J., and Patanjali Sastri, Mahajan, Mukherjea and Das JJ.) held that Article 22 being a complete code relating to preventive detention, the validity of an order of detention must be determined strictly according to the terms and "within the four corners of that Article". They held that a person detained may not claim that the freedom guaranteed under Article 19(1)(c) was infringed by his detention, and that validity of the law providing for making orders of detention will not be tested in the light of the reasonableness of the restriction imposed thereby on the freedom of movement, nor on the ground that his right to personal liberty is infringed otherwise than according to the procedure established by law. Fazl Ali, J. expressed a contrary view. This case formed the nucleus of the theory that the protection of the guarantee of a fundamental freedom must be adjudged in the light of the object of State action in relation to the individual's right and not upon its effect upon the guarantee of the fundamental freedom, and as a corollary thereto, that the freedoms under Articles 19, 21, 22 and 31 are exclusive-each article enacting a code relating to protection of distinct rights (see p. 571 in the case of R.C. Cooper, (supra)). The view expressed in Gopalan's case (supra) was reaffirmed in Ram Singh and Ors. v. The State of Delhi [1951] S.C.R. 451. The principle underlying the judgment of the majority was extended to the protection of the right to property and it was held that Article 19(1)(f) and Article 31(2) were mutually exclusive in their operation. In the case of State of Bombay v. Bhanji Munji and Anr. [1955] 1 S.C.R. 777 this Court held that Article 19(1)(f) read with Clause (5) postulates the existence of property which can be enjoyed and over which rights can be exercised because otherwise the reasonable restrictions contemplated by Clause (5) could not be brought into play. If there

is no property which can be acquired, held or disposed of, no restriction can be placed on the exercise of the right to acquire, hold or dispose it of. In Kavalappara Kottarathil Kochuniâ TMs [1960] 3 S.C.R. 887 case, Subba Rao J. delivering the judgment of the majority of the Court, observed that Clause (2) of Article 31 alone deals with compulsory acquisition of property by the State for a public purpose, and not Article 31(1) and he proceeded to hold that the expression "authority of law" means authority of a valid law, and on that account validity of the law seeking to deprive a person of his property is open to challenge on the ground that it infringes other fundamental rights, e.g., under Article 19(1)(f). It was also observed that after the Constitution (Fourth Amendment) Act, 1955 Bhanji Munjiâ TMs case (supra) "no longer holds the field". After the decision in K.K. Kochuniâ TMs case (supra) there arose two divergent lines of authority. According to one view, "authority of law" in Article 31(1) was liable to be tested on the ground that it violated other fundamental rights and freedoms, including the right to hold property guaranteed by Article 19(1)(f). The other view was that "authority of a law" within the meaning of Article 31(2) was not liable to be tested on the ground that it impaired the guarantee of Article 19(1)(f) in so far as it imposed substantive restrictions- though it may be tested on the ground of impairment of other guarantees. In the case of R.C. Cooper (supra), Shah J. speaking for the majority held that in determining the impact of State action upon Constitutional guarantees which are fundamental, the extent of protection against impairment of a fundamental right is determined not by the object of the Legislature nor by the form of the action, but by its direct operation upon the individualâ TMs rights. It was further observed: We are therefore unable to hold that the challenge to the validity of the provision for acquisition is liable to be tested only on the ground of noncompliance with Article 31(2). Article 31(2) requires that property must be acquired for a public purpose and that it must be acquired under a law with characteristics set out in that Article. Formal compliance with the conditions under Article 31(2) is not sufficient to negative the protection of the guarantee of the right to property. Acquisition must be under the authority of a law and the expression "law" means a law which is within the competence of the Legislature, and does not impair the guarantee of the rights in Part III. We are unable, therefore, to agree that Article

19(1)(f) and 31(2) are mutually exclusive.

1576. The Twentyfifth Amendment seeks to overcome the effect of the above decision in

R.C. Cooper's case. It has sought to resolve the earlier conflict of views noticeable in thi

s

respect in the judgments of this Court. Provision has accordingly been made that the

fundamental right to acquire, hold or dispose of property under Article 19(1)(f) cannot be

invoked in respect of any such law as is referred to in Article 31(2). In view of what has

been discussed earlier while dealing with the Twentyfourth Amendment, the change made by addition of Clause (2B) in Article 31(2) is permissible under Article 368 and

cannot be held to be invalid.

1577. We may now deal with Article 31C, introduced as a result of the Twentyfifth

Amendment. Perusal of this article which has been reproduced in the earlier part of this

judgment shows that the article consists of two parts. The first part states that

notwithstanding anything contained in Article 13, no law giving effect to the policy of the

State towards securing the principles specified in Clause (b) or Clause (c) of Article 39

shall be deemed to be void on the ground that it is inconsistent with or takes away or

abridges any of the rights conferred by Article 14, Article 19 or Article 31.

According to

the second part of this article, no law containing a declaration that it is for giving effect

to

such policy shall be called in question in any court on the ground that it does not give

effect to such policy. There then follows the proviso, according to which where such law

is made by the Legislature of a State, the provisions of the article shall not apply thereto

unless such law, having been reserved for the consideration of the President, has received

his assent.

1578. The first part of Article 31C is similar to Article 31A except in respect of the

subject matter. Article 31A was inserted by the Constitution (First Amendment) Act,

1951. Clause (1) of Article 31A as then inserted was in the following words:

(1) Notwithstanding anything in the foregoing provisions of this Part, no law providing for the acquisition by the State of any estate or of any rights therein or for the extinguishment or modification of any such rights shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by, any provisions of this Part:

Provided that where such law is a law made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent.

Subsequently, Clause (1) of Article 31A was amended by the Constitution (Fourth

Amendment) Act, 1955. New Clause (1) was in the following words:

(1) Notwithstanding anything contained in Article 13, no law providing for (a) the acquisition by the State of any estate or of any rights therein or the extinguishment or modification of any such rights, or

(b) the taking over of the management of any property by the State for a limited period either in the public interest or in order to secure the proper management of the property, or

(c) the amalgamation of two or more corporations either in the public interest or in order to secure the proper management of any of the corporations, or

(d) the extinguishment or modification of any rights of managing agents, secretaries and treasurers, managing directors, directors or managers of corporations, or of any voting rights of shareholders thereof, or

(e) the extinguishment or modification of any rights accruing by virtue of any agreement, lease or licence for the purpose of searching for, or winning, any mineral or mineral oil, or the premature termination or cancellation of any such agreement, lease or licence,

shall be deemed to be void on the ground that it is inconsistent with, or takes away or

abridges any of the rights conferred by Article 14, Article 19 or Article 31:

Provided that where such law is a law made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law,

having been reserved for the consideration of the President, has received his assent.

Clause (b) and (c) of Article 39 referred to in Article 31C read as under:

39. The State shall, in particular, direct its policy towards securing...

(b) that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;

(c) that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;

...

1579. It would appear from the above that while Article 31A dealt with a law providing

for the acquisition by the State of any estate or of any rights therein or the extinguishment

of

or modification of such rights or other matters mentioned in Clauses (b) to (e) of that

article, Article 31C relates to the securing of the objective that the ownership and control

of the material resources of the community are so distributed as best to subserve the

common good and that operation of the economic system does not result in the concentration of wealth and means of production to the common detriment. But for the

difference in subjects, the language of the first clause of Article 31A and that of the first

part

of Article 31C is identical. Both Articles 31A and 31C deal with right to property.

Article 31A deals with certain kinds of property and its effect is, broadly speaking, to

take those kinds of property from the persons who have rights in the said property. The

objective of Article 31C is to prevent concentration of wealth and means of production

and to ensure the distribution of ownership and control of the material resources of the

community for the common good. Article 31C is thus essentially an extension of the

principle which was accepted in Article 31A. The fact that the provisions of Article 31C

are more comprehensive and have greater width compared to those of Article 31A would

not make any material difference. Likewise, the fact that Article 31A deals with law

providing for certain subjects, while Article 31C deals with law giving effect to the

policy towards securing the principles specified in Clause (b) or Clause (c) of Article 39,

would not detract from the conclusion that Article 31C is an extension of the principle

which was accepted in Article 31A. Indeed, the legislature in making a law giving effect

to the policy of the State towards securing the principles specified in Clause (b) or Clause

(c) of Article 39 acts upon the mandate contained in Article 37, according to which the

Directive Principles are fundamental in the governance of the country and it shall be the duty of the State to apply those principles in making laws. If the amendment of the Constitution by which Article 31A was inserted was valid, I can see no ground as to how the Twentyfifth Amendment relating to the insertion of the first part of Article 31C can be held to be invalid. The validity of the First Amendment which introduced Article 31A was upheld by this Court as long ago as 1952 in the case of Sankari Prasad v. Union of India (supra). Article 31A having been held to be valid during all these years, its validity cannot now be questioned on account of the doctrine of stare decisis. Though the period for which Sankari Prasadâ€™s case stood unchallenged was not very long, the effects which have followed in the passing of the State laws on the faith of that decision, as observed by Wanchoo J. in Golak Nathâ€™s case, are so overwhelming that we should not disturb the decision in that case upholding the validity of the First Amendment. It cannot be disputed that millions of acres of land have changed hands and millions of new titles in agricultural lands which have been created and the State laws dealing with agricultural land which have been passed in the course of the years after the decision in Sankari Prasadâ€™s case have brought about an agrarian revolution. Agricultural population constitutes a vast majority of the population in this country. In these circumstances, it would in my opinion be wrong to hold now that the decision upholding the First Amendment was not correct, and thus disturb all that has been done during these years and create chaos into the lives of millions of our countrymen who have benefited by these laws relating to agrarian reforms. I would, therefore, hold that this is one of the fittest cases in which the principle of stare decisis should be applied. The ground which sustained the validity of Clause (1) of Article 31A, would equally sustain the validity of the first part of Article 31C. I may in this context refer to the observations of Brandeis J

in *Lessee v. Garnett* (258) U.S. 130 while upholding the validity of the 19th Amendment, according to which the right of citizens of the United States to vote shall not be denied or abridged by the United States or by States on account of sex. This case negated the contention that a vast addition to the electorate destroyed the social compact and the residuary rights of the States. Justice Brandeis observed: This amendment is in character and phraseology precisely similar to the 15th. For each the same method of adoption was pursued. One cannot be valid and the other invalid. That the 15th is valid...has been recognized and acted upon for half a century.... The suggestion that the 15th was incorporated in the Constitution not in accordance with law, but practically as a war measure which has been validated by acquiescence cannot be entertained.

1580. We may now deal with the second part of Article 31C, according to which no law

containing a declaration that it is for giving effect to the policy of State towards securin

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the principles specified in Clause (b) or Clause (c) of Article 39 shall be called in question in any court on the ground that it does not give effect to such policy. The effect

of the second part is that once the declaration contemplated by that article is made, the

validity of such a law cannot be called in question in any court on the ground that it is

inconsistent with or takes away or abridges any of the rights conferred by Articles 14, 19

or 31 of the Constitution. The declaration thus gives a complete protection to the

provisions of law containing the declaration from being assailed on the ground of being

violative of Articles 14, 19 or 31. However tenuous the connection of a law with the

objective mentioned in Clause (b) and Clause (c) of Article 39 may be and however

violative it may be of the provisions of Articles 14, 19 and 31 of the Constitution, it

cannot be assailed in a court of law on the said ground because of the insertion of the

declaration in question in the law. The result is that if an Act contains 100 sections and 9

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of them relate to matters not connected with the objectives mentioned in Clauses (b) and

(c) of Article 39 but the remaining five sections have some nexus with those objectives

and a declaration is granted by the Legislature in respect of the entire Act, the 95 section

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which have nothing to do with the objectives of Clauses (b) and (c) of Article 39, would

also get protection. It is well-known that State Legislatures are quite often swayed by

local and regional considerations. It is not difficult to conceive of laws being made by a State Legislature which are directed against citizens of India who hail from other States on the ground that the residents of the State in question are economically backward. For example, a law might be made that as the old residents in the State are economically backward and those who have not resided in the State for more than three generations have an affluent business in the State or have acquired property in the State, they shall be deprived of their business and property with a view to vest the same in the old residents of the State. Such a law if it contains the requisite declaration, would be protected and it would not be permissible to assail it on the ground of being violative of Articles 14, 19 and 31 of the Constitution even though such a law strikes at the integrity and unity of the country. Such a law might also provoke the Legislatures of other States to make laws which may discriminate in the economic sphere against the persons hailing from the State which was the first to enact such discriminate law. There would thus be a chain reaction of laws which discriminate between the people belonging to different States and which in the very nature of things would have a divisive tendency from a national point of view. The second part of Article 31C would thus provide the cover for the making of laws with a regional or local bias even though such laws imperil the oneness of the nation and contain the dangerous seeds of national disintegration. The classic words of Justice Holmes have a direct application to a situation like this. Said the great Judge: I do not think the United States would come to an end if we lost our power to declare an Act of Congress void. I do think the Union would be imperiled if we could not make that declaration as to the laws of the several States." (Holmes, Collected Legal Papers (1920) 295-96). The fact that the assent of the President would have to be obtained for such a law might not provide an effective safeguard because occasions can well be visualized when the State concerned might pressurise the Centre and thus secure the assent of the President. Such occasions would be much more frequent when the party in power at the Centre has

to depend upon the political support of a regional party which is responsible for the law

in question passed by the State Legislature.

1581. It seems that while incorporating the part relating to declaration in Article 31C, the

sinister implications of this part were not taken into account and its repercussions on the

unity of the country were not realised. In deciding the question relating to the validity of

this part of Article 31C, we should not, in my opinion, take too legalistic a view. A

legalistic judgment would indeed be a poor consolation if it affects the unity of the

country. It would be apposite in this context to reproduce a passage from Story's

Commentaries on the Constitution of the United States wherein he adopted the admonition of Burke with a slight variation as under:

The remark of Mr. Burke may, with a very slight change of phrase be addressed as an admonition to all those, who are called upon to frame, or to interpret a Constitution. Government is a practical thing made for the happiness of mankind, and not to furnish out a spectacle of uniformity to gratify the schemes of visionary politicians. The business of those, who are called to administer it, is to rule, and not to wrangle. It would "be a poor compensation, that one had triumphed in a dispute, whilst we had lost an empire; that we had frittered down a power, and at the same time had destroyed the republic (para 456).

1582. The evil consequences which would flow from the second part of Article 31C would not, however, be determinative of the matter. I would therefore examine the matter

from a legal angle. In this respect I find that there can be three types of Constitutional

amendments which may be conceived to give protection to legislative measures and make

them immune from judicial scrutiny or attack in court of law.

1583. According to the first type, after a statute has already been enacted by the

Legislature a Constitutional amendment is made in accordance with Article 368 and the

said statute is inserted in the Ninth Schedule under Article 31B. Such a statute or any of

the provisions thereof cannot be struck down in a court of law and cannot be deemed to

be void or ever to have become void on the ground that the statute or any provisions

thereof is inconsistent with or takes away or abridges any of the rights conferred by any

provision of Part III. In such a case, the provisions of the entire statute are placed before

each House of Parliament. It is open to not less than one-half of the members of each

House and not less than two-thirds of the members of each House voting and present

after applying their mind to either place the statute in the Ninth Schedule in its entirety

or

a part thereof or not to do so. It is only if not less than one-half of the total members of

each House of Parliament and not less than two-thirds of the members present and voting in each House decide that the provisions of a particular statute should be protected under Article 31B either in their entirety or partly that the said provisions are inserted in the Ninth Schedule. A Constitutional amendment of this type relates to an existing statute of which the provisions can be examined by the two Houses of Parliament and gives protection to the statute from being struck down on the ground of being violative of any provision of Part III of the Constitution. Such an amendment was introduced by the Constitution (First Amendment) Act, 1951 and its validity was upheld in *Sankari Prasad* ¹⁵⁸⁴ case (supra).

The second type of Constitutional amendment is that where the amendment specifies the subject in respect of which a law may be made by the Legislature and the amendment also provides that no law made in respect of that subject shall be deemed to be void on the ground that it is inconsistent with or takes away or abridges any of the rights conferred by Part III of the Constitution. In such a case the law is protected even though it violates the provisions of Part III of the Constitution. It is, however, open in such a case to the court, on being moved by an aggrieved party, to see whether the law has been made for the purpose for which there is Constitutional protection. The law is thus subject to judicial review and can be struck down if it is not for the purpose for which protection has been afforded by the Constitutional amendment.

To this category belong the laws made under Article 31A of the Constitution which has specified the subjects for which laws might be made, and gives protection to those laws. It is always open to a party to assail the validity of such a law on the ground that it does not relate to any of the subjects mentioned in Article 31A. It is only if the court finds th

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the impugned law relates to a subject mentioned in Article 31A that rite
protection
contemplated by that article would be afforded to the impugned law and not
otherwise.
Article 31A was introduced by the Constitution (First Amendment) Act, 1951 and
as
mentioned earlier, the validity of the First Amendment was upheld in *Sankari
Prasadâ™s*
case (supra).
1585. The third type of Constitutional amendment is one, according to which a
law made
for a specified object is protected from attack even though it violates Articles
14, 19 and
31. The Constitutional amendment further provides that the question as to
whether the
law is made for the specified object is not justiciable and a declaration for
the purpose
made by the legislature is sufficient and would preclude the court from going
into the
question as to whether the law is made for the object prescribed by the
Constitutional
amendment. To such category belongs that part of Twentyfifth Amendment which
inserted Article 31C when taken along with its second part. The law made under
Article
31C is not examined and approved for the purpose of protection by not less than
one-half
of the members of each House of Parliament and not less than two-thirds of the
members
present and voting in each House, as is necessary in the case of laws inserted
in the Ninth
Schedule of the Constitution. Nor can the law made under Article 31C be subject
to
judicial review with a view to find out whether the law has, in fact, been made
for an
object mentioned in Article 31C. Article 31C thus departs from the scheme of
Article
31A, because while a judicial review is permissible under Article 31A to find
out as to
whether a law has been made for any of the objects mentioned in Article 31A,
such a
judicial review has been expressly prohibited under Article 31C. The result is
that even if
a law made under Article 31C can be shown in court of law to have been enacted
not for
the purpose mentioned in Article 31C but for another purpose, the law would
still be
protected and cannot be assailed on the ground of being violative of Articles
14, 19 and
31 of the Constitution because of the declaration made by the legislature as
contemplated
by second part of Article 31C. It may also be mentioned in this context that
such a law
can be passed by a bare majority in a legislature even though only the minimum
number
of members required by the quorum, which is generally one-tenth of the total
membership of the legislature, are present at the time the law is passed.
1586. The effect of the above amendment is that even though a law is in

substance not in furtherance of the objects mentioned in Articles 39(b) and (c) and has only a slender connection with those objects, the declaration made by the Legislature would stand in the way of a party challenging it on the ground that it is not for the furtherance of those objects. A power is thus being conferred upon the Central and State Legislatures as a result of this provision to make a declaration in respect of any law made by them in violation of the provisions of Articles 14, 19 and 31 and thus give it protection from being assailed on that ground in a court of law. The result is that even though for the purpose of making an amendment of the Constitution an elaborate procedure is provided in Article 368, power is now given to a simple majority in a State or Central Legislature, in which only the minimum number of members are present to satisfy the requirement of quorum, to make any law in contravention of the provisions of Articles 14, 19 and 31 and make it immune from attack by inserting a declaration in that law. It is natural for those who pass a law to entertain a desire that it may not be struck down. There would, therefore, be an inclination to make an Act immune from attack by inserting such a declaration even though only one or two provisions of the Act have a connection with the objects mentioned in Article 39(b) and (c). Articles 14, 19 and 31 can thus be reduced to a dead letter, an ineffective purposeless showpiece in the Constitution.

1587. The power of making an amendment is one of the most important powers which can be conferred under the Constitution. As mentioned earlier, according to Finer, the amending clause is so fundamental to a Constitution that it may be called the Constitution itself while according to Burgess, the amending clause is the most important part of a Constitution. This circumstance accounts for the fact that an elaborate procedure is prescribed for the amending of the Constitution. The power of amendment being of such vital importance can neither be delegated nor can those vested with the authority to amend abdicate that power in favour of another body. Further, once such a power is granted, either directly or in effect, by a Constitutional amendment to the State Legislatures, it would be difficult to take away that power, because it can be done only by means of a Constitutional amendment and the States would be most reluctant, having got such a power, to part with it. In empowering a State Legislature to make laws violative of Articles 14, 19 and 31 of the Constitution and in further empowering the State Legislature to make laws immune from attack on the ground of being violative of Articles 14, 19 and 31 by inserting the requisite declaration, the authority vested with the power to

make amendment under Article 368 (viz., the prescribed majority in each House of Parliament) has, in effect, delegated or granted the power of making amendment in important respects to a State Legislature. Although the objects for which such laws may be made have been specified, the effect of the latter part of Article 31C relating to the declaration is that the law in question may relate even to objects which have not been specified. Article 31C taken along with the second part relating to the declaration departs from the scheme of Article 31A because while the protection afforded by Article 31A is to laws made for specified subjects, the immunity granted under Article 31C can be availed of even by laws which have not been made for the specified objects. The law thus made by the State Legislatures would have the effect of pro-tanto amendment of the Constitution. Such a power, as pointed out earlier, can be exercised by the State Legislature by a simple majority in a House wherein the minimum number of members required by the rule of quorum are present.

1588. In Re Initiative and Referendum Act [1919] A.C. 935 the Judicial Committee after referring to a previous decision wherein the Legislature of Ontario was held entitled to entrust to a Board of Commissioners authority to enact regulations relating to Taverns observed on page 945:

But it does not follow that it can create and endow with its own capacity a new legislative power not created by the Act to which it owes its own existence. Their Lordships do no more than draw attention to the gravity of the Constitutional questions which thus arise. If it is impermissible for a legislature to create and endow with its own capacity a legislative power not created by the Act to which it owes its own existence, it should, in my opinion, be equally impermissible in the face of Article 368 in its present form under our Constitution, for the amending authority to vest its amending power in another authority like a State Legislature. It has to be emphasised in this context that according to

Article 368, an amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament. The word "only" has a significance and shows that as long as Article 368 exists in its present form, the other methods of amendment are ruled out.

1589. It may be mentioned that apart from the question of legislative competence, the articles for the violation of which statutes have been quashed in overwhelming majority of cases are Articles 14, 19 and 31. The question as to whether the impugned statute is

beyond legislative competence can be agitated despite the protection of Article 31C in the same way as that question can be agitated despite the protection of Article 31A, but in other respects, as would appear from what has been stated above, Article 31C goes much beyond the scope of Articles 31A and 31B.

1590. In a federal system where the spheres of legislative powers are distributed between the Central Legislature and the State Legislatures, there has to be provided a machinery to decide in case of a dispute as to whether the law made by the State Legislatures encroaches upon the field earmarked for the Central Legislature as also a dispute whether a law made by the Central Legislature deals with a subject which can be exclusively dealt with by the State Legislatures. This is true not only of a federal system but also in a Constitutional set up like ours wherein the Constitution-makers, though not strictly adopting the federal system, have imbibed the features of a federal system by distributing and setting apart the spheres of legislation between the Central Legislature and the State Legislatures. The machinery for the resolving of disputes as to whether the Central Legislature has trespassed upon the legislative field of the State Legislatures or whether the State Legislatures have encroached upon the legislative domain of the Central Legislature is furnished by the courts and they are vested with the powers of judicial review to determine the validity of the Acts passed by the legislatures. The power of judicial review is, however, confined not merely to deciding whether in making the impugned laws the Central or State Legislatures have acted within the four corners of the legislative lists earmarked for them; the courts also deal with the question as to whether the laws are made in conformity with and not - in violation of the other provisions of the Constitution. Our Constitution-makers have provided for fundamental rights in Part III and made them justiciable. As long as some fundamental rights exist and are a part of the Constitution, the power of judicial review has also to be exercised with a view to see that the guarantees afforded by those rights are not contravened. Dealing with draft Article 25 (corresponding to present Article 32 of the Constitution) by which a right is given to move the Supreme Court for enforcement of the fundamental rights, Dr. Ambedkar speaking in the Constituent Assembly on December 9, 1948 observed: If I was asked to name any particular article in this Constitution as the most important-an article without which this Constitution would be a

nullity-I could not refer to any other article except this one. It is the very soul of the Constitution and the very heart of it and I am glad that the House has realised its importance. (CAD debates, Vol. VII, p. 953). Judicial review has thus become an integral part of our Constitutional system and a power has been vested in the High Courts and the Supreme Court to decide about the Constitutional validity of provisions of statutes. If the provisions of the statute are found to be violative of any article of the Constitution, which is the touchstone for the validity of all laws, the Supreme Court and the High Courts are empowered to strike down the said provisions. The one sphere where there is no judicial review for finding out whether there has been infraction of the provisions of Part III and there is no power of striking down an Act, regulation or provision even though it may be inconsistent with or takes away or abridges any of the rights conferred by Part III of the Constitution is that incorporated in Article 31B taken along with the Ninth Schedule. Article 31B was inserted, as mentioned earlier, by the Constitution (First Amendment) Act. According to Article 31B, none of the Acts and regulations specified in the Ninth Schedule nor any of the provisions thereof shall be deemed to be void or ever to have become void on the ground that such Act, regulation or provision is inconsistent with or takes away or abridges any of the rights conferred by any provision of Part III of the Constitution. The one thing significant to be noted in this connection, however, is that the power under Article 31B of exclusion of judicial review, which might be undertaken for the purpose of finding whether there has been contravention of any provision of Part III, is exercised not by the legislature enacting the impugned law but by the authority which makes the Constitutional amendment under Article 368, viz., the prescribed majority in each House of Parliament. Such a power is exercised in respect of an existing statute of which the provisions can be scrutinized before it is placed in the Ninth Schedule. It is for the prescribed majority in each House to decide whether the particular statute should be placed in the Ninth Schedule, and if so, whether it should be placed there in its entirety or partly. As against that, the position under Article 31C is that though judicial review has been excluded by the authority making the Constitutional amendment, the law in respect of which the judicial review has been excluded is one yet to be passed by the legislatures. Although the object for which such a law can be enacted has been specified in

Article

31C, the power to decide as to whether the law enacted is for the attainment of that object has been vested not in the courts but in the very legislature which passes the law. The

vice of Article 31C is that even if the law enacted is not for the object mentioned in

Article 31C, the declaration made by the legislature precludes a party from showing that

the law is not for that object and prevents a court from going into the question as to

whether the law enacted is really for that object. The kind of limited judicial review

which is permissible under Article 31A for the purpose of finding as to whether the law

enacted is for the purpose mentioned in Article 31A has also been done away with under

Article 31C. The effect of the declaration mentioned in Article 31C is to grant protection

to the law enacted by a legislature from being challenged on grounds of contravention of

Articles 14, 19 and 31 even though such a law can be shown in the court to have not been

enacted for the objects mentioned in Article 31C. Our Constitution postulates Rule of

Law in the sense of supremacy of the Constitution and the laws as opposed to arbitrariness. The vesting of power of exclusion of judicial review in a

legislature,

including State legislature, contemplated by Article 31C, in my opinion strikes at the

basis structure of the Constitution. The second part of Article 31C thus goes beyond the

permissible limit of what constitutes amendment under Article 368.

1591. It has been argued on behalf of the respondents that the declaration referred to in

Article 31C would not preclude the court from finding whether a law is for giving effect

to the policy of the State towards securing the principles specified in Clauses (b) and (c)

of Article 39 and that if an enactment is found by the court to be not for securing the

aforesaid objectives, the protection of Article 31C would not be available for such

legislation.

1592. I find it difficult to accede to this contention in view of the language of Article 31

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pertaining to the declaration. The above contention would have certainly carried weight if

the second part of the article relating to the declaration were not there. In the absence of

the declaration in question, it would be open to, and indeed necessary, for the court to

find whether the impugned law is for giving effect to the policy of the State towards

securing the principles specified in Clauses (b) or (c) of Article 39 before it can uphold

the validity of the impugned law under Article 31C. Once, however, a law contains such a declaration, the declaration would stand as bar and it would not be permissible for the court to find whether the impugned law is for giving effect to the policy mentioned in Article 31C. Article 31C protects the law giving effect to the policy of the State towards securing the principles specified in Clauses (b) or (c) of Article 39 and at the same time provides that no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy. It is, therefore, manifest that once a law contains the requisite declaration, the court would be precluded from going into the question that the law does not give effect to the policy of the State towards securing the principles specified in Clauses (b) or (c) of Article 39. In view of the conclusive nature of the declaration, it would, in my opinion, be straining the language of Article 31C to hold that a court can despite the requisite declaration go into the question that it does not give effect to the policy of the State towards securing the principles specified in Clauses (b) or (c) of Article 39. The result is that if a law contains the declaration contemplated by Article 31C, it would have complete protection from being challenged on the ground of being violative of Articles 14, 19 and 31 of the Constitution, irrespective of the fact whether the law is or is not for giving effect to the policy of the State towards securing the principles specified in Clauses (b) or (c) of Article 39. To put it in other words, even those laws which do not give effect to the policy of the State towards securing the principles specified in Clauses (b) or (c) of Article 39 would also have the protection if they contain the declaration mentioned in Article 31C.

1593. I am also of the view that the validity of the latter part of Article 31C relating to declaration cannot be decided on the basis of any concession made during the course of arguments on behalf of the respondents. Such a concession if not warranted by the language of the impugned provision, cannot be of much avail. Matters relating to construction of an article of the Constitution or the Constitutional validity of an impugned provision have to be decided in the light of the relevant provisions and a concession made by the State counsel or the opposite counsel would not absolve the court from determining the matter independently of the concession. A counsel may sometimes

make a concession in order to secure favourable verdict on an other important point, such a concession would, however, not be binding upon another counsel. It is well-settled that admission or concession made on a point of law by the counsel is not binding upon the party represented by the counsel, far less would such admission or concession preclude other parties from showing that the concession was erroneous and not justified in law. It may, therefore, be laid down as a broad proposition that Constitutional matters cannot be disposed of in terms of agreement or compromise between the parties, nor can the decision in such disputes in order to be binding upon others be based upon a concession even though the concession emanates from the State counsel. The concession has to be made good and justified in the light of the relevant provisions.

1594. The position as it emerges is that it is open to the authority amending the Constitution to exclude judicial review regarding the validity of an existing statute. It is likewise open to the said authority to exclude judicial review regarding the validity of a statute which might be enacted by the legislature in future in respect of a specified subject

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In such an event, judicial review is not excluded for finding whether the statute has been enacted in respect of the specified subject Both the above types of Constitutional amendments are permissible under Article 368. What is not permissible, however, is a third type of Constitutional amendment, according to which the amending authority not merely excludes judicial review regarding the validity of a statute which might be enacted by the legislature in future in respect of a specified subject but also excludes judicial review for finding whether the statute enacted by the legislature is in respect of the subject for which judicial review has been excluded.

1595. In exercising the power of judicial review, it may be mentioned that the courts do not and cannot go into the question of wisdom behind a legislative measure. The policy decisions have essential to be those of the legislatures. It is for the legislatures to decide as to what laws they should enact and bring on the statute book. The task of the courts is to interpret the laws and to adjudicate about their validity, they neither approve nor disapprove legislative policy. The office of the courts is to ascertain and declare whether the impugned legislation is in consonance with or in violation of the provisions of the

Constitution. Once the courts have done that, their duty ends. The courts do not act as super legislature to suppress what they deem to be unwise legislation for if they were to do so the courts will divert criticism from the legislative door where it belongs and will thus dilute the responsibility of the elected representatives of the people. As was observed by Shri Alladi Krishnaswamy Iyer in speech in the Constituent Assembly on September 12, 1949 "The Legislature may act wisely or unwisely. The principles formulated by the Legislature may commend themselves to a Court or they may not. The province of the Court is normally to administer the law as enacted by the Legislature within the limits of its power".

1596. In exercising the power of judicial review, the courts cannot be oblivious of the practical needs of the government. The door has to be left open for trial and error.

Constitutional law like other mortal contrivances has to take some chances. Opportunity

must be allowed for vindicating reasonable belief by experience. Judicial review is not

intended to create what is sometimes called Judicial Oligarchy, the the Aristocracy of the

Robe, Covert Legislation, or Judge-made law. The proper forum to fight for the wise use

of the legislative authority is that of public opinion and legislative assemblies. Such

contest cannot be transferred to the judicial arena. That all Constitutional interpretations

have political consequences should not obliterate the fact that the decision has to be

arrived at in the calm and dispassionate atmosphere of the court room, that judges in

order to give legitimacy to their decision have to keep aloof from the din and controversy

of politics and that the fluctuating fortunes of rival political parties can have for them

only academic interest. Their primary duty is to uphold the Constitution and the laws

without fear or favour and in doing so, they cannot allow any political ideology or

economic theory, which may have caught their fancy, to colour the decision. The sobering reflection has always to be there that the Constitution is meant not merely for

people of their way of thinking but for people of fundamentally differing views. As

observed by Justice Holmes while dealing with the Fourteenth Amendment to the US Constitution:

The Fourteenth Amendment does not enact Mr. Herbert Spencer's Social Statics.... Some of these laws embody convictions or prejudices which

judges are likely to share. Some may not But a Constitution is not intended to embody a particular economic theory, whether of paternalism and the

organic relation of the citizen to the State or of laissez faire. It is made for people of fundamentally differing views, and the accident of our finding

certain opinions natural and familiar or novel and even shocking ought not to conclude our judgment upon the question whether statutes embodying them conflict with the Constitution of the United States. (see Mr. Justice Holmes, p. 82-83 (1931 Edition)).

It would also be pertinent in this context to reproduce the words of Patanjali Sastri C.J. i

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the case of State of Madras v. V.G. Row [1952] S.C.R. 597 while dealing with reasonable

restrictions:

In evaluating such elusive factors and forming their own conception of what is reasonable, in all the circumstances of a given case, it is inevitable that the social philosophy and the scale of values of the judges participating in the decision should play an important part, and the limit to their interference with legislative judgment in such cases can only be dictated by their sense of responsibility and self-restraint and the sobering reflection that the Constitution is meant not only for people of their way of thinking but for all, and that the majority of the elected representatives of the people have, in authorising the imposition of the restrictions, considered them to be reasonable.

1597. In my opinion, the second part of Article 31C is liable to be quashed on the

following grounds:

(1) It gives a carte blanche to the Legislature to make any law violative of Articles 14, 19 and 31 and make it immune from attack by inserting the requisite declaration. Article 31C taken along with its second part gives in effect the power to the Legislature, including a State Legislature, to amend the Constitution.

(2) The legislature has been made the final authority to decide as to whether the law made by it is for the objects mentioned in Article 31C. The vice of second part of Article 31C lies in the fact that even if the law enacted is not for the object mentioned in Article 31C, the declaration

made by the Legislature precludes a party from showing that the law is not for that object and prevents a court from going into the question as to whether the law enacted is really for that object. The exclusion by the Legislature, including a State Legislature, of even that limited judicial review strikes at the basic structure of the Constitution. The second part of Article 31C goes beyond the permissible limit of what constitutes amendment under Article 368.

The second part of Article 31C can be severed from the remaining part of Article 31C

and its invalidity would not affect the validity of the remaining part. I would, therefore,

strike down the following words in Article 31C:

and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy.

1598. We may now deal with the Constitution (Twenty-ninth Amendment) Act. This Act,

as mentioned earlier, inserted the Kerala Act 35 of 1969 and the Kerala Act 25 of 1971 as

entries No. 65 and 66 in the Ninth Schedule to the Constitution. I have been able to find

no infirmity in the Constitution (Twenty-ninth Amendment) Act. It may be mentioned that

an argument was advanced before us that Articles 31B and 31A are linked together and

that only those enactments can be placed in the Ninth Schedule as fall within the ambit of

Article 31A. Such a contention was advanced in the case of N.B. Jeejeebhoy v. Assistant

Collector, Thana Prant, Thana [1965] 1 S.C.R. 636. Repelling the contention Subba Rao

J. (as he then was) speaking for the Constitution Bench of this Court observed:

The learned Attorney-General contended that Articles 31-A and Article 31-B should be read together and that if so read Article 31-B would only illustrate cases that would otherwise fall under Article 31-A and, therefore, the same construction as put upon Article 31-B should also apply to

Article 31-A of the Constitution. This construction was sought to be based upon the opening words of Article 31-B, namely, "without prejudice to the generality of the provisions contained in Article 31-A. We find it difficult to accept this argument. The words "without prejudice to the generality of the provisions" indicate that the Acts and regulations specified in the Ninth Schedule would have the immunity even if they did not attract

Article 31-A of the Constitution. If every Act in the Ninth Schedule would be covered by Article 31-A, this article would become redundant. Indeed, some of the Acts mentioned therein, namely, items 14 to 20 and many other Acts added to the Ninth Schedule, do not appear to relate to estates as defined in Article 31-A(2) of the Constitution. We, therefore, hold that Article 31-B is not governed by Article 31-A and that Article 31-B is a Constitutional device to place the specified statutes beyond any attack on the ground that they infringe Part III of the Constitution.

I see no cogent ground to take a different view. In the result I uphold the validity of the

Constitution (Twenty-ninth Amendment) Act.

1599. I may now sum up my conclusions relating to power of amendment under Article

368 of the Constitution as it existed before the amendment made by the Constitution

(Twenty-fourth Amendment) Act as well as about the validity of the Constitution

(Twentyfourth Amendment) Act, the Constitution (Twentyfifth Amendment) Act and the

Constitution (Twentyninth Amendment) Act:

(i) Article 368 contains not only the procedure for the amendment of the Constitution but also confers the power of amending the Constitution.

(ii) Entry 97 in List I of the Seventh Schedule of the Constitution does not cover the subject of amendment of the Constitution.

(iii) The word "law" in Article 13(2) does not include amendment of the Constitution. It has reference to ordinary piece of legislation. It would also in view of the definition contained in Clause (a) of Article 13(3) include an ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law.

(iv) Provision for amendment of the Constitution is made with a view to overcome the difficulties which may be encountered in future in the working of the Constitution. No generation has a monopoly of wisdom nor has it a right to place fetters on future generations to mould the machinery of governments. If no provision were made for amendment of the Constitution, the people would have recourse to extra-Constitutional method like revolution to change the Constitution.

(v) Argument that Parliament can enact legislation under entry 97 List I of Seventh Schedule for convening a Constituent Assembly or holding a

referendum for the purpose of amendment of Part III of the Constitution so as to take away or abridge fundamental rights is untenable. There is no warrant for the proposition that as the amendments under Article 368 are not brought about through referendum or passed in a Convention the power of amendment under Article 368 is on that account subject to limitations.

(vi) The possibility that power of amendment may be abused furnishes no ground for denial of its existence. The best safeguard against abuse of power is public opinion and the good sense of the majority of the members of Parliament. It is also not correct to assume that if Parliament is held entitled to amend Part III of the Constitution, it would automatically and necessarily result in abrogation of all fundamental rights.

(vii) The power of amendment under Article 368 does not include power to abrogate the Constitution nor does it include the power to alter the basic structure or framework of the Constitution. Subject to the retention of the basic structure or framework of the Constitution, the power of amendment is plenary and includes within itself the power to amend the various articles of the Constitution, including those relating to fundamental rights as well as those which may be said to relate to essential features. No part of a fundamental right can claim immunity from amendatory process by being described as the essence or core of that right. The power of amendment would also include within itself the power to add, alter or repeal the various articles.

(viii) Right to property does not pertain to basic structure or framework of the Constitution.

(ix) There are no implied or inherent limitations on the power of amendment apart from those which inhere and are implicit in the word "amendment". The said power can also be not restricted by reference to natural or human rights. Such rights in order to be enforceable in a court of law must become a part of the statute or the Constitution.

(x) Apart from the part of the Preamble which relates to the basic structure or framework of the Constitution, the Preamble does not restrict the power of amendment.

(xi) The Constitution (Twentyfourth Amendment) Act does not suffer from any infirmity and as such is valid.

(xii) The amendment made in Article 31 by the Constitution (Twentyfifth Amendment) Act is valid.

(xiii) The first part of Article 31C introduced by the Constitution (Twentyfifth Amendment) Act is valid. The said part is as under.

31C. Notwithstanding anything contained in Article 13, no law giving effect to the policy of the State towards securing the principles specified in Clause (b) or Clause (c) of Article 39 shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by Article 14, Article 19 or Article 31: Provided that where such law is made by the Legislature of a State, the provisions of the article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent.

(xiv) The second part of Article 31C contains the seed of national disintegration and is invalid on the following two grounds:

(1) It gives a carte blanche to the Legislature to make any law violative of Articles 14, 19 and 31 and make it immune from attack by inserting the requisite declaration. Article 31C taken along with its second part gives in effect the power to the Legislature, including a State Legislature, to amend the Constitution in important respects.

(2) The legislature has been made the final authority to

decide as to whether the law made by it is for objects mentioned in Article 31C. The vice of second part of Article 31C lies in the fact that even if the law enacted is not for the object mentioned in Article 31C, the declaration made by the Legislature precludes a party from showing that the law is not for that object and prevents a court from going into the question as to whether the law enacted is

really for that object. The exclusion by Legislature, including a State Legislature, of even that limited judicial review strikes at the basic structure of the Constitution. The second part of Article 31C goes beyond the permissible limit of what constitutes amendment under Article 368.

The second part of Article 31C can be severed from the remaining part of Article 31C and its invalidity would not affect the validity of remaining part 1 would, therefore, strike down the following words in Article 31C:

and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy.

(xv) The Constitution (Twentyninth Amendment) Act does not suffer from any infirmity and as such is valid.

1600. The petition shall now be posted for hearing before the Constitution Bench for

disposal in the light of our findings.